



CHAPTER cvii.

An Act for conferring further powers upon the Great Western Railway Company in respect of their own undertaking and upon that Company and the London and North Western Railway Company in respect of an undertaking in which they are jointly interested and for other purposes. A.D. 1914.
[31st July 1914.]

WHEREAS it is expedient that the Great Western Railway Company (in this Act called "the Company") should be empowered to make and maintain the railways and the deviations widenings and alterations of railways and other works and to exercise the powers by this Act respectively authorised and conferred upon them and to acquire for the purposes of this Act and for the general purposes of their undertaking and works connected therewith and for providing increased accommodation certain lands houses and buildings in this Act described or referred to :

And whereas it is expedient that the Company and the London and North Western Railway Company (in this Act called "the North Western Company") should be empowered to execute the works and exercise the powers and acquire the lands in this Act mentioned or referred to in that behalf :

And whereas plans and sections showing the lines and levels of the railways and the deviations widenings and alterations of railways and other works by this Act authorised to be constructed and plans showing the lands by this Act authorised to be acquired and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the clerks

A.D. 1914. of the peace for the several counties within which such railways
— and the deviations widenings and alterations of railways and
other works will be constructed and such lands are situated
and are hereinafter respectively referred to as the deposited
plans sections and books of reference :

And whereas it is expedient that the time now limited by
the Great Western Railway (General Powers) Act 1909 for the
completion of Railway No. 6 by that Act authorised should be
extended :

And whereas it is expedient that the Company should be
empowered to abandon the construction of a portion of Railway
No. 4 authorised by the Great Western Railway Act 1899 and
to retain and hold or to sell and dispose of the lands acquired
by them for the purposes of the said portion of railway or
some portion or portions thereof and to transfer to and vest in
the council for the urban district of Uxbridge (in this Act called
“the Uxbridge Council”) some portion or portions of such
lands :

And whereas it is expedient that some of the provisions of
the existing Acts of the Company should be amended or repealed
and that further powers should be conferred upon the Company
as hereinafter provided :

And whereas it is expedient that the Company should be
authorised to raise an additional sum of money and to apply their
funds for the purposes of this Act and for the general purposes
of their undertaking :

And whereas it is expedient that the North Western Com-
pany should be empowered to apply their funds as provided by
this Act :

And whereas the objects aforesaid cannot be attained with-
out the authority of Parliament :

May it therefore please Your Majesty that it may be enacted
and be it enacted by the King's most Excellent Majesty by and
with the advice and consent of the Lords Spiritual and Temporal
and Commons in this present Parliament assembled and by the
authority of the same as follows:—

Short title. 1. This Act may be cited for all purposes as the Great
Western Railway Act 1914.

2. The following Acts and parts of Acts are except where expressly varied by this Act incorporated with and form part of this Act (that is to say):—

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—
Incorporation of general Acts.

The Lands Clauses Acts ;

The Railways Clauses Consolidation Act 1845 ;

Part I. (relating to the construction of a railway) and
Part II. (relating to extension of time) of the Railways Clauses Act 1863 ;

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely):—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money ;

The conversion of the borrowed money into capital ;

The consolidation of the shares into stock ; and

The provision to be made for affording access to the special Act by all parties interested ; and

Part I. (relating to cancellation and surrender of shares)
Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction :

Interpretation.

The expression “the railway” or “the railways” means the new railways by this Act authorised ;

The expression “the two companies” means the Company and the North Western Company or whichever of those companies exercises the powers conferred upon the two companies.

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Protection
of gas and
water mains
of local
authorities.

4. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company" or "society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Power to
make new
railways and
works.

5. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections relating thereto the railways and the deviations widenings and alterations of railways hereinafter described with all proper stations sidings approaches roads works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for those purposes or for providing accommodation for persons of the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company The new railways and the deviations widenings and alterations of railways hereinbefore referred to and authorised by this Act are—

A railway (No. 1) 6 miles 4 furlongs and 3·66 chains in length wholly in the county of Carmarthen commencing in the parish of Pembrey in the rural district of Llanelly by a junction with the South Wales Railway of the Company and terminating in the parish of Llanedy in the rural district of Llanelly by a junction with the Swansea District Railway of the Company at or near the western end of the viaduct carrying that railway over the River Loughor :

A railway (No. 2) 1 mile 5 furlongs and 7·35 chains in length wholly in the county of Carmarthen commencing in the parish of Burry Port Urban and urban district of Burry Port by a junction with the South Wales Railway of the Company and terminating in the parish of Pembrey in the rural district of Llanelly by a junction with the said intended Railway No. 1 :

A railway (No. 3) 4 furlongs and 7·85 chains in length wholly in the county of Devon commencing in the parish

of Abbotskerswell in the rural district of Newton Abbot by a junction with the South Devon Railway of the Company and terminating in the parish of Milber in the urban district of Newton Abbot by a junction with the Torquay Branch Railway of the Company: A.D. 1914.

A railway (No. 4) 5 furlongs and 6·50 chains in length wholly in the county of Devon commencing in the parish of Abbotskerswell in the rural district of Newton Abbot by a junction with the said Torquay Branch Railway and terminating in the parish of Milber in the urban district of Newton Abbot by a junction with the said South Devon Railway:

A railway (No. 5) 3 furlongs and 9·80 chains in length wholly in the parish and urban district of Bilston in the county of Stafford commencing by a junction with the Company's Birmingham Wolverhampton and Dudley Railway at or near the bridge carrying Wolverhampton Street over that railway and terminating by a junction with the Company's Oxford Worcester and Wolverhampton Railway at or near the bridge carrying Millfields Road over that railway:

A railway (No. 6) 1 mile 3 furlongs and 5·45 chains in length wholly in the parish of Rogerstone in the rural district of Saint Mellons in the county of Monmouth commencing by a junction with the Monmouthshire (Western Valleys) Railway of the Company at a point about 32 chains north-west of Rogerstone Station and terminating by a junction with the said railway north-west of Bassaleg Station:

A railway (No. 7) 3 furlongs and 4·20 chains in length wholly in the parish and urban district of Margam in the county of Glamorgan commencing by a junction with the South Wales Railway of the Company north-west of the bridge carrying the Port Talbot Railway and Docks Company's Docks Branch Railway over that railway and terminating by a junction with the said branch railway at or near the junction known as Copperworks Junction of the Ogmore Valleys Extension Railway of the Port Talbot Railway and Docks Company with the said branch railway and in connection therewith in the said parish and urban district the Company may alter and divert so

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much of the said Ogmere Valleys Extension Railway as lies between points respectively about 2 chains west and $21\frac{1}{2}$ chains east of the said junction :

A railway (No. 8) 2 furlongs and 1·10 chains in length wholly in the parish and urban district of Margam in the county of Glamorgan commencing by a junction with the Deviation and Widening No. 2 by this Act authorised and terminating by a junction with the said South Wales Railway north-west of Port Talbot Station :

A railway (No. 9) 3 miles 3 furlongs and 5 chains in length wholly in the county of Glamorgan commencing in the parish of Llantwit Lower in the rural district of Neath by a junction with the Vale of Neath Railway of the Company and terminating in the parish of Neath Higher in the rural district of Neath in the field or enclosure numbered 212 on the 25-inch ordnance map (2nd edition 1899) of the parish of Neath Middle :

A railway (No. 10) 2 miles 3 furlongs and 5 chains in length wholly in the county of Glamorgan commencing in the parish of Resolven in the rural district of Neath by a junction with the Vale of Neath Railway of the Company and terminating in the parish of Neath Higher in the rural district of Neath in the field or enclosure numbered 522 on the 25-inch ordnance map (2nd edition 1912) of the said parish :

A deviation and widening (No. 1) 2 furlongs and 9·40 chains in length wholly in the parish and urban district of Risca in the county of Monmouth of so much of the Monmouthshire (Western Valleys) Railway of the Company as lies between points respectively about 23 chains north and 8 chains south-east of the bridge carrying that railway over the River Ebbw at the north-western end of Cross Keys Station ;

And the Company may abandon and discontinue the maintenance and use of so much of the said railway between the commencement and termination of the said Deviation and Widening No. 1 hereinbefore described as may not be required for the purposes of the Company and may sell and dispose of or retain hold or appropriate the site and soil thereof for the purposes of the said intended deviation and widening and for the general purposes of the Company :

A deviation and widening (No. 2) 1 mile 0 furlongs and 9 chains in length wholly in the county of Glamorgan of the Rhondda and Swansea Bay Railway Company's main line of railway commencing in the parish and borough of Aberavon at a point about 13 chains south-east of the bridge carrying Jubilee Road over that railway and terminating in the said parish and borough at a point about 24 chains north-east of the bridge carrying that railway over the River Avan at a point about 12 chains north-east of Aberavon Station: A.D. 1914.

In connection with the said Deviation and Widening No. 2 in the said parish and borough of Aberavon and in the said parish and urban district of Margam the Company may make the following deviations and alterations of railways (that is to say):—

(1) A deviation alteration and extension of (A) the Port Talbot Railway and Docks Company's Aberavon Branch Railway commencing by a junction with the said Deviation and Widening No. 2 at or near the existing junction of the said railway with the Rhondda and Swansea Bay Railway Company's main line and terminating at a point about 16 chains east thereof (B) the said Company's branch to Talbot Wharf commencing at a point about 9 chains south-west of its junction with the said main line and terminating by a junction with the said Deviation and Widening No. 2 at a point about 1 chain north-east of the said junction and (C) the Rhondda and Swansea Bay Railway Company's Port Talbot Dock Branch Railway commencing at a point about $2\frac{1}{2}$ chains south-west of its junction with the said main line and terminating by a junction with the said Deviation and Widening No. 2 at a point about 2 chains north-east of the last-mentioned junction;

(2) An alteration of the levels of (A) so much of the Port Talbot Railway and Docks Company's line connecting their said branch to Talbot Wharf with their railway leading to Copperworks Junction as lies between points respectively about 3 chains and 11 chains east of the junction of that line with the said branch and (B) of so much of the said Company's branch to North Bank Goods Station as lies between points respectively about

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3 chains and 9 chains south-west of its junction with the said main line ;

(3) The existing and partly constructed loops connecting the Rhondda and Swansea Bay Railway Company's main line with the South Wales Railway of the Company on the north-eastern side of that railway shall as from the completion of the said Deviation and Widening No. 2 be abandoned and discontinued :

A widening 4 furlongs and 2·34 chains in length in the parish of Llandilo Tal y bont in the rural district of Swansea in the county of Glamorgan and in the parish of Llanedy in the rural district of Llanelly in the county of Carmarthen of the Llanelly Railway of the Company between the south-western end of Pontardulais Station and the bridge carrying the said railway over the river known as the Afon Gwili near Hendy Junction.

Rates and
charges for
railways &c.

6. Railways Nos. 3 4 5 9 and 10 by this Act authorised shall for the purposes of maximum rates and charges for merchandise traffic (including perishable merchandise by passenger train) be deemed to be part of the Company's railways as if the same had been part of the Great Western Railway at the date of the passing of the Great Western Railway Company (Rates and Charges) Order Confirmation Act 1891 and Scale I. of Part I. in the Appendix to the said Order shall be applicable to the said Railways Nos. 5 9 and 10 and Scale II. of Part I. in the Appendix to the said order shall be applicable to the said Railways Nos. 3 and 4.

Railways Nos. 1 2 7 and 8 by this Act authorised shall for the purposes of maximum rates and charges for traffic of every description be deemed to be part of the South Wales Railway of the Company :

Provided that in respect of Railway No. 1 by this Act authorised the power of the Company to charge for traffic in Classes A and B for a distance less than six miles shall have effect as if four miles were substituted for six.

Railway No. 6 by this Act authorised shall for the said purposes be deemed to be part of the Monmouthshire Railways of the Company.

The deviations and widenings of railways by this Act authorised shall for the said purposes and all other purposes be

deemed to be part of the railways which are to be so deviated and widened. A.D. 1914.

7. For the conveyance upon the railways by this Act authorised of small parcels not exceeding five hundred pounds in weight by passenger trains the Company may demand and take any charges not exceeding the following (that is to say):—

Charges
for small
parcels.

For any parcel not exceeding seven pounds in weight three-pence;

For any parcel exceeding seven pounds but not exceeding fourteen pounds in weight fivepence;

For any parcel exceeding fourteen pounds but not exceeding twenty-eight pounds in weight sevenpence;

For any parcel exceeding twenty-eight pounds but not exceeding fifty-six pounds in weight ninepence;

And for any parcel exceeding fifty-six pounds but not exceeding five hundred pounds in weight the Company may demand any sum they think fit:

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

8. The maximum fares to be charged by the Company for the conveyance of passengers upon the railways by this Act authorised including every expense incidental to such conveyance shall not exceed the following (that is to say):—

Maximum
fares for pas-
sengers.

For every passenger conveyed in a first-class carriage three-pence per mile;

For every passenger conveyed in a second-class carriage two pence per mile;

For every passenger conveyed in a third-class carriage one penny per mile;

For every passenger conveyed for an entire distance which does not exceed three miles the Company may charge as for three miles and every fraction of a mile beyond three miles or any greater number of miles shall be deemed a mile.

9. Every passenger travelling upon the railways may take with him his ordinary luggage not exceeding one hundred and fifty pounds in weight for first-class passengers one hundred and

Passengers'
luggage.

A.D. 1914. — twenty pounds in weight for second-class passengers and one hundred pounds in weight for third-class passengers without any charge being made for the carriage thereof.

Foregoing charges not to apply to special trains.

10. The restrictions as to the charges to be made for passengers shall not extend to any special train run upon the railways in respect of which the Company may make such charges as they think fit but shall apply only to the ordinary and express trains appointed from time to time by the Company for the conveyance of passengers upon that railway.

Power to deviate.

11. In making the railways deviations and widenings of railways and works in connection therewith by this Act authorised the Company may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plans and vertically from the levels shown on the deposited sections to any extent not exceeding 5 feet upwards and 5 feet downwards and in respect of Railways Nos. 9 and 10 and the works in connection therewith to any extent not exceeding 10 feet upwards and 5 feet downwards or in every case to such further extent as they may find necessary or convenient and as may be sanctioned by the Board of Trade.

Inclination of roads.

12. In altering for the purposes of this Act the roads next hereinafter mentioned the Company may make the same of any inclinations not steeper than the inclinations hereinafter mentioned in connection therewith respectively (that is to say):—

Number on deposited Plans.	Area.	Description of Road.	Intended Inclination.
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RAILWAY No. 1.

44 7	Parish of Llanelly Rural Parish and borough of Llanelly.	-	Public	1 in 30 on the southern side.
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RAILWAY No. 3.

9	Parish of Abbotskerswell	-	Public	1 in 12 on the south-eastern side. 1 in 13 on the north-western side.
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RAILWAY No. 4.

11	Parish of Abbotskerswell	-	Public	1 in 8 on the eastern side.
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RAILWAY No. 6.

21	Parish of Rogerstone	-	Public	1 in 15 on both sides.
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Number on deposited Plans.	Area.	Description of Road.	Intended Inclination.
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WIDENING OF THE LLANELLY RAILWAY.

9	Parish of Llandilo Tal y bont	Public	1 in 11·40 on the south-eastern side.
2 and 14	Parish of Llanedy - -		
36	Parish of Llanedy - -	Public	1 in 10 on the south-eastern side.

13. The Company may make the arch of the bridge for carrying the railway over the road next hereinafter mentioned of any height and span not less than the height and span hereinafter mentioned in connection therewith (that is to say):—

Height and span of bridge.

Number on deposited Plans.	Area.	Description of Road.	Span.	Height.
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RAILWAY No. 1.

124	Parish of Llangennech -	Public	30 feet	15 feet 6 inches.
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14. Notwithstanding anything in this Act contained or shown on the deposited plans and sections the following provisions shall apply in constructing Railways Nos. 9 and 10 respectively:—

Bridges to be provided on Railways Nos. 9 and 10.

- (1) The road numbered on the deposited plans 7 in the parish of Resolven and 19 in the parish of Neath Lower shall be carried over Railway No. 9 by means of a bridge of a width of not less than 25 feet and the gradient of the approaches to the said bridge shall not be steeper than 1 in 18 on the western side and 1 in 20 on the eastern side:
- (2) The Company shall carry the road numbered on the deposited plans 24 in the parish of Blaengwrach and 14 in the parish of Neath Higher over Railway No. 10 by means of a bridge of a width of not less than 25 feet and the gradient of the approaches to the said bridge shall not be steeper than 1 in 20.

15. The Company may make the roadway over the bridges by which the following roads will be carried over the railways and widening hereinafter mentioned of such width between the fences thereof as the Company think fit not being less than the

Width of certain roadways.

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Number on deposited Plans.	Area.	Description of Roadway.	Width of Roadway.
RAILWAY No. 1.			
71	Parish of Llanelly Rural - - -	Public	25 feet.
29	Parish and borough of Llanelly - -		
97	Parish of Llanelly Rural - - -	Public	25 feet.
7	Parish of Llangennech - - -	Public	15 feet.
RAILWAY No. 3.			
9	Parish of Abbotskerswell - - -	Public	20 feet.
RAILWAY No. 4.			
10 and 12	Parish of Abbotskerswell - - -	Public	20 feet.
RAILWAY No. 9.			
20	Parish of Clyne - - - - -	Public	20 feet.
WIDENING OF THE LLANELLY RAILWAY.			
9	Parish of Llandilo Tal y bont - - -	Public	25 feet.
2 and 14	Parish of Llanedy - - - - -		
36	Parish of Llanedy - - - - -	Public	25 feet.

Power to divert roads and foot-paths as shown on deposited plans.

16. The Company may stop up and divert the roads and footpaths referred to in the next following table in the manner shown upon the deposited plans and sections or as otherwise provided by this Act and subject to the provisions of this Act may stop up and cause to be discontinued as a road or foot-path so much of each existing road or footpath as will be rendered unnecessary by the new portion of road or footpath so shown on the said plans (that is to say):—

Railway.	Area.	Number of Road or Footpath on deposited Plans.
No. 1	Parish of Llangennech - - -	45.
No. 6	Parish of Rogerstone - - -	21 36 37 52 55 57 and 60.

Company not liable to repair surface of road level of which is not permanently altered.

17. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over the railways or deviations and widenings of railways or any of them by a bridge or bridges or the immediate approaches thereto except so far as

the level of such road or highway or approaches is permanently altered so as to increase the gradient thereof. A.D. 1914.

18. For the protection of the council of the administrative county of Carmarthen (in this section referred to as "the county council") the following provisions shall unless otherwise agreed in writing between the county council and the Company have effect (that is to say):—

For protection of Carmarthen County Council.

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans and sections the Company shall not construct the bridges carrying Railway No. 1 by this Act authorised over the roads next hereinafter referred to of any less span or headway than those next hereinafter specified with reference to the said roads respectively:—

Parish.	No. of Road on deposited Plans.	Span.	Headway.
Llanelly Rural -	15	40 feet	16 feet 6 inches.
Llangennech -	124	30 feet	15 feet 6 inches.

The span of the said bridges respectively shall be measured at right angles with the line of the roads over which the same are constructed:

- (2) In constructing the said railway under the roads numbered on the deposited plans 44 and 45 in the parish of Llanelly Rural the Company shall not alter the level of the said roads so as to make the gradient of any part thereof steeper than 1 in 30:
- (3) If in constructing the widening by this Act authorised of the Llanelly Railway of the Company under Fforest Road numbered on the deposited plans 2 and 14 in the parish of Llanedy the Company require to alter the level of the said road the portion of the altered level thereof shown on the deposited sections to be constructed horizontally shall be constructed at an inclination of 1 in 20 rising in a north-westerly direction:
- (4) In constructing the said bridge carrying the said railway over the road numbered on the deposited plans 15 in the parish of Llanelly Rural and in constructing the said railway under the roads numbered on the

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deposited plans 44 and 45 in the parish of Llanelly Rural and in constructing the said widening of the Llanelly Railway under the roads respectively numbered on the deposited plans 2 14 and 36 in the parish of Llanedy the Company shall execute all such works and do all such things as the county council may reasonably require for disposing of the surface drainage of the said roads respectively and in a manner so far as reasonably practicable not less convenient and efficient than such drainage is disposed of at the time of the construction of the said works respectively :

- (5) Not less than one month before commencing the construction of such parts of the said railway and widening respectively as affect in any way any of the roads hereinbefore referred to or of any other works by this Act authorised which shall affect in any way any main road in the county of Carmarthen the Company shall submit to the county council for their reasonable approval plans sections and specifications of so much of the said railway widening or works (as the case may be) as affects any such road as aforesaid and if the county council shall not within one month after such submission have signified their approval or disapproval they shall be deemed to have approved thereof :
- (6) All works shown or described in any such plans sections and specifications as aforesaid shall be executed in accordance with such plans sections and specifications as approved by the county council or settled by arbitration as hereinafter provided :
- (7) All bridges to be constructed by the Company under the powers of this Act over any main road in the county of Carmarthen shall be so constructed as to prevent as far as is reasonably practicable the dripping of water from the said bridges on to any such road and the Company shall construct and at all times thereafter maintain on both sides of every such bridge over the said roads parapets not less than four feet six inches in height :
- (8) The Company shall not in exercising the powers of this Act interrupt the traffic on any main road in

the said county or interfere with such traffic to any greater extent or for any longer period than shall be reasonably necessary for the purposes of the execution of the works by this Act authorised : A.D. 1914.

- (9) The Company shall to the reasonable satisfaction of the county council efficiently light all works by this Act authorised during the construction thereof so far as such works shall affect or interfere with the traffic on any main road in the said county and shall take all such precautions as the county council may reasonably require for preventing any injury to persons using any such road by reason or in consequence of the exercise of the powers of this Act Provided that compliance by the Company with any such requirement of the county council as aforesaid shall not relieve the Company from any liability to which they would have been subject if such requirement had not been made :

- (10) If any difference shall arise between the county council and the Company under this section such difference shall be referred to and settled by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either of them after notice to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration.

19. In constructing within the boundaries for the time being of the borough of Llanelly (hereinafter referred to as "the borough") Railway No. 1 by this Act authorised (hereinafter referred to as "the railway") the Company shall notwithstanding anything in this Act to the contrary contained or shown on the deposited plans and sections (hereinafter referred to as "the said plans") conform to and observe the following provisions regulations and restrictions except so far as may at any time hereafter be otherwise agreed in writing between the mayor aldermen and burgesses of the borough of Llanelly (hereinafter referred to as "the corporation") and the Company (that is to say) :—

For protection of corporation of Llanelly.

- (1) In all cases where streets are intended to be temporarily stopped diverted or interfered with during the

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execution by the Company of any works fourteen days' notice in writing of the intention to commence such works shall be given to the corporation and the Company shall provide reasonable accommodation for the traffic and access to houses and other places affected thereby and make and maintain during the construction of such works suitable arrangements for fencing lighting and watching the same to the reasonable satisfaction of the corporation :

- (2) The Company shall fence off and enclose with an unclimbable iron fence not less than 5 feet 6 inches in height to the reasonable satisfaction of the corporation all or any lands taken acquired or used by the Company for the purposes or under the powers of this Act from any lands of the corporation which form part of or are adjacent to or abutting upon the public park known as " Parc Howard " and will make proper provision for the drainage of any lands taken acquired or used as aforesaid :
- (3) If and whenever in the execution of the powers of this Act it shall be necessary to alter sever disturb or divert any water main or pipe of the corporation within or without the borough or it shall be necessary for properly maintaining the supply of water to lay any substituted water main or pipe such alteration severance disturbance or diversion shall be executed and such new or substituted water main or pipe shall previous to such alteration severance disturbance or diversion be laid by the corporation and the Company shall repay to the corporation the reasonable cost thereof If by reason of the construction of the said works it shall be necessary to increase the then existing length of any water main or pipe the Company shall pay to the corporation the reasonable cost of laying such increased length of main or pipe :
- (4) Whenever any water mains or pipes laid by the corporation for the supply of any property are rendered unnecessary by the acquisition under the powers of this Act of such property the Company shall pay the corporation the reasonable cost of the works

required for the discontinuance of such water mains or pipes so rendered unnecessary : A.D. 1914.

- (5) If during and by reason of the construction of any of the works authorised by this Act it shall be necessary to construct or lay any sewer or drain in substitution for or in extension of any existing sewer or drain or to alter disturb or divert any such sewer or drain or to alter the level thereof or to construct any additional manholes airholes or other works or conveniences connected therewith such works shall before the Company disturb the existing sewers or drains be carried out by the corporation at the reasonable expense of the Company :
- (6) The Company shall at all times afford to the corporation all reasonable facilities for carrying sewers drains water mains pipes and wires along over or under the railway :
- (7) Notwithstanding anything contained in this Act the powers of this Act for the compulsory purchase by the Company of lands belonging to the corporation and forming part of or adjacent to or abutting upon the public park known as "Parc Howard" shall cease after the expiration of one year from the passing of this Act :
- (8) If at any time within 15 years after the passing of this Act it shall in the opinion of the corporation be necessary to construct or lay in or through any of the lands mentioned in subsection (7) of this section any sewer or drain not exceeding 24 inches in internal diameter after the said lands shall have been acquired by the Company under the powers of this Act or otherwise then the corporation shall without payment or consideration for any such right be authorised and empowered to lay such sewer or drain in or through such lands and at all times after construction thereof to have reasonable access thereto for the purpose of its maintenance repair and renewal Provided always that such sewer or drain shall be constructed and subsequently maintained in a position and manner to be reasonably approved by the Company and so as not to affect

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the stability of their railway or interfere with the traffic thereon :

- (9) If at any time after the passing of this Act the Company shall abandon or obtain a warrant authorising the abandonment of the railway or any part thereof within or adjoining the borough of Llanelly or if any of the lands which the Company may acquire or purchase from the corporation for the purposes of such railway shall be or become superfluous lands within the meaning of the Lands Clauses Consolidation Act 1845 then and in any such case notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any Act relating to the Company with which that Act is incorporated the Company shall first offer to sell to the corporation the lands so acquired and purchased from them and the corporation shall and are hereby empowered to purchase the same and section 128 of the said Act shall apply to the said lands as if the words "unless such lands be situate within a town or be lands built upon or used for building purposes" were omitted therefrom :
- (10) When constructing the new footpath and footbridge in the parish and borough of Llanelly and in the parish of Llanelly Rural in the rural district of Llanelly in the county of Carmarthen referred to in the section of this Act the marginal note whereof is "Power to make new roads and alterations of roads footpaths &c." and also referred to in the heads of agreement mentioned in the section of this Act the marginal note whereof is "Scheduled heads of agreement of action confirmed" and set forth in the Third Schedule to this Act the Company shall construct and complete the said footpath and footbridge in accordance with the said heads of agreement and the plan therein mentioned including the stiles and fences shown on the said plan and the Company shall not impede stop up or extinguish the public rights of way to and from the said new footpath over and across the said stiles :
- (11) The bridge to carry the road numbered on the said plans 7 in the borough over the railway shall be

constructed with a width of not less than 35 feet between the parapets thereof measured at right angles to the centre line of the road and if the Company interfere with the premises numbered 54 on the said plans they shall round off the westernmost corner thereof and in altering for the purposes of this Act the inclination of the said road the Company shall where necessary reconstruct and raise the footpath adjoining the said road to a suitable level to the reasonable satisfaction of the corporation:

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- (12) The Company shall either (1) before stopping up or causing to be discontinued as a road or footpath any part of the existing road or footpath numbered on the said plans 52 and 64 in the rural district of Llanelly and 18 in the borough construct on the south-eastern side of the Llanelly and Mynydd Mawr Railway and complete to the reasonable satisfaction of the corporation a carriage road of not less than 20 feet in width between the said road or footpath and the road known as Old Road and such road shall be formed and metalled by the Company to the reasonable satisfaction of the corporation and from and after its completion such road shall become a public road and repairable by the corporation and thereupon all rights of way over the said portion of the existing road and footpath shall be extinguished or (2) provide a bridge to carry the said road or footpath over the said railway of a width between the parapets thereof of not less than 15 feet on or adjoining the site of such road or footpath and the approaches thereto shall not be steeper than 1 in 20 on the south-eastern side and 1 in 16 on the north-western side:

- (13) The Company shall carry the footpath which passes through the enclosure numbered on the said plans 21 in the borough over the said railway by means of a footbridge of a width of not less than 4 feet with reasonably convenient approaches thereto and such footbridge shall be constructed to the reasonable satisfaction of the corporation and in such position as they may reasonably approve on or near the site of the said footpath:

A.D. 1914.
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- (14) The bridge by which the road numbered on the said plans 29 in the borough is carried over the railway shall have a width between the parapets of not less than 25 feet:
- (15) The bridge by which Felinfoel Road is carried over the railway shall have a width between the parapets of not less than 36 feet measured at right angles to the centre line of the said road:
- (16) The Company shall construct the bridge carrying the railway over the River Lliedi with a span of not less than 25 feet:
- (17) The Company shall make full compensation to the corporation for any damage to or subsidence of the highway or any sewers drains mains pipes or apparatus or other works belonging to or repairable by the corporation which may be caused during or by reason of the construction by the Company of the said railway or by reason of any act or default of the Company their contractors servants or agents in connection therewith:
- (18) If any difference arises between the corporation and the Company with respect to anything to be done or not to be done by the Company or the corporation in relation to any of the matters in this section mentioned or with respect to the cost of any work to be paid for by the Company such difference shall be referred to and determined by an engineer to be appointed by the corporation and the Company or failing agreement by an engineer to be appointed by the President of the Institution of Civil Engineers on the application in writing of either of them and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For further
protection of
corporation
of Llanelly.

20. For the further protection of the mayor aldermen and burgesses of the borough of Llanelly (hereinafter called "the corporation") the following provisions shall unless otherwise agreed in writing under seal between the corporation and the Company apply and have effect (that is to say):—

- (1) The Company shall when purchasing the lands required for the construction of Railway No. 1 by this Act authorised also acquire a site on the line of such

railway between the footpath numbered on the deposited plans 32 in the parish of Llanelly Rural and the River Lliedi suitable for the construction thereon of a passenger station with all necessary approaches and conveniences thereto upon such railway : A.D. 1914.

(2) If at any time after the expiration of five years from the opening for public traffic of Railway No. 1 the corporation by notice in writing request the Company to construct a passenger station upon the said site and the Company refuse to comply with such request or fail for a period of two months to agree thereto a difference shall be deemed to have arisen between the Company and the corporation and it shall be referred to two arbitrators one to be appointed by the Company and the other by the corporation or their umpire to determine whether the construction of such station is necessary to meet the reasonable requirements of the inhabitants of the district and the provisions of the Arbitration Act 1889 shall apply to such arbitration and the costs thereof shall be in the discretion of the arbitrators :

(3) If it shall be agreed or determined that the construction of such station is necessary for the purposes aforesaid the Company shall within two years from the date of such agreement or the award of the arbitrators or umpire construct and open a passenger station upon the said site and thereafter provide such a service of passenger trains to pick up and set down passengers at that station as may be necessary to meet the reasonable requirements of the district.

21. For the protection of the Llanelly Rural District Council (in this section called "the council") the following provisions shall unless otherwise agreed in writing between the council and the Company and notwithstanding anything contained in this Act or shown on the deposited plans and sections apply and have effect (that is to say):— For protection of Llanelly Rural District Council.

(1) The Company shall construct the bridge for carrying the road numbered on the deposited plans 97 in the parish of Llanelly Rural over Railway No. 1 by this Act authorised of a width between the parapets of

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not less than 25 feet and shall not in altering the levels of the said road make the inclinations of the approaches to such bridge on either side steeper than 1 in 25 :

(2) The Company shall carry the said railway over the roads numbered on the deposited plans 95 and 108 in the parish of Llangennech by means of girder bridges having in each case a clear span between the abutments of not less than 30 feet and a headway of not less than 15 feet :

(3) If in constructing the said railway the Company find it necessary to divert the road known as Mwrwg Road numbered on the deposited plans of the said railway 45 in the parish of Llangennech such diversion shall be carried out in a line and situation to be shown upon a plan to be first submitted to and reasonably approved by the council and the diverted portion of the road shall have a clear width throughout of not less than 15 feet Any bridge carrying the railway across such road shall have a span of not less than 15 feet and a headway of not less than 14 feet and any alteration of the levels of the road shall have gradients not steeper than 1 in 18 :

(4) The Company shall carry the footpath numbered 32 and the footpath between the enclosures numbered 69 and 70 and the footpath in the enclosure numbered 85 on the deposited plans of the said railway all in the parish of Llanelly Rural over the railway by means of footbridges not less than four feet in width to the reasonable satisfaction of the council who shall light and sand the same if and whenever necessary Provided that if the last-mentioned footpath can be conveniently diverted to the reasonable satisfaction of the council the Company shall be entitled to divert the same accordingly :

(5) All other public footpaths in the district of the council which shall be crossed by the railways by this Act authorised and which are not diverted with the consent of the council shall be carried and maintained across the railway on the level and the Company shall erect and thereafter maintain good and sufficient

gates or stiles across such footpaths on either side of the railway to the reasonable satisfaction of the council: A.D. 1914.

- (6) The bridges carrying the railways over any road in the district of the council shall be constructed so as to prevent so far as is reasonably practicable the dripping of water on to the roads or footpaths underneath:
- (7) Whereas the council have prepared a scheme for the sewerage of part of their district and the construction of the Railways Nos. 1 and 2 by this Act authorised will interfere with the carrying out of part of such scheme in the manner proposed by the council and it is expedient to make provisions in respect thereof Therefore be it provided that—

(A) As soon as practicable after the passing of this Act and not later than three months after the date of the passing of the Bill for this Act by the Committee of the House of Lords to whom the Bill for this Act was referred the Company shall supply to the council particulars of the lands required by the Company for the purposes of the construction of so much of the said railways as affects the said scheme;

(B) Within one month after the Company shall have supplied such particulars to the council the council shall submit to the Company plans and sections showing such alterations in the before-mentioned sewerage scheme or such substituted works as may in the opinion of the council be required by reason of the intended construction of the said railways and the council may at any time after the expiration of 28 days from the submission of the said plans and sections to the Company carry out such alterations or substituted works subject to any modifications thereof which may have been previously suggested by the Company and agreed to by the council;

(c) All additional costs and expenses which the council reasonably and necessarily incur in connection with any such alteration of the said sewerage scheme whether in the preparation of plans and

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sections or in obtaining the approval of the Local Government Board in the carrying out of such alterations or substituted works or in the acquisition of easements shall be paid to the council by the Company. Provided that any difference between the Company and the council as to the amount of such additional costs and expenses or the extent to which such altered or substituted works as aforesaid are necessary by reason of the said lands being acquired by the Company for the construction of the said railways shall unless otherwise agreed be determined by an arbitrator to be appointed as hereinafter mentioned. Provided always that in determining the amount of such additional costs and expenses allowance shall be made for any costs and expenses incurred by the council in constructing such works in a more costly manner or position than is rendered necessary by reason of the acquisition by the Company of the said lands for the purpose of the said railways:

- (8) The council shall at any time be entitled at their own expense and without payment to the Company (A) to carry their sewers in connection with the said sewerage scheme across and under the South Wales Railway of the Company at or (if the Company so require) near the point where the Afon Dulais and the stream 47·5 chains or thereabouts to the west thereof are respectively carried under such railway and (B) to carry a sewer or sewers across or under the said Railways Nos. 1 and 2 within the district of the council at such points not exceeding four in number as may be agreed upon between the council and the Company or as failing agreement may be determined by arbitration as hereinafter provided. Provided always that such sewers shall be constructed and subsequently maintained in a manner to be reasonably approved by the Company and so as not to affect the stability of their railway or interfere with the traffic thereon and the council shall provide a culvert or other such protective works over the sewer to be laid under and adjoining the said South Wales Railway at or near the said stream as will enable the Company to construct

and maintain Railway No. 2 by this Act authorised thereon and thereover: A.D. 1914.

- (9) In constructing the said sewer or sewers on the property of the Company the council shall where necessary encase them in concrete to the reasonable satisfaction of the Company so as to protect such sewer or sewers and the Company shall permit the council to have access to any such sewer or sewers to enable the council at all reasonable times to inspect maintain or renew the same:
- (10) Any difference which may arise between the council and the Company under this section shall be referred to and determined by an engineer or other fit person to be appointed (unless otherwise agreed) upon the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

22. For the protection of Dame Catharine Meriel Howard the wife of Edward Stafford Howard Knight Commander of the Bath or other the owner or owners for the time being of the Stepney Estate situate in the parish of Llanelly Rural and in the borough of Llanelly in the county of Carmarthen (in this section called "the owner") the following provisions shall unless otherwise agreed between the owner and the Company have effect (that is to say):—

For protec-
tion of Lady
Howard.

- (1) The bridge to carry Railway No. 1 over the River Lliedi at Felinfoel shall be constructed with a single span of not less than 25 feet and so as to afford a clear headway throughout over such river of 5 feet measured from the bed thereof:
- (2) The Company shall carry the road known as Corporation Avenue and numbered on the deposited plans 49 in the borough of Llanelly over the said railway by means of a bridge having a clear width between the parapets of not less than 36 feet The said bridge shall be constructed of sufficient strength to render it unnecessary for the Company to impose any restriction under the Locomotive Act 1861 and the Motor Car Acts 1896 and 1903 as to the weight of vehicles passing thereover and with close parapet screens of

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not less than 4 feet 6 inches in height above the surface of the roadway or footpath and the Company shall provide a footpath similar to the existing footpath. If at any time hereafter the owner desires to provide other footpaths over the said bridge the Company shall give to the owner all facilities which may be reasonably required in connection therewith. The Company shall not affix or exhibit or permit to be affixed or exhibited upon any part of such bridge or parapet screens any placard or advertisement except such as relates to the business of the Company and if any such placard or advertisement be so affixed or exhibited by the Company the owner may cause the same to be removed at the cost of the Company:

- (3) The Company shall carry the footpath which passes through the field or enclosure numbered on the said plans 85 in the parish of Llanelly Rural over the said railway by means of a footbridge of a width of 4 feet between the parapets thereof. Provided that if the said footpath can be conveniently diverted to the reasonable satisfaction of the Llanelly Rural District Council the Company shall be entitled to divert the same accordingly:
- (4) The owner may at any time construct and maintain across or under the said railway on or adjoining the footpath or diverted footpath referred to in the last preceding subsection a sewer or drain not exceeding 9 inches in internal diameter and the Company shall afford to the owner all reasonable facilities for the purpose of the construction maintenance examination renewal or repair of such sewer or drain provided that the owner shall not endanger the stability of the Company's railway and works or interfere with or obstruct the traffic thereon and that such sewer or drain shall be constructed in accordance with plans sections and particulars to be previously approved by the engineer of the Company and under his superintendence and to his reasonable satisfaction and the Company shall if they so require have the right to connect with such sewer or drain any sewer or drain belonging to them:

- (5) If any difference shall arise between the owner and the Company with reference to the provisions of this section or in any way thereunder or as to any works to be carried out in pursuance thereof such difference shall be settled by arbitration by an engineer appointed (unless otherwise agreed) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference. A.D. 1914.

23. For the protection of Henry Morton Glyn Evans and his sequels in estate and of the trustees of the will of the late David Evans and their successors or other the owner or owners for the time being of the Llangennech Park Estate (all of whom are hereinafter in this section referred to as and included in the expression "the owners") the following provisions shall unless otherwise agreed between the owners and the Company have effect (that is to say):— For protection of Henry Morton Glyn Evans.

- (1) In this section the expression "the signed plan" means the plan signed in duplicate by William Wylie Grierson on behalf of the Company and Martin Rees Richards on behalf of the owners the expression "the railway" means the Railway No. 1 by this Act authorised and includes all works in connection therewith and the expression "the estate" means the Llangennech Park Estate of the owners in the parishes of Llangennech Llanelly Rural Llanedy and Llanon and includes any other lands now held with that estate:

- (2) Notwithstanding anything in this Act or shown on the deposited plans the Company shall not acquire any part of or construct any portion of the railway on the lands of the owners hereinafter mentioned (that is to say):—

(A) The lands lying northwards of the dotted red line between the points marked A and B respectively on the signed plan;

(B) The lands lying northwards of the dotted red line between the points marked F and G respectively on the signed plan;

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(c) The lands lying between the dotted red line on the signed plan and marked HJ and the southern limit of deviation;

(d) The lands lying between the dotted red line on the signed plan and marked MN and the northern limit of deviation:

- (3) If the Company shall acquire any portion of the road leading from the road numbered on the deposited plans 7 in the parish of Llangennech to the Penprys Colliery they shall divert the same on the lands of the owners along the northern boundary of the Company's property:
- (4) If the Company shall acquire any portion of the enclosure numbered on the deposited plans 67 in the said parish they shall to the reasonable satisfaction of the owners provide on the lands of the owners and/or the company an access 40 feet in width between Mwrwg Road and the portion of the said enclosure not so acquired and shall make upon such access a roadway similar in character to the existing roadway on the said enclosure:
- (5) The owners shall be at liberty at their own expense at any time on giving the Company not less than three months' notice in writing of such their intention to construct and thereafter maintain over the railway at or near the point marked C on the signed plan a bridge of a width not exceeding 20 feet between the parapets and to carry over the railway by means of such bridge a railway or tramway to be used solely for the purposes of the estate and for the conveyance of minerals worked in conjunction with the minerals on the estate with all reasonably necessary works and conveniences and the Company shall grant to the owners free of cost the necessary easements for the purpose of constructing and maintaining such bridge and for constructing maintaining and working such railway tramway works and conveniences Such bridge shall be constructed with such span and headway and at such times as the engineer of the Company may reasonably require and under his superintendence if given and to his reasonable satisfaction and in accordance with such terms and

conditions as may be agreed or settled by arbitration as hereinafter provided which shall include provisions that the owners shall repay to the Company any additional expense to which the Company may be put in widening their railway by reason of the existence of such bridge and that the owners shall be at liberty from time to time to remove and to re-erect the bridge :

- (6) The Company shall to the reasonable satisfaction of the owners and for the use of the owners their lessees and tenants provide in the enclosure numbered on the deposited plans 32 in the parish of Llangennech reasonable access by means of level crossings across the railway at or near the point marked D on the signed plan and across the site of the old tramway numbered on the deposited plans 30 in the said parish and shall to the like satisfaction make up an occupation road commencing on the site of the said old tramway and on the southern side of the railway and passing over the said level crossings into the enclosure numbered 21 on the said plans Such road shall be of a width of not less than 12 feet and shall have gradients not steeper than 1 in 16 and a post and rail or post and wire fence on either side thereof of a height of not less than 4 feet above the surface of the roadway :
- (7) The Company shall provide and thereafter maintain an accommodation bridge over the railway at or near the point marked E on the signed plan of a width of not less than 15 feet between the parapets with approaches on either side of a like width with gradients not steeper than 1 in 16 and with suitable parapets and fences on each side of such bridge and approaches of a height of not less than 4 feet above the surface of the roadway and shall form and construct a suitable accommodation roadway over such bridge and approaches and shall permit the owners their lessees and tenants without payment therefor at all times to use such roadway :
- (8) The Company shall carry the railway over the owners' private railway situate in the enclosures numbered on the deposited plans 73 and 30 in the said parish of

A.D. 1914.

Llangennech by means of a bridge of a clear span of not less than 36 feet and with a clear headway throughout of not less than 13 feet 6 inches above the present level of the said private railway and shall make and maintain adjoining the north-eastern side of the said bridge a subway under the railway with a clear span between the piers or abutments thereof of not less than 25 feet and with a clear headway throughout above the level of the ground of not less than 15 feet and the superstructure of the said subway shall be so constructed as to prevent as far as is reasonably practicable the dripping of water therefrom on to the ground beneath. The owners shall have the right of constructing maintaining and using for all purposes under such bridge and across the property of the Company on either side thereof three lines of rails and of constructing through such subway and across the said property a road for the use of the public or the estate of a width not exceeding 25 feet under the subway and 40 feet across such property but if the railway is constructed in the first instance with two lines of railway the Company shall have the right at any time of extending the said subway with the same span and headway for the purpose of laying down thereover two additional lines of railway but so as not to prejudicially affect the adjoining collieries of the owners:

- (9) (i) The Company shall make and thereafter maintain culverts under the railway as hereinafter mentioned (that is to say):—

(A) A culvert of not less than 4 feet internal diameter at or near the point marked K on the signed plan in place of the existing culvert near that point and a culvert of not less than 4 feet internal diameter to accommodate the existing line of pipes at or near the point marked L on the signed plan. Provided that if the levels permit the Company shall be at liberty to provide one culvert at the said point L of not less than 5 feet internal diameter in lieu of the two aforesaid culverts and

the Company shall divert the watercourse at the said point K through that culvert; A.D. 1914.

(B) A culvert of not less than 4 feet internal diameter to accommodate a conduit at or near the point marked O on the signed plan;

(c) A culvert of not less than 3 feet internal diameter at or near the point marked P on the signed plan and the Company shall also (if the owners shall before the construction of the culverts at the said points O and P shall have been commenced request the Company so to do and provide the necessary materials) lay down in the structure of or under each or either of such culverts a sewer of such diameter not exceeding 12 inches as the owners may reasonably require:

(ii) The owners shall be entitled free of charge to use the aforesaid culverts for the purposes of conveying water and at all reasonable times to inspect repair maintain and renew so much of any such line of pipes or conduit as will be situate in the said culverts and to use the said sewers for the purpose of sewage and drainage and at all reasonable times to clean the same. Provided that in the exercise of the powers of this subsection the owners shall not damage the structure of the railway or interfere with the traffic thereon or with the flow of water through such culverts:

(10) (A) The owners shall also be entitled so far as circumstances will permit and without payment to the Company to construct lay down place maintain and use all such drains conduits water gas and other pipes electric telephonic and other wires and cables and other conveniences as they may reasonably require so to do across the railway and property of the Company by means of the bridges subways roads and culverts which under the provisions of this section the Company are required to provide or by means of the bridges which under the provisions of this section the owners are entitled to construct;

(B) The owners shall also be entitled without payment to the Company to carry sewers over the railway by

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means of the bridge and approaches to be constructed by the Company under the provisions of subsection (7) of this section. Provided that such sewers shall be laid at the option of the Company under the surface of the roadway or supported by receptacles to be provided and attached by the Company at the expense of the owners to the structure of the bridge ;

(c) All such drains conduits pipes wires cables conveniences and sewers shall be constructed laid down placed and maintained without damaging the structure of or interfering with the working of the railway or the flow of water through the said culverts and under the superintendence and to the reasonable satisfaction of the Company's engineer and in such positions as he shall reasonably require and the owners shall repay to the Company any additional cost to which the Company may be put in maintaining or reconstructing any of the said bridges subways roads and culverts by reason of the exercise by the owners of the powers of this section :

(11) The Company shall not stop up the footpath crossing the property numbered on the deposited plans 114 and 115 in the parish of Llangennech but shall divert the same to the reasonable satisfaction of the owners so as to afford access from Llangennech Park to the northernmost corner of Park Lane :

(12) The Company shall construct the bridge for carrying the railway over the Afon Morlais with a clear span of not less than 20 feet and if an arch with a headway at the springing thereof of not less than 19 feet and if a girder bridge with a clear headway of not less than 20 feet above the bed of the said stream and the Company shall grant to the owners free of cost an easement or right of erecting over the said stream and under the said bridge another bridge and of constructing working and using over such last-mentioned bridge a railway or tramway or roadway and other works and conveniences in connection therewith for the purposes of the estate and the conveyance of minerals worked in conjunction with the

minerals on the estate and it shall be lawful for the owners to support such bridge from or by means of the said bridge for carrying the railway over the Afon Morlais but any works to be constructed by the owners under this subsection shall be so constructed and maintained by the owners as not to prejudicially affect the railway and works of the Company and according to such drawings and specifications as shall be previously agreed between the Company and the owners or failing agreement be settled by an arbitrator to be appointed as hereinafter provided Such bridge shall be constructed and maintained by the owners under the superintendence (if given) and to the reasonable satisfaction of the engineer of the Company and with such span and headway as he may reasonably require and in accordance with such terms and conditions as may be agreed or settled by arbitration as hereinafter provided which shall include provisions that the owners shall repay to the Company any additional expense to which they may be put in widening their railway by reason of the existence of such bridge and that the owners shall be at liberty from time to time to remove and to re-erect the bridge :

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- (13) The works to be constructed by the Company under the provisions of subsections (7) (8) and (9) of this section shall be constructed to the reasonable satisfaction of the owners and in accordance with plans and sections showing the lines and levels of such works to be first submitted to and reasonably approved by them and failing approval within 28 days after such submission in accordance with plans and sections to be settled by arbitration as hereinafter provided :
- (14) Before commencing any works on the estate between the roads respectively numbered 95 and 124 in the parish of Llangennech the Company shall to the reasonable satisfaction of the owners fence off the lands acquired by them between such roads from the remainder of the estate with a post and wire fence :
- (15) The Company shall lay down and sow with grass seeds all the slopes of the embankments of the railway between

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the road numbered on the deposited plans 95 in the parish of Llangennech and the western boundary of the enclosure numbered 135 in that parish and no advertisements advertising boards or posters shall be placed on any premises of the Company acquired under the powers of this Act between the said limits except such as relate to the business of the Company :

(16) The owners may at their own expense from time to time enter upon and plant with such shrubs as they may select such portion of the slopes of any embankment constructed or made on any portion of the estate for the purpose of the railway between the limits mentioned in the last preceding subsection and may from time to time enter upon such embankments under the reasonable supervision of the engineer of the Company to cut trim thin out and carry away any shrubs but so that in so doing nothing shall be done to impede the working of the railway or to injure the stability thereof :

(17) Subject to such terms and conditions as are fair and reasonable it shall be lawful for the owners to form at their own expense for the purposes of traffic passing to and from the railway two junctions between any mineral railways tramways or sidings of the owners and the railway or the branch line or siding hereinafter mentioned (that is to say) :—

(A) A junction with any branch line or siding which may be constructed by the Company in connection with the railway on the site of the old Mwrwg Tramway in the direction of the disused Mwrwg Vale Colliery or if such a junction would be unreasonable then if reasonably practicable with the railway between the points marked on the deposited plans 4 miles 2 furlongs and 4 miles 3 furlongs from the commencement of the railway ; and

(B) If reasonably practicable a junction with the railway between Park Lane and the point marked on the deposited plans 5 miles 4 furlongs from the commencement of the railway :

(18) If the Company desire to resell any portion of the lands or property acquired from the owners or their predecessors in title under the Great Western Railway Act 1900 the owners shall be entitled to a right of pre-emption and to re-purchase such lands and property at the same price as that paid to the owners or their predecessors in title by the Company for such land: A.D. 1914.

(19) If any difference shall arise under this section between the Company and the owners such difference shall unless otherwise agreed be referred to and settled by an arbitrator who failing agreement shall be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference:

(20) Nothing in this section shall prejudice abridge lessen or defeat the right of the owners to full compensation under the Lands Clauses Acts for land acquired from them under the powers of this Act or for the severance or the consequential damage to or the injurious affecting of other lands of the owners or their right to any accommodation works to which they are entitled under the provisions of this Act or the Acts incorporated therewith Provided always that in determining the compensation to be paid to the owners as aforesaid or the accommodation works to which they may be entitled regard shall be had to the provisions of this section and the works to be constructed by the Company thereunder.

24. For the protection of Mrs. Ella Augusta Roderick her heirs executors administrators and assigns (all of whom are in this section included in the expression "the owner") the following provisions shall unless otherwise agreed between the owner and the Company apply and have effect (that is to say):— For protection of Mrs. Ella Augusta Roderick.

(1) Before the Company commence the construction of Railway No. 2 by this Act authorised through the property numbered on the deposited plans 3 in the parish of Burry Port Urban they shall give to the owner not less than one month's notice in writing

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of their intention to commence the same and if within one month after the receipt of such notice the owner by notice in writing requires the Company so to do they shall make for the accommodation of the owner as part of the works which they may be required to make under the provisions of section 68 of the Railways Clauses Consolidation Act 1845 a culvert under the said railway and under the existing South Wales Railway of the Company for the purpose of conveying waters from the lands of the owner on the north side of the said Railway No. 2 into the pill or stream on the south side of the said existing railway and upon the completion of the said culvert the owner shall repay to the Company the cost of its construction other than the portion thereof attributable to the construction of the said Railway No. 2:

- (2) Such culvert shall be constructed at such point and of such dimensions and shall contain such a tidal flap for the purpose of preventing the tide flowing through the culvert from the sea on to the lands of the owner on the north side of the railway as shall be agreed between the Company and the owner or failing agreement as shall be determined by an arbitrator appointed as hereinafter provided:
- (3) If any difference shall arise between the Company and the owner under this section such difference shall be referred to and settled by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either of them after notice to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of Evan Thomas and others.

25.—(1) When constructing the Railway No. 1 by this Act authorised between points 2 miles 7·5 furlongs and 3 miles 1·5 furlongs from the commencement of the railway as shown on the deposited plans the Company shall unless otherwise agreed between the Company and Evan Thomas Senior and Evan Thomas Junior both of Westfa Llanelly in the county of Carmarthen or the survivor of them and the heirs executors

administrators and assigns of such survivor (hereinafter called "the owners") and the owners of the property adjoining the eastern side of the property of the owners (hereinafter referred to as "the adjoining owners") provide a bridge across the railway in a position to be determined as hereinafter mentioned. Such bridge to be constructed either over or under the railway as the Company may determine.

A.D. 1914.

(2) If such bridge be constructed over the railway the Company shall construct the same and the approaches thereto with a clear width between the parapets and fences of not less than 15 feet and with gradients on the approaches not steeper than 1 in 12 and with suitable fences and parapets of not less than 4 feet 6 inches in height on each side of the approaches and bridge. If such bridge be constructed under the railway the Company shall construct the same with a clear width between the abutments of not less than 15 feet and a clear headway throughout of not less than 12 feet and the Company shall also provide approaches to such bridge of a clear width between the fences of not less than 15 feet and with gradients not steeper than 1 in 12 and with suitable fences on both sides of such approaches.

(3) The said bridge shall be constructed in such position between the points aforesaid as may be agreed between the Company and the owners and the adjoining owners or in the event of any dispute between the Company and the owners and the adjoining owners then in such position as shall be settled by arbitration as hereinafter provided.

(4) The Company shall also form and construct a roadway suitable for the purposes of an accommodation road upon or under the said bridge as the case may be and upon the approaches thereto and the owners and the adjoining owners and their respective heirs executors administrators and assigns and lessees and tenants shall be entitled to access for all purposes connected with their estates across the railway by means of such roadway but the Company may divert over the said roadway any public footpath or bridle way.

(5) If any difference shall arise under this section between the Company the owners and the adjoining owners or any of them such difference shall be referred to and settled by an arbitrator who failing agreement shall be appointed by the President of the Institution of Civil Engineers and subject as

A.D. 1914. aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of Charles William Mansel Lewis.

26. For the protection of Charles William Mansel Lewis his heirs executors administrators and assigns or other the owner or owners for the time being of the Stradey Castle Estate (all of whom are in this section included in the expression "the owner") the following provisions shall unless otherwise agreed between the owner and the Company have effect (that is to say):—

(1) In constructing Railway No. 1 by this Act authorised the Company shall at their own expense construct and make and shall thereafter maintain the following works and conveniences (that is to say):—

(A) At or near a point 2 furlongs 4 chains measured from the commencement of the said railway a level crossing over the said railway to connect with the existing level crossing at or near the point known as No. 2 Slip on the Company's main line and the roadway between the said crossings shall be made up with an uniform gradient and the owner shall be entitled to the same rights of user over the new as over the existing level crossing;

(B) At or near a point 4 furlongs 2 chains measured as aforesaid and on the south side of the Burry Port and Gwendraeth Valley Railway a bridge under the said railway not less than 15 feet in width and 14 feet in height for the use of the owner and in connection with his estate and to accommodate a private railway proposed to be laid by him from his existing private railway on the east side of the Old Castle Marsh to his lands on the west side of the said Old Castle Marsh;

(c) At or near a point 6 furlongs measured as aforesaid a bridge not less than 35 feet in width and 14 feet in height to carry the said railway over the road leading from Stradey Castle to Pembrey Road;

(D) At or near a point 1 mile measured as aforesaid an underbridge not less than 35 feet in width and 14 feet in height;

(E) At or near a point 1 mile 2 furlongs 3 chains measured as aforesaid a footbridge 4 feet in width to carry the footpath numbered on the said plans 32 in the parish of Llanelly Rural and leading from the new county council school to the main road from Kidwelly to Llanelly :

(2) The underbridges to be constructed by the Company under the provisions of the immediately preceding subsection shall be constructed with approaches having gradients not steeper than 1 in 16 and the Company may lower the surface of the ground under the said bridges to such extent as may be necessary to obtain the said headway and shall provide such drainage as may be reasonably necessary to prevent water lodging under such bridges :

(3) In the event of the owner intending to re-open and work the Castle Colliery at Furnace the Company shall at their own expense at or near the Castle Colliery at such respective points as the owner may reasonably approve and upon one month's notice in writing from the owner to the Company construct and thereafter maintain the following works and conveniences (that is to say) :—

(i) A bridge not less than 12 feet in width for the purpose of carrying the minerals from the said colliery over Railway No. 1 such bridge to extend to a point 5 feet or thereabouts south of the southernmost rail of the said railway as constructed together with an approach between the northernmost end of the said bridge and the entrance to the heading known as the Cille Level the said bridge to be situate at such distance to the westward of the said heading as will enable a gradient not steeper than 1 in 11 to be provided on the tramway to give communication between the said heading and the said bridge and the said approach shall be made in a line as nearly as may be parallel to the said Railway No. 1 ;

(ii) A bridge under Railway No. 1 not less than 7 feet in width and 7 feet in height to be constructed approximately in line with the said heading and the Company may divert the stream flowing

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from the Cille Level and the owner's adjacent existing lines of pipes through the said bridge but so as not to reduce the said headway of 7 feet:

- (4) The works hereinbefore referred to shall be constructed to the reasonable satisfaction of the owner and in accordance with plans and sections to be first submitted to and reasonably approved by him and failing approval within 28 days after such submission in accordance with plans and sections to be settled by arbitration as hereinafter provided:
- (5) The Company shall not without the consent of the owner purchase any land of the owner between the points marked A and B respectively north of the red line upon the plan signed in duplicate by William Wylie Grierson on behalf of the Company and Charles Ronald Mansel Lewis on behalf of the owner:
- (6) The Company shall at their option either (1) purchase and the owner shall sell all the premises at Brickyard Furnace numbered 16 17 and 18 in the borough of Llanelly and 61 62 63 64 65 and 66 in the parish of Llanelly Rural on the deposited plans of the said Railway No. 1 and which are now subject to a lease granted by the owner to Evan John Wilkins or (2) carry the road numbered 64 as aforesaid over the said railway by means of a bridge 15 feet in width with a gradient at the north-western end not steeper than 1 in 16 and at the south-eastern end not steeper than 1 in 20 and with parapets of 4 feet 6 inches in height or (3) with the consent of all necessary land owners construct a new road on the south-eastern side of the Llanelly and Mynydd Mawr Railway so as to connect the road numbered 64 as aforesaid with the road known as Old Road such diverted road to be constructed to the reasonable satisfaction of the local authority and to be of such a width as that authority may reasonably approve:
- (7) The said railway where the same passes through the lands of the owner and all works in and upon such lands shall after the commencement of such works

be constructed with all reasonable despatch and before commencing any works on such lands the Company shall fence off the lands acquired by them from the remainder of the owner's lands with a concrete post and iron wire fence to the reasonable satisfaction of the owner: A.D. 1914.

- (8) The Company shall lay down and sow with grass seeds all the slopes of the embankments of the said railway where the same passes through the estate of the owner between the Pembrey Road and the footpath leading from the said county council school to the main road from Kidwelly to Llanelly where it crosses the said railway:
- (9) The owner may at his own expense from time to time enter upon and plant with such shrubs as he may select such portion of the slopes of any embankment constructed or made on any portion of the estate of the owner acquired by the Company for the purpose of the said railway between the points referred to in the last preceding subsection and may from time to time enter upon such embankments under the reasonable supervision of the engineer of the Company to cut trim thin out and carry away any shrubs but so that in so doing nothing shall be done to impede the working of the railway or to injure the stability thereof:
- (10) No advertisements advertising boards or posters shall be placed on any of the premises of the Company acquired under the powers of this Act between the point where the said railway crosses the Burry Port and Gwendraeth Valley Railway and the point where the footpath leading from the said county council school to the main road from Kidwelly to Llanelly crosses the said railway except such as relate to the business of the Company:
- (11) The Company shall not erect on any lands purchased from the owner any dwelling-houses between the point marked 2 furlongs on the deposited plans of the said railway and the point where the footpath leading from the said county council school to the main road from Kidwelly to Llanelly crosses the line of the said railway:

A.D. 1914.

(12) Subject to the conditions hereinafter contained the owner shall be entitled to all game and rabbits found upon any part of the lands purchased by the Company from the owner under the powers of this Act at any time after the construction of Railway No. 1 and upon any of the slopes and embankments thereof so far as the same traverse the estate of the owner and shall (but subject as aforesaid) have the exclusive right for himself and all persons duly authorised by him at all times of preserving the same with liberty (but subject as aforesaid) for himself and his servants and friends of sporting over the said lands and any part of the said railway constructed upon such lands but no firearms shall be discharged upon the lands of the Company and the owner shall not for the purposes of obtaining access to any of the said slopes and embankments do any damage to any fences erected by the Company. Provided always that the right of sporting and taking away game shall at all times be exercised and enjoyed upon the express condition that the owner shall be subject to all risks whatsoever incident to or consequent upon the exercise or enjoyment thereof and the Company shall not be liable to the owner or any person authorised by him for any accident or injury which may happen to him or them in the course of or in any way arising out of the exercise or enjoyment of such rights. Provided also that the owner shall at all times keep the Company effectually indemnified against all actions proceedings costs damages expenses claims and demands by any person or persons whomsoever arising out of the exercise by the owner or person or persons authorised by him or them of the said rights either of sporting taking away or preserving game. And if at any time the owner shall neglect or fail to keep the Company so indemnified as aforesaid the said rights shall immediately thereupon cease and determine. And the owner shall also upon the slopes of all embankments keep down the rabbits so as to prevent any unnecessary damage to the said slopes or embankments in default of which the Company shall have the right so as to prevent such injury to depute any person to take or trap the said rabbits:

(13) If any difference shall arise between the owner and the Company under the provisions of this section the same shall be determined under the provisions of the Arbitration Act 1889 by an arbitrator to be agreed on between the parties or in default of agreement to be appointed unless otherwise agreed on the application of either party by the President of the Institution of Civil Engineers : A.D. 1914.

(14) Nothing in this section shall prejudice abridge lessen or defeat the right of the owner to full compensation under the Lands Clauses Acts for land acquired from him under the powers of this Act or for the severance or the consequential damage to or the injurious affecting of other lands of the owner or his right to any accommodation works to which he is entitled under the provisions of this Act or the Acts incorporated therewith Provided always that in determining the compensation to be paid to the owner as aforesaid or the accommodation works to which he may be entitled regard shall be had to the provisions of this section and the works to be constructed by the Company thereunder.

27. For the protection of the Llanelly and District Electric Lighting and Traction Company Limited (hereinafter in this section called "the Llanelly Company") the following provisions shall unless otherwise agreed apply and have effect (that is to say) :—

For protection of Llanelly and District Electric Lighting and Traction Company Limited.

(1) In constructing Railway No. 1 by this Act authorised the Company shall not execute any works under or over or otherwise interfere with the light railways of the Llanelly Company situated in the roads numbered on the deposited plans for the said Railway 15 in the parish of Llanelly Rural and 33 in the parish and borough of Llanelly and 82A in the parish of Llanelly Rural until the Company shall have submitted to the Llanelly Company for their reasonable approval plans sections and descriptions of such intended works and if the Llanelly Company fail to signify their approval or disapproval thereof within twenty-one days after the delivery of the said plans sections and descriptions the same shall be taken to have been approved :

A.D. 1914.

- (2) In constructing the said railway and works the Company shall not interfere further than is reasonably necessary with the user of the said light railways or the traffic thereon or the works and apparatus connected with the said light railways or any electric lines of the Llanelly Company but the Company may and shall at their own expense if reasonably required by the Llanelly Company temporarily divert the said light railways and electric lines or put down a temporary substituted single line light railway with all necessary overhead equipment and works and the Company shall at their own expense restore and make good all damage caused to the light railways electric lines and other works of the Llanelly Company including the restoration of so much of any roadway maintained by the Llanelly Company as may be interfered with :
- (3) The bridge to carry the said Railway No. 1 over the road numbered on the deposited plans 15 in the parish of Llanelly Rural shall be constructed with a clear headway of at least sixteen feet six inches and the Company shall afford the Llanelly Company every reasonable facility for attaching in suitable positions the overhead wires of the existing light railways to such bridge Provided that the Company may temporarily remove the same whenever necessary for the maintenance reconstruction alteration or painting of the said bridge affording all necessary temporary support for such wires :
- (4) The Llanelly Company shall afford the Company all reasonable facilities for constructing the said railway and works :
- (5) The Company shall bear and on demand pay any reasonable expenses to which the Llanelly Company may be put through alterations including the provision of any protective works for securing the safety of the public to their light railways electric lines and other works necessitated by the construction or maintenance by the Company of the said railway and works :
- (6) The Company shall be responsible for and make good to the Llanelly Company all losses costs damages and expenses which may be occasioned to them or any of their works or property or the traffic on their

light railways or to any person using the same or otherwise during the construction or by reason of the failure of the said railway and works or of any act or omission of the Company or any persons in their employ or of their contractors or otherwise : A.D. 1914.

(7) None of the provisions of this Act shall in any way affect or curtail the powers and rights of the Llanelly Company under the Llanelly Electric Lighting Orders 1891 and 1912 to lay down alter repair maintain and use electric cables pipes and other apparatus in along across or over any of the roadways under over or across which the Company are by this Act empowered to construct and maintain railways or other works and the Llanelly Company may for the purposes of and subject to the provisions of the hereinbefore mentioned Orders break up the roadways on any bridges over the said railway and the approaches thereto and the roadways under any bridges carrying the said railway over the same :

(8) If any difference arises under this section between the Company and the Llanelly Company as to the true intent and meaning thereof or the mode of giving effect thereto the same shall be from time to time determined by an engineer to be appointed (unless otherwise agreed) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply thereto.

28. Notwithstanding anything to the contrary shown upon the deposited plans and sections or in this Act contained the following provisions for the protection and benefit of the Neath Rural District Council (in this section called "the council") shall unless otherwise agreed in writing between the Company and the council apply and have effect (that is to say):— For protection of Neath Rural District Council.

(1) The road at Clyne Halt numbered on the deposited plans 8 in the parish of Clyne shall be carried over Railway No. 9 by means of a bridge of a width of not less than 30 feet between the parapet walls the gradient of the existing road not being altered :

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- (2) The bridge for carrying Railway No. 9 over the River Neath at a point about 7 furlongs from the commencement of that railway shall be constructed with two spans of the same measurement on the square as the spans of the existing bridge carrying the road over the river at Resolven the piers and abutments to run parallel with the flow of the river and the headway of the bridge to be 12 feet above the bed of the river :
- (3) The Company shall construct the bridge for carrying Railway No. 9 over the River Neath at a point about 2 miles 3 furlongs from the commencement of that railway of two spans of the same measurement on the square as the spans of the existing bridge carrying the road over the river at Resolven the piers and abutments to run parallel with the flow of the river and the headway of the bridge to be 12 feet above the bed of the river :
- (4) The bridge to carry Railway No. 9 over the Clydach Brook shall have a span of 25 feet on the square and a headway of 5 feet above the bed of the brook :
- (5) In constructing the bridge to carry Railway No. 9 over the River Neath at a point about 3 miles 3 chains from the commencement of that railway the Company shall provide two spans of the same measurement on the square as the spans of the existing bridge carrying the road over the river at Resolven the piers and abutments to run parallel with the flow of the river and the headway of the bridge to be 12 feet above the bed of the river :
- (6) In carrying Railway No. 10 across or over the road numbered on the deposited plans 17 in the parish of Blaengwrach the Company shall provide a level crossing with field gates The approaches thereto to be properly fenced on both sides :
- (7) In constructing the bridge for carrying Railway No. 10 over the River Neath at a point about 3 furlongs 5 chains from the commencement of that railway the Company shall provide two spans of the same measurement on the square as the spans of the existing bridge carrying the road over the river at

Resolven the piers and abutments to run parallel with the flow of the river and the headway of the bridge to be 12 feet above the bed of the river: A.D. 1914.
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- (8) Railway No. 10 shall be carried over Addoldy Road numbered on the deposited plans 58 in the parish of Neath Higher by a bridge of not less than 25 feet in width between the abutments thereof and with a headway of not less than 12 feet and the Company may lower the said road under the said bridge to an extent not exceeding 2 feet:
- (9) In the event of the Company requiring in the construction of Railway No. 10 to interfere with the Gellyceibren Road numbered on the deposited plans 84 in the parish of Neath Higher the Company shall alter or divert such road to the reasonable satisfaction of the council:
- (10) All such works shall be carried out to the reasonable satisfaction of the council and be constructed according to plans and sections to be previously submitted to and reasonably approved by them:
- (11) Wherever Railway No. 9 authorised by this Act (including any works or conveniences connected with that railway) is proposed to be constructed over any sewer or work connected therewith belonging to the council the Company shall construct and maintain to the reasonable satisfaction of the council and under their superintendence (if given) a good and sufficient brick culvert or other arch over such sewer or work for protecting the same from injury and such culvert or arch shall be constructed of a size sufficient to allow the engineer or other officer of the council to have free access to the said sewer and work at all points for the purpose of inspecting repairing renewing altering enlarging or cleansing the same:
- (12) The said culvert or arch shall be provided with suitable means of access thereto and the council shall at all times be entitled to free access over or through the lands or property of the Company to such culvert or arch and to the sewers and works therein:
- (13) The Company shall not break up or interfere with any street or road in the district of the council nor shall

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they construct any work over or alter or affect any sewer drain or any gas water or electricity main pipe or cable or other apparatus belonging to the council until they shall have given to the council twenty-one days' notice in writing of their intention so to do and such notice shall be accompanied by plans sections and necessary particulars showing the work proposed to be executed by the Company and such work shall only be executed in accordance with such plans sections and particulars as may be reasonably approved by the engineer to the council and shall be executed under his superintendence (if given) and to his reasonable satisfaction but at the cost in all things of the Company Provided always that if the engineer to the council shall not have signified his approval or disapproval of such plans and sections within twenty-one days he shall be deemed to have approved thereof:

- (14) If in the construction of the works authorised by this Act the Company require to remove alter or interfere with any electricity main or cable belonging to the council in such a way as in the opinion of the council to endanger the continuance of the supply of electricity through or by means of such main or cable the same shall be done and completed on one and the same Sunday between the hours of six in the morning and three in the afternoon :
- (15) If in the construction of the works authorised by this Act the Company require to remove alter or interfere with any sewer drain or gas or water main or pipe belonging to the council in such a way as (in the reasonable opinion of the council) to endanger the continuance of the passage of sewage or other matter through such sewer or drain or of the supply of gas or water (as the case may be) through or by means of such main or pipe the Company shall not except for the purpose of connecting the same with the substituted sewer drain main or pipe commence to remove alter or interfere with the same until a good and sufficient sewer drain main or pipe or other necessary works for continuing the passage of sewage or other matter or the supply of gas or water as

efficiently as the same was done by means of the sewer drain main or pipe proposed to be removed altered or interfered with shall at the expense of the Company have been first made and laid down by them in lieu thereof and be ready for use to the reasonable satisfaction of the council or their engineer: A.D. 1914.

- (16) The Company shall save the council harmless against all damage costs loss or expense which may be occasioned by any injury or impediment to any sewer or drain or other work connected therewith belonging to the council or to the supply of gas water or electricity by them by reason and during the construction of the works authorised by this Act or any of such works or any part thereof:
- (17) If it shall be necessary to construct any portion of the works authorised by this Act over any sewer drain gas water or electric main pipe or cable belonging to the council provision shall be made to the reasonable satisfaction of the engineer to the council for protecting such sewer drain gas water or electric main pipe or cable from injury and for affording reasonable access to any such sewer drain gas water or electric main pipe or cable for the purpose of examination alteration renewal or repair:
- (18) If by reason of the execution of any of the powers of this Act the council shall reasonably incur any cost in altering or removing any existing sewer drain gas water or electric main or apparatus the Company shall repay such cost to the council:
- (19) If any difference shall arise between the Company and the council in respect of any matters under this section such difference shall unless otherwise agreed be settled by arbitration the arbitrator to be appointed failing agreement on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

29. For the protection of the company of proprietors of the Neath Canal Navigation or other the owner or owners for the time being of the Neath Canal (all of whom are included in the expression "the canal company" when used in this section)

For protection of company of proprietors of Neath Canal Navigation.

A.D. 1914. — the following provisions shall unless otherwise agreed between the Company and the canal company apply and have effect notwithstanding anything contained in this Act or shown on the deposited plans (that is to say) :—

- (1) Except at the points of crossing by Railway No. 10 and the two proposed bridges at Ynysarwed and Resolven over the Neath Canal the Company shall not purchase or acquire any land within 30 feet of the water edge of the towing path of the canal:
- (2) The Company shall contemporaneously with the construction of Railway No. 9 at or near a point 1 mile 6 furlongs measured from the commencement of the said railway construct and for ever after maintain for the use of the canal company an occupation level crossing not less than 6 feet in width over the said railway and the canal company shall be at liberty at all times to use the said crossing with horses carts and other vehicles for the purpose of obtaining access to the canal feeder and the works in connection therewith :
- (3) Contemporaneously with the construction of Railway No. 9 the Company shall construct and for ever after maintain under the said railway a culvert not less than 4 feet in height and 3 feet 6 inches in width so as to provide for the free flow of water between the canal and the existing feeder at Ynysarwed The said culvert shall be constructed at a point and in a line to be reasonably approved by the canal company :
- (4) The new bridge to be constructed by the Company in the parish and borough of Neath in substitution for the existing bridge carrying the South Wales Railway of the Company over the Neath Canal shall be constructed with spans not less than those of the existing bridge and with a clear headway of not less than 14 feet above the canal water level :
- (5) The bridge to be constructed at Ynysarwed in the parish of Neath Lower over the road leading from Neath to Glyn Neath and over the Neath Canal shall where it crosses the Neath Canal be constructed with a clear span of not less than 36 feet 9 inches on the square

and with a clear headway of not less than 17 feet above the canal water level: A.D. 1914.

- (6) The bridge to be constructed near Resolven in the parish of Neath Higher over the said road leading from Neath to Glyn Neath and over the Neath Canal shall where it crosses the Neath Canal be constructed with a clear span of not less than 36 feet 9 inches on the square and with a clear headway of not less than 17 feet above the canal water level:
- (7) The bridge to be constructed in the parish of Neath Higher to carry Railway No. 10 by this Act authorised over the Neath Canal shall be constructed with a clear span of not less than 36 feet 9 inches on the square and with a clear headway of not less than 10 feet above the canal water level:
- (8) Each of the above-mentioned bridges shall be constructed with perpendicular walls parallel with the centre line of the Neath Canal which walls shall be carried down to a depth of at least 6 feet below the canal water level:
- (9) The said culvert and each of the said bridges shall be constructed according to plans and sections to be first submitted to the canal company for their reasonable approval and to the reasonable satisfaction of the engineer of the canal company:
- (10) In constructing and maintaining the said culvert and each of the said bridges over the Neath Canal the present line of the canal towing path shall be maintained and the Company shall not contract the present width of the towing path of the said canal nor alter the level thereof and shall interfere as little as possible with the water way and towing path of the canal. The traffic on the canal shall not at any time be stopped interrupted or interfered with in through or by the construction and maintenance of the said culvert and bridges and the Company shall pay for all damages and costs sustained by the canal company through their operations or those of their contractors or employees and shall indemnify the canal company against all claims both as to damages and costs in respect of any damage injury or acci-

A.D. 1914.

dent happening in or through the construction and maintenance of the said culvert and bridges The Company shall at all times at their own cost maintain the said culvert and bridges and all walls for the support thereof and shall keep the same in good substantial and complete repair and condition in all respects :

- (11) The Company shall not acquire any part of the property of the canal company other than property situate at a greater distance than 30 feet from the water edge of the towpath otherwise than by agreement with the canal company but they may purchase and take and the canal company may and shall grant an easement for the purpose of constructing maintaining and using the works by this Act authorised and the Company shall pay to the canal company for any such easement such sum as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Consolidation Act 1845 :
- (12) Nothing in this section shall prejudice abridge or defeat the rights of the canal company to compensation in respect of any lands acquired by the Company from them or of any damage or injury arising to them from or in consequence of the works of the Company :
- (13) Except as hereinbefore provided any difference which shall arise between the Company and the canal company under or in carrying out the foregoing provisions of this section shall be referred to and determined by an arbitrator to be appointed on the application of the Company or the canal company by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall subject as aforesaid apply to any such arbitration.

For protection of John Edwards Vaughan.

30. It shall be referred to an arbitrator to be appointed in manner provided by the Lands Clauses Consolidation Acts to decide what compensation if any shall be paid by the Company to Colonel John Edwards Vaughan of Rheola Neath in the county of Glamorgan his heirs executors administrators and assigns (hereinafter called "the owner") in respect of the loss of any moneys payable to the owner by the Ynisarwed Colliery

Company Limited under the Indenture dated the 24th day of April 1913 and made between the owner of the one part and the Ynisarwed Colliery Company of the other part sustained by reason of the construction of Railway No. 9 authorised by this Act and the Lands Clauses Acts shall apply to the ascertainment and recovery of any such compensation.

31. For the protection of Morgan Harris Whitting Mary Lock and Dorothy Price Lock and their sequels in estate (all of whom are hereinafter in this section referred to as "the owners") the following provisions shall unless otherwise agreed between the Company and the owners have effect (that is to say) :—

For protection of Morgan Harris Whitting Mary Lock and Dorothy Price Lock.

Notwithstanding anything in this Act contained or shown on the deposited plans and sections the Company shall not in constructing Railway No. 10 by this Act authorised between the points A and B shown on the plan signed in duplicate by William Wylie Grierson on behalf of the Company and Edward Williamson on behalf of the owners enter upon or acquire any of the lands of the owners south-east of the red line shown on the said plan.

32. The following provisions for the protection of the Western Valleys (Monmouthshire) Sewerage Board (in this section referred to as "the board") shall unless otherwise agreed between the Company and the board apply and have effect (that is to say) :—

For protection of Western Valleys (Monmouthshire) Sewerage Board.

- (1) Subject as hereinafter provided if in constructing the Deviation and Widening No. 1 or any diversion of the River Ebbw by this Act authorised the same is intended to cross and overlies any existing brick concrete or stoneware sewer of the board the Company shall either divert such sewer or substitute for the portion so crossed and overlaid a steel pipe of the same internal diameter founded on and surrounded by Portland cement concrete and such diversion or substitution shall be made according to plans and sections to be previously submitted to and reasonably approved by the engineer to the board and the work shall be carried out to the reasonable satisfaction in all respects of such engineer:

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- (2) Subject as hereinafter provided in constructing the widening by this Act authorised of the bridge which carries the Monmouthshire (Western Valleys) Railway of the Company over the River Ebbw near the Abercarn gasworks the Company shall submit to the board's engineer particulars of such works and the Company shall make such provisions for the protection of the board's sewer as shall be reasonably demanded by their engineer :
- (3) The Company shall take all reasonable precautions and do and maintain all such works as may be necessary for preventing as far as possible any injury to the works and property of the board and sewers connected thereto and shall also at all times make good all damage which may be occasioned by the operations or works of the Company to the reasonable requirements and satisfaction of the engineer of the board :
- (4) In constructing any of the works by this Act authorised the Company shall before interfering with any man-hole giving access to any sewer of the board give to the board fourteen days' notice in writing of their intention so to do and shall make proper alterations to such manhole and provide such substitute therefor as will give reasonable access to the said sewer :
- (5) If the Company their agents workmen or contractors shall in the execution of any works authorised by this Act hinder or interfere with or obstruct or render more difficult or costly the maintenance of any existing sewer or works of the board the Company shall on demand pay to the board such additional cost of maintenance as may be reasonably incurred in consequence thereof :
- (6) The Company shall at all reasonable times permit the board their officers agents servants workmen and contractors with or without material to have free and uninterrupted access to any part of the sewer and works connected therewith which lie within the boundaries or limits of the property of the Company :
- (7) The Company in carrying out the diversion strengthening substitution or reconstruction of the board's sewers shall take all possible precaution for preventing any

material interruption in the flow of sewage through such sewers and sewers connected thereto: A.D. 1914.

- (8) The Company shall pay on demand to the board the reasonable costs incurred by the board in watching and superintending the diversion strengthening substitution or reconstruction of the board's sewers by the Company and the execution of any works of the Company over under or adjacent to any sewer or works of the board:
- (9) If any difference shall arise between the Company and the board touching anything to be done or not to be done under the powers of this section such difference shall be settled by an arbitrator appointed (unless otherwise agreed) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889:
- (10) The provisions of this section shall not extend or apply to any sewer laid down by the board under over or along the property of the Company under the provisions of any agreement between the Company and the board but where any such sewer is diverted altered or in any way interfered with in the exercise of the powers of this Act the provisions of the agreement shall apply to such diversion alteration or interference.

33. For the protection of the Rhondda and Swansea Bay Railway Company (in this section called "the Rhondda Company") the following provisions shall unless otherwise agreed between the Company and the Rhondda Company have effect (that is to say):—

For protection of Rhondda and Swansea Bay Railway Company.

- (1) In this section the expression "the Port Talbot Company" means the Port Talbot Railway and Docks Company the expression "the Rhondda main line deviation works" means the Deviation and Widening No. 2 by this Act authorised of the Rhondda Company's main line and includes the deviations alterations and extensions of (A) the Port Talbot Company's Aberavon Branch Railway (B) the Port Talbot Company's Talbot Wharf Branch Railway and (c) the

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Rhondda Company's Port Talbot Dock Branch Railway and the alteration of the levels of (A) the Port Talbot Company's line connecting their Talbot Wharf Branch Railway with their railway leading to Copperworks Junction and (B) the Port Talbot Company's North Bank Goods Station Branch Railway and also includes all works in connection with such Deviation and Widening No. 2 and such deviations alterations and extensions and alterations of levels aforesaid and the expression "the Port Talbot loop works" means the Railway No. 8 by this Act authorised and includes all works in connection therewith:

- (2) The Company shall not commence the execution of the Rhondda main line deviation works or the Port Talbot loop works nor shall the Company enter upon or interfere with any of the railways works or lands of the Rhondda Company or execute any works whatever under over or affecting the same until the Company shall have delivered to the Rhondda Company plans sections drawings and particulars of the Rhondda main line deviation works and of the Port Talbot loop works and full particulars of the manner in which the same respectively are proposed to be executed and until such plans sections drawings and particulars shall have been approved of in writing by the engineer of the Rhondda Company or in the event of his failure for 28 days after delivery of the said plans sections drawings and particulars to approve or disapprove the same until the same shall have been approved by an arbitrator to be appointed as hereinafter provided:
- (3) The Rhondda main line deviation works and the Port Talbot loop works shall be executed by the Company according to the plans sections drawings and particulars so approved as aforesaid and to the reasonable satisfaction of the engineer of the Rhondda Company and under his superintendence if he elects to superintend the execution of such works:
- (4) During the execution of the Rhondda main line deviation works and of the Port Talbot loop works the Company shall make reasonable provision for the

conveyance and passage of traffic destined for or coming from or intended to pass over the portion of the Rhondda Company's system which lies between the commencement and termination of the Deviation and Widening No. 2 by this Act authorised and shall so execute the Rhondda main line deviation works and the Port Talbot loop works as not to interfere more than is reasonably necessary with the passage of traffic over the system of the Rhondda Company :

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- (5) Any alteration or removal of any telegraph or telephone posts or wires on or connected with any railways junctions or works of the Rhondda Company which it shall be necessary or expedient to alter or remove in consequence of the execution of the Rhondda main line deviation works and the Port Talbot loop works shall be altered and removed by the Company under the superintendence (if given) and to the reasonable satisfaction of the engineer of the Rhondda Company and any expenses incurred in altering or removing such posts or wires and restoring the same to their former or placing them in different positions or of substituting other telegraph telephone posts or wires therefor shall be deemed to be expenses incurred in executing the Rhondda main line deviation works and shall be borne and paid as hereinafter provided :
- (6) The Company shall not purchase or acquire any property of the Rhondda Company or any easement or right in over or in any way affecting such property except only that the Company may for the purpose of constructing the Rhondda main line deviation works and the Port Talbot loop works enter upon and use such of the property of the Rhondda Company as may be necessary for that purpose :
- (7) If in the opinion of the Rhondda Company or in the case of difference between the Rhondda Company and the Company in the opinion of an arbitrator to be appointed as hereinafter provided it shall be necessary for the Rhondda Company to purchase or pay compensation for any minerals required to be left

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unworked for the protection and safety of the Rhondda main line deviation works and such minerals would not have been required to be left unworked for the protection and safety of the works of the Rhondda Company if the Rhondda main line deviation works had not been constructed then the Company shall on demand pay to the Rhondda Company all reasonable costs and expenses incurred by the Rhondda Company in relation to any such purchase or payment of compensation :

(8) Any expenses incurred by the Company in executing the Rhondda main line deviation works and the Port Talbot loop works including any works in connection therewith required to be constructed by the Company under this Act and the cost of purchasing any lands or easements necessary for the execution of such works and including also any costs incurred by the Company under subsections (5) and (7) of this section (but excluding the expenses of the widening of the Rhondda main line and the works incidental to such widening which last-mentioned expenses shall be borne by the Rhondda Company and excluding the additional cost of constructing the bridge to carry the deviation of the Rhondda main line over the South Wales Railway of the Company of a width to enable that railway to be widened to four lines of rails which additional cost shall be borne by the Company) shall be deemed to be the expenses which under the provisions of section 42 of the Rhondda and Swansea Bay Railway Act 1882 are to be borne as to one-half by the Company and as to the other half by the Rhondda Company :

(9) If any dispute shall arise between the Rhondda Company and the Company respecting the matters and provisions aforesaid or any of them such dispute shall be settled by an arbitrator to be agreed upon between the parties or in case of difference to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889.

34. Nothing in this Act shall prejudice or annul any of the provisions of the deed of grant dated the 23rd day of September 1897 and made between the Rhondda and Swansea Bay Railway Company and the Port Talbot Railway and Docks Company nor increase to the Port Talbot Railway and Docks Company the cost of maintenance or impose upon that company any increased capital cost beyond what is expressly provided for in such deed of grant and the provisions of such deed of grant shall so far as applicable extend to the Aberavon Branch Railway of the Port Talbot Railway and Docks Company as deviated or altered under the powers of this Act and the junction between that branch railway as so deviated or altered and the main line of the Rhondda and Swansea Bay Railway Company as deviated and widened under this Act in like manner as nearly as may be as such provisions apply to the existing branch railway and junction between such existing branch railway and the existing main line of the Rhondda and Swansea Bay Railway Company.

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Preserving
rights of
Rhondda and
Swansea
Bay Railway
Company
under deed
of grant.

35. For the protection of the urban district council of Margam in the county of Glamorgan (in this section called "the council") the following provisions shall unless otherwise agreed in writing between the council and the Company apply and have effect (that is to say):—

For protec-
tion of Mar-
gam Urban
District
Council.

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans contemporaneously with the construction of Deviation and Widening No. 2 authorised by this Act the Company shall construct a new road fifteen feet in width wholly in the urban district of Margam on the south-eastern side of the River Avan commencing by a junction with Station Road numbered on the deposited plans 25 in the parish and urban district of Margam and terminating by a junction with the existing road leading to Talbot Wharf at the gate across that road adjacent to the south easternmost corner of the bridge carrying the Rhondda and Swansea Bay Railway over the River Avan at Burrows Junction. The gradients of the said new road shall not be steeper than 1 in 14 on the south-western side of the bridge carrying the same over the South Wales Railway of the Company and 1 in 20 on the north-eastern side thereof. Railway No. 8 may be carried over such road if constructed on the south-east side of Deviation and Widening

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No. 2 by means of a bridge with a headway of not less than 14 feet :

- (2) If the road is constructed on the south-eastern side of the said Deviation and Widening No. 2 there shall not be more than two level crossings over the said road over which the Company or the Rhondda and Swansea Bay Railway Company or the Port Talbot Railway and Docks Company may lay at any time such additional lines of rails as they may require or alter the position of the existing and additional lines of rails. The provisions of the Railways Clauses Act 1863 shall not apply to the said level crossings but such crossings shall be protected by gates and the Company shall be responsible for the opening and closing of such gates as and when necessary and for the proper lighting of such crossings :
- (3) The said road shall be constructed in all respects to the reasonable satisfaction of the council who shall afterwards maintain the same including the approaches and the road over the said bridge as a public highway repairable by the inhabitants at large :
- (4) So soon as the said Deviation and Widening No. 2 shall be completed and opened for traffic the Company shall take up and remove the existing lines of rails carrying the Rhondda and Swansea Bay Railway across the said Station Road numbered on the deposited plans 25 in the parish and urban district of Margam and the said level crossing over the said road shall be abolished :
- (5) The Company shall afford access from the said new road for traffic over the River Avan to the borough of Aberavon by means of the existing Canister footbridge or any bridge substituted therefor :
- (6) Notwithstanding anything shown on the deposited plans the Company shall not in the construction of Railway No. 7 enter upon take or use any part of the lands numbered on the deposited plans 21 in the parish and urban district of Margam coloured red on the plan signed by William Wylie Grierson on behalf of the Company and John Cox on behalf of the council :

(7) Notwithstanding anything shown on the deposited plans the Company shall not break up any street nor raise sink or alter the position of any sewer drain or watercourse or any electric mains or apparatus of the council until they shall have given to the clerk to the council seven clear days' notice in writing of their intention to commence the intended works accompanied by plans sections and other necessary particulars showing the works proposed to be executed by the Company so far as they affect the streets sewers drains watercourses and electric mains and apparatus proposed to be so interfered with : A.D. 1914.

(8) The Company in carrying out the works authorised by this Act or any works on lands to be acquired under the powers of this Act shall to the reasonable satisfaction of the council make good all damage which may be caused to or may be the consequence of any interference with any sewer drain or watercourse or to any electric main or apparatus of the council :

(9) Whenever in carrying out the said works it may be necessary to intercept or remove or displace or otherwise interfere with any sewer or drain the Company shall before intercepting removing displacing or interfering with such sewer or drain construct according to a plan to be reasonably approved of by the council another sewer or drain in lieu of and of equal capacity to the sewer or drain so proposed to be intercepted removed displaced or interfered with and such substituted sewer or drain shall be connected by the council at the expense of the Company with the existing sewer or drain :

(10) If it shall be necessary to construct any works on lands to be acquired under the powers of this Act over any sewer drain or electric main belonging to the council provision shall be made to the reasonable satisfaction of the council for protecting such sewer drain or electric main from injury and for affording convenient access thereto for the purpose of examination alteration renewal or repair :

(11) If by reason of any of the powers of this Act or the carrying out of any works on lands to be acquired under the powers of this Act the council shall

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necessarily incur any cost in altering or removing any existing sewer drain or electric main or apparatus the Company shall repay such reasonable cost to the council on demand :

- (12) Any difference which may arise between the council and the Company as to the true intent and meaning of any of the provisions of this section or as to the mode of giving effect thereto shall be settled by an engineer to be appointed (unless otherwise agreed) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply thereto.

For protec-
tion of Syd-
ney Hutchin-
son Byass.

36. The following provisions shall unless otherwise agreed in writing between the Company and Sydney Hutchinson Byass trading as Robt. B. Byass and Company of the Mansel Tin Plate Works Port Talbot in the county of Glamorgan his heirs executors administrators and assigns (all of whom are in this section referred to as "the owner") apply and have effect for the benefit and protection of the owner (that is to say):—

- (1) Notwithstanding anything shown on the deposited plans in constructing Deviation and Widening No. 2 and Railway No. 8 the Company shall before removing the existing connection situate at or near the commencement of the said railway between the Rhondda and Swansea Bay Railway and the said works of the owner provide for the use of the owner two sidings together capable of holding not less than 30 wagons between the southern side of the said works and the Port Talbot Railway and Docks Company's connecting line and make such arrangements with that company and the Rhondda and Swansea Bay Railway Company as will secure that the traffic of the owner which is now worked between the Rhondda and Swansea Bay Railway and the said works by means of the said existing connection shall thereafter be worked to and from the said sidings and over the portion of the Port Talbot Railway intervening between the said sidings and the Rhondda and Swansea Bay Railway and that the owner shall be entitled free of toll to any necessary access over the lines of the Port

Talbot Railway between the sidings of the owner and the said sidings to be provided by the Company : A.D. 1914.

- (2) The Company shall not in constructing Railway No. 8 or the Deviation and Widening No. 2 enter upon any lands of the owner on the southern side of the line coloured pink and between the points A and B marked on the plan signed by William Wylie Grierson on behalf of the Company and Sydney Hutchinson Byass on behalf of the owner except so far as may be necessary for the purpose of constructing the foundations of any retaining wall or piers the faces of which may be situate on the said line coloured pink and in constructing the foundation of such wall the Company shall not excavate nor shall such foundations extend to the south of the said line coloured pink for a greater distance than three feet and as soon as the Company commence to make any such excavation or to construct such foundations they shall proceed to complete such work with all reasonable dispatch and in any case within one year from the commencement :
- (3) In constructing the said railway deviation and widening and other works the Company shall not interfere with the existing sidings of the owner situate on the south of the said line coloured pink between the said points marked A and B and by which traffic is now conveyed to and from the works of the owner on to the railway of the Company so as to impede the working of the traffic to and from his said works over the said sidings :
- (4) The provisions of the agreements dated respectively the 5th day of April 1877 the 15th day of October 1896 and the 6th day of October 1911 between the Company and the owner or his predecessors relating to the connections between the said sidings and the railway of the Company shall apply to the construction by the Company of the portion of Railway No. 8 east of the point marked B on the said plan :
- (5) Subject to the provisions contained in the said agreements the Company shall not under any circumstances interfere in any way whatever with the existing running line round the works of the owner :

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- (6) In addition to any other compensation payable by the Company to the owner under this Act the Company shall pay to the owner the sum of one thousand four hundred pounds as compensation for the buildings now comprising the offices of the owner numbered 4 in the parish and urban district of Margam on the deposited plans of Railway No. 8 and such sum shall be paid as soon as the owner gives the Company possession of his said existing offices and upon the payment of the sum aforesaid the Company shall be entitled to take possession of and remove the existing offices and to dispose of the materials thereof. Provided that the Company shall not be entitled to enter upon take or use the said offices until the owner voluntarily vacates the same or until the expiration of three months after the service of notice in writing by the Company of their desire to enter thereon such notice not to be served by the Company before the 1st day of April 1915 :
- (7) If the new road to be constructed by the Company under the provisions of the section of this Act of which the marginal note is "For protection of Margam Urban District Council" is constructed on the east side of the Deviation and Widening No. 2 it shall be so constructed as not to deprive the owner of his existing access from his works at a point about 2 furlongs 8 chains from the commencement of the said Deviation and Widening No. 2 and if the said new road is constructed on the west side of the Deviation and Widening No. 2 the Company shall provide a subway under the said Deviation and Widening No. 2 to afford access from the works of the owner to the said new road. Such subway shall have a span of not less than 12 feet and a headway of not less than 12 feet and in the event of the said subway being formed by means of an arch the springing thereof shall not be less than 8 feet above the level of the road :
- (8) The Company shall afford access from the said new road for traffic from the works of the owner over the River Avan by means of the existing Canister footbridge or any bridge substituted therefor to the borough of Aberavon :

- (9) If any difference shall arise between the Company and the owner with reference to the provisions of this section such difference shall unless otherwise agreed in writing be determined by an arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889. A.D. 1914.

37. Notwithstanding anything in this Act contained or shown on the deposited plans the Company shall not enter upon take or use any greater portion of the properties on the north-western side of the River Avan shown on the deposited plans and described in the deposited books of reference relating to Deviation and Widening No. 2 by this Act authorised than may be necessary for the purposes of raising and strengthening the river wall in accordance with the provisions of the section of this Act the marginal note of which is "For protection of corporation of Aberavon."

For protection of owners of property on north-western side of River Avan Aberavon.

38. Subject to the provisions of this Act the Company may in the lines and according to the levels shown on the deposited plans and sections relating thereto respectively lay down and maintain adjoining the existing line of rails—

Power to lay additional rails at level crossings.

- (1) An additional line of rails at each of the level crossings hereinafter referred to (that is to say):—

(A) At the crossing known as Cwmdows level crossing by the Company's Pennar branch railway in the parish and urban district of Abercarn in the county of Monmouth of the road leading from Cwmdows to Ty-gwyn;

(B) At the crossing at the northern end of Tirydail station by the Company's Llanelly railway in the parish of Ammanford Urban and urban district of Ammanford in the county of Carmarthen of the road leading from Saron to Llandebie; and

- (2) Two additional lines of rails at each of the level crossings hereinafter referred to (that is to say):—

(c) At the crossing known as Pont-Sarn crossing by the Company's South Wales Railway in the parish of Peterstone-super-Ely in the rural district

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of Llandaff and Dinas Powis in the county of Glamorgan of the road leading from Clawdd-côch to Saint Brides-super-Ely;

(D) At the crossing known as Miskin level crossing by the said South Wales Railway in the parish of Pendoylan in the rural district of Llandaff and Dinas Powis and in the parish of Llantrisant in the rural district of Llantrisant and Llantwit Fardre in the county of Glamorgan of the road leading from Mwyndy to Pendoylan:

And the Company may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto respectively as may be required for these purposes.

Power to
make new
roads and
alterations
of roads foot-
paths &c.

39. Subject to the provisions of this Act the Company may make and execute in the lines and according to the levels shown upon the deposited plans and sections relating thereto the bridge and other works and the new roads and footpaths and alterations and diversions of roads and footpaths and other works hereinafter mentioned and may stop up and discontinue the portions of roads and footpaths to be stopped up or diverted and exercise the other powers hereinafter mentioned and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for those purposes or for providing accommodation for persons of the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company (that is to say):—

BRIDGE WORKS.

In the parish and urban district of Yiewsley in the county of Middlesex the lengthening at both ends of the bridge which carries the road leading from Cherry Lane to Colham Green over the main line of railway of the Company near the eastern end of the Hillingdon Varnish Works:

In the parish of Harlington in the rural district of Staines and in the parish and urban district of Hayes in the county of Middlesex the lengthening at the northern end of the bridge which carries Dawley Road over the said main line:

In the parish and urban district of Slough and in the parish of Langley Marish in the rural district of Eton in the county of Bucks the lengthening at the northern end of the bridge which carries the road leading from Slough to Middle Green over the said main line about 30 chains west of the next described bridge : A.D. 1914.

In the parish of Langley Marish in the rural district of Eton in the county of Bucks the lengthening at the northern end of the bridge which carries the road leading from Langley Marish to Middle Green over the said main line :

In the parish and city and county borough of Bristol in the county of Gloucester the lengthening at the western end of the bridge which carries Barrow Road over the Bristol and South Wales Union Railway and the Bristol loop line of the Company :

In the parish of Worle in the rural district of Axbridge in the county of Somerset the lengthening at both ends of the bridges known respectively as Moor Lane Bridge and Banwell Road Bridge which respectively carry Moor Lane and Summer Lane over the Bristol and Exeter Railway of the Company :

In the parish of Banwell in the rural district of Axbridge in the county of Somerset the lengthening at both ends of the bridge which carries Bristol Road over the said Bristol and Exeter Railway at a point about 24 chains south-west of Puxton Station :

In the parish and urban district of Weston-super-Mare in the county of Somerset the lengthening at both ends of the bridge which carries Uphill Drove Road over the Weston loop line of the Company at the eastern end of Weston-super-Mare Station :

In the parish of Willand in the rural district of Tiverton in the county of Devon the lengthening at both ends of the bridge which carries the road leading from Cul-lompton to Willand over the Bristol and Exeter Railway of the Company at a point about 97 chains north of Cullompton Station :

In the parish of Willand in the rural district of Tiverton in the county of Devon the lengthening at both ends

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of the bridge which carries the public road over the said Bristol and Exeter Railway at a point about 17 chains north of the last-mentioned bridge and in connection therewith to alter and divert the said road for a distance of about 5 chains from the western end of the said bridge :

In the parish of Willand in the rural district of Tiverton in the county of Devon the lengthening at both ends of the bridge which carries the public road over the said Bristol and Exeter Railway at a point about 29 chains south-west of Tiverton Junction Station :

In the parish of Exminster in the rural district of Saint Thomas in the county of Devon the lengthening at both ends of the bridge which carries the road leading from Topsham Ferry to Exminster over the South Devon Railway of the Company at the north-western end of Exminster Station :

In the parishes of Upper Swinford and Stourbridge in the urban district of Stourbridge in the county of Worcester the lengthening at both ends of the bridge which carries the road known as Hungary Hill. over the Stourbridge Extension Railway of the Company :

In the parish and urban district of Bilston in the county of Stafford the lengthening at the north-eastern end of the bridges which respectively carry Loxdale Street and Bradley Lane over the Birmingham Wolverhampton and Dudley Railway of the Company :

In the parish of Chirk in the rural district of Chirk in the county of Denbigh the lengthening at both ends of the bridge which carries the road leading from Chirk Castle to Chirk over the Shrewsbury and Chester Railway of the Company at the southern end of Chirk Station Provided always that the gradient of the eastern approach to such bridge shall not be made steeper than 1 in 23 :

In the parish and county borough of Newport in the county of Monmouth the lengthening at both ends of the bridge which carries Somerton Road over the South Wales Railway and the East Usk Branch Railway of the Company :

In the parish of Rogerstone in the rural district of St. Mellons in the county of Monmouth the lengthening at

the north-eastern end of the bridge which carries the road leading from Rogerstone to Bassaleg Station over the Monmouthshire (Western Valleys) Railway of the Company at a point about 16 chains north-west of Bassaleg Station :

In the parish and urban district of Abercarn and in the parish and urban district of Risca in the county of Monmouth the lengthening at the north-eastern end of the bridge which carries the road leading from Cil-fynydd to Jamesville over the Monmouthshire (Western Valleys) Railway of the Company and in connection therewith the Company may alter and divert so much of the said road as lies between the south-western end of the said bridge and the south-western end of the bridge known as Chapel Bridge carrying the said road over the River Ebbw :

In the parish of Llantrisant in the rural district of Llantrisant and Llantwit Fardre in the county of Glamorgan the lengthening at both ends of the bridge which carries the road leading from Welsh St. Donat's to Aberdare over the South Wales Railway of the Company at Miskin :

In the parish and urban district of Margam in the county of Glamorgan the lengthening at both ends of the bridge which carries the road leading from Margam Burrows to Port Talbot over the South Wales Railway of the Company near the mile post on that railway indicating $200\frac{3}{4}$ miles from Paddington Station :

In the parish of Kenfig in the rural district of Penybont in the county of Glamorgan the lengthening at both ends of the bridge which carries the road leading from Kenfig to Pyle over the South Wales Railway of the Company near the farm known as Marlas :

In the parish of Pyle in the rural district of Penybont in the county of Glamorgan the lengthening at both ends of the bridge which carries the road leading from Aberavon to Bridgend over the South Wales Railway of the Company at or near the western end of Pyle Station :

In the parish of Tythegston Higher in the rural district of Penybont in the county of Glamorgan the lengthening at both ends of the bridges which carry the roads respectively

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leading from Tythegston and Laleston to Kenfig Hill over the South Wales Railway of the Company at points respectively about 9 chains and 30 chains east of the bridge carrying that railway over the Llynvi Valley Branch Railway of the Company:

In the parish of Laleston in the rural district of Penybont in the county of Glamorgan the lengthening at both ends of the bridge which carries the road leading from Tondû to Laleston over the South Wales Railway of the Company near the farm known as Llangewydd:

In the parishes of Laleston and Newcastle Higher in the rural district of Penybont in the county of Glamorgan the lengthening at both ends of the bridge which carries the road leading from Merthyr-Mawr to Tondû over the South Wales Railway of the Company east of and near to Llangewydd Court:

In the parish and borough of Neath in the county of Glamorgan a new bridge in substitution for the existing bridge carrying the South Wales Railway of the Company over the Neath Canal at or near the site of the existing bridge:

In the parish of Neath Lower in the rural district of Neath in the county of Glamorgan a bridge over the road leading from Neath to Glyn Neath and over the Neath Canal commencing at a point on the north-western side of the said road about 16 chains south-west of the level crossing of that road by the colliery tramway connecting Lower Ynysarwed Colliery with the Ynysarwed Colliery screens and terminating at a point in or near the south-eastern boundary of the said canal about 4 chains south-west of the bridge carrying the road leading from the said road to Ynysarwed Farm over the said canal:

In the parish of Neath Higher in the rural district of Neath in the county of Glamorgan a bridge over the said road leading from Neath to Glyn Neath and the Neath Canal commencing at a point on the north-western side of that road about 1 chain south-west of the easternmost corner of the field or enclosure numbered 199 on the 25-inch ordnance map (2nd edition) 1899 of the parish of Neath Middle and terminating at a point about $\frac{1}{2}$ chain south-east of a point in the north-western

boundary of the field or enclosure numbered 203 on the said ordnance map of the said parish of Neath Middle about 1 chain from its northernmost corner : A.D. 1914.

In the parish of Ammanford Urban and urban district of Ammanford in the county of Carmarthen the lengthening at both ends of the bridge which carries Pen-y-banc Road over the Llanelly Railway of the Company at a point about 38 chains south of Tirydail Station :

In the parish and urban district of Yiewsley and in the parish of Harlington in the rural district of Staines in the county of Middlesex the widening on both sides of the bridge which carries the main line of railway of the Company over the branch of the Grand Junction Canal near the Vegox Food Factory :

In the parish of Norwood and urban district of Southall-Norwood in the county of Middlesex the widening on both sides of the bridge which carries the said main line over the Paddington branch of the Grand Junction Canal at the eastern end of the creosoting works of the Company :

In the parish and city and county borough of Bristol in the county of Somerset the widening on both sides of the bridge which carries the Bristol and Exeter Railway of the Company over the road connecting Hereford Street with Windmill Hill Road at the south-western end of Bedminster Station :

In the parish of Yatton in the rural district of Long Ashton in the county of Somerset the widening on both sides of the bridge which carries the Bristol and Exeter Railway of the Company over the River Yeo :

In the parish of Willand in the rural district of Tiverton in the county of Devon the widening on the north-western side of the bridge which carries the Bristol and Exeter Railway and Culm Valley Branch Railway of the Company over the road leading from Uffculme to Halberton at Tiverton Junction Station :

In the parish of Woolborough in the urban district of Newton Abbot in the county of Devon the widening on the south-western side of the bridge which carries the South Devon Railway of the Company over Keyberry Road :

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—

In the parish and county borough of Plymouth in the county of Devon the widening on both sides of (A) the bridge at the eastern end of Lipson Vale Halt which carries the South Devon Railway of the Company over the road connecting Alexandra Road with Ashford Road and (B) the bridge which carries the said railway over Old Laira Road :

In the parish and county borough of Plymouth in the county of Devon the widening on the north-western side of the bridge which carries the said South Devon Railway over the road known as Pennycomequick Hill at the south-western end of North Road Station :

In the parish of Rogerstone in the rural district of St. Mellons in the county of Monmouth the widening on the south-western side of the bridge which carries the Monmouthshire (Western Valleys) Railway of the Company over the road known as Heol Gerrig at a point about 43 chains north-west of Rogerstone Station and in connection therewith to alter and divert so much of the said road as lies between the south-western end of the said bridge and a point about 4 chains south-west thereof :

In the parish of Rogerstone in the rural district of St. Mellons in the county of Monmouth the widening on the south-western side of the bridge which carries the said Monmouthshire (Western Valleys) Railway and the Alexandra (Newport and South Wales) Railway over the road leading from Rhiwderin to Newport at the south-eastern end of Bassaleg Station :

In the parish and urban district of Abercarn in the county of Monmouth the widening on both sides of the bridge which carries the Monmouthshire (Western Valleys) Railway of the Company over the River Ebbw near and on the southern side of the gasworks of the Abercarn Urban District Council :

In the parish and city and county borough of Cardiff in the county of Glamorgan the widening on both sides of the viaduct which carries the South Wales Railway of the Company over the River Taff near the western end of Cardiff Station and in connection therewith the Company may substitute solid embankments in lieu of the easternmost and two westernmost arches of that viaduct :

In the parish of Llandaff in the rural district of Llandaff and Dinas Powis in the county of Glamorgan the widening on both sides of the bridge which carries the South Wales Railway of the Company over the road leading from Ely to Fairwater at a point about 34 chains west of Ely Station : A.D. 1914.

In the county of Glamorgan the widening on both sides of the bridges hereinafter described carrying the South Wales Railway of the Company over the River Ely which bridges are respectively situate in the parishes and areas hereinafter mentioned :—

Description of Bridge.	Parish or Area.
Bridge situate about 32 chains south-west of St. Fagans Station.	Parishes of St. Fagans and Michaelstone-super-Ely in the rural district of Llandaff and Dinas Powis.
Bridges situate respectively about 10 chains 29 chains and 43 chains east of St. Fagans Station.	Parish of St. Fagans in the rural district of Llandaff and Dinas Powis.
Bridge situate about 63 chains east of St. Fagans Station.	Parish of Llandaff in the rural district of Llandaff and Dinas Powis.

In the parish of Llantrisant in the rural district of Llantrisant and Llantwit Fardre and in the parishes of Pendoylon and Peterstone-super-Ely in the rural district of Llandaff and Dinas Powis in the county of Glamorgan the widening on both sides of the bridges which carry the South Wales Railway of the Company over the River Ely at points respectively about 1 chain 58 chains and 93 chains south-east of the crossing known as Miskin level crossing by that railway of the road leading from Mwyndy to Pendoylon :

In the parish of Llantrisant in the rural district of Llantrisant and Llantwit Fardre in the county of Glamorgan the widening on both sides of the bridges which carry the South Wales Railway of the Company over the River Ely at points respectively about 20 chains 58 chains and 78 chains east of the bridge carrying Cowbridge Road over the said railway at Llantrisant Station :

In the parish of Ynysawdre in the rural district of Penybont in the county of Glamorgan the widening on the northern side of the bridge which carries the Ogmore Valley Branch

A.D. 1914.

Railway of the Company over the River Llynfi near the engine shed at Tondû Junction :

In the county of Glamorgan the widening on both sides of the bridges hereinafter described on the South Wales Railway of the Company such bridges being respectively situate in the parishes and areas hereinafter mentioned :—

Description of Bridge.	Parish or Area.
Bridge over the Afon Kenfig at a point about 22 chains west of the bridge next described.	Parish and urban district of Margam and parish of Kenfig in the rural district of Penybont.
Bridge over road connecting Water Street with Heol y Sheet.	Parish of Kenfig in the rural district of Penybont.
Bridges over the Afon Kenfig situate respectively about 39 chains and 65 chains south-east of the lastly hereinbefore described bridge.	Parish of Kenfig in the rural district of Penybont and parish and urban district of Margam.
Bridge over road leading from Tondû to Bridgend situate about 52 chains north-west of the bridge over the River Ogmore hereinafter described.	Parish of Newcastle Higher in the rural district of Penybont.
Bridge over road leading from Tondû to Bridgend situate about 12 chains north-west of the bridge over the River Ogmore next described.	Parish and urban district of Bridgend.
Bridge over River Ogmore situate about 3 chains north-west of the bridge next described.	Parish and urban district of Bridgend.
Bridge over Quarella Road Bridgend -	Parish and urban district of Bridgend.

Provided that notwithstanding anything contained in this Act the Company shall not purchase and acquire for the purposes of the said intended widenings of bridges respectively over the River Kenfig and over the road connecting Water Street with Heol y Sheet portions exceeding as regards the first-mentioned bridge 2 roods and 10 poles in extent and as regards the last-mentioned bridge 3 roods and 23 poles in extent of certain lands in the said parish of Kenfig which are or are reputed to be common or commonable lands known as Kenfig Common or Down :

In the parish and borough of Aberavon and in the parish and urban district of Margam in the county of Glamorgan the widening on both sides of the bridges between Baglan and Port Talbot which carry the South Wales Railway of the Company over (A) the road connecting Wern Street

with St. Mary's Place (B) Church Street (C) Water Street and (D) the River Avon: A.D. 1914.

In the parish and county borough of Swansea in the county of Glamorgan the widening on the north-western side of the bridge which carries the Swansea Branch Railway of the Company over the road known as Upper Strand.

ROADS FOOTPATHS &C.

In the parish and county borough of Gloucester and in the parish of Barnwood in the rural district of Gloucester in the county of Gloucester:

They may alter and divert so much of the footpath which is carried under the Cheltenham and Great Western Union Railway of the Company near the Emlyn Engineering Works by means of a subway as lies between the north-eastern end of that subway and a point 19 chains or thereabouts east thereof.

In the parish of Willand in the rural district of Tiverton in the county of Devon:

They may stop up and discontinue so much of the road along the north-western boundary of the Company's Bristol and Exeter Railway and leading from Deanhill Farm to Willand as lies between the bridge carrying the said road over the said railway at a point about 29 chains south-west of Tiverton Junction Station and a point about 8 chains south-west thereof and in lieu thereof they may make a new road from the last-mentioned point to a point in the road leading to Bagster Farm about 1 chain north-west of the said bridge.

In the parish of Saint Austell Rural in the rural district of Saint Austell in the county of Cornwall:

They may stop up and discontinue the footpath leading from the accommodation road near the farm known as Bojea to a point in the public road leading from Bugle to Saint Austell at or near the Trethowel China Clay Works and in lieu thereof they may make a new footpath between a point in the said public road about 5 chains north-west of the junction of the existing footpath with that road and a point in the said accommodation road about 11 chains east of the junction of the said roads.

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In the parish of Wellington Urban in the urban district of Wellington and in the parishes of Hadley and Wellington Rural in the rural district of Wellington in the county of Salop :

They may stop up and discontinue so much of the footpath which crosses the Shrewsbury and Birmingham Railway of the Company on the level at a point about 10 chains east of the bridge carrying Haybridge Road over that railway as lies between its junction with that road and the southern boundary of the said railway and in lieu thereof they may make a new footpath along the said boundary between the said existing footpath and Haybridge Road.

In the parishes of Esclusham Below and Ruabon in the rural district of Wrexham in the county of Denbigh :

They may alter and divert so much of the footpath leading from Bent Lane to Rhosllanerchrugog which is carried under the Shrewsbury and Chester Railway of the Company by means of a subway at a point about 20 chains north of the crossing by that railway of Bangor Road as lies between the said subway and a point about 15 chains north-east thereof.

In the parish of Rogerstone in the rural district of St. Mellons in the county of Monmouth :

They may alter and divert so much of the road leading from Risca to Newport which passes over the Monmouthshire (Western Valleys) Railway of the Company at or near the north-western end of Rogerstone Station as lies between points respectively about 5 chains north and 5 chains south of the bridge carrying the said road over the said railway :

They may alter and divert so much of the footpath leading from Cefn to the road from Rogerstone to Bassaleg Station as lies between the north-eastern end of the bridge carrying that road over the said Monmouthshire (Western Valleys) Railway near Ebenezer Terrace and a point about 6 chains north-west of the said bridge.

In the parish and urban district of Abercarn and in the parish and urban district of Risca in the county of Monmouth :

They may alter and divert so much of the River Ebbw as lies between the bridge at Jamesville known as Chapel

Bridge over the said river and a point about 9 chains north-west of the said bridge. A.D. 1914.

In the parish and urban district of Risca in the county of Monmouth :

They may alter and divert so much of the River Ebbw as lies between points respectively about 2 chains north-east and 8 chains south of the viaduct carrying the Pennar Branch Railway of the Company over that river.

In the parish and urban district of Abercarn in the county of Monmouth :

They may alter and divert so much of the footpath adjoining the south-eastern side of the sidings connecting the Prince of Wales Colliery with the Monmouthshire (Western Valleys) Railway of the Company at Abercarn Colliery Junction as lies between the footbridge carrying the said footpath over the said railway and a point about 14 chains north of the said footbridge.

In the parish and urban district of Mynyddyslwyn in the county of Monmouth :

They may stop up and discontinue the footpath which crosses the Company's Newport Abergavenny and Hereford (Taff Vale Extension) Railway and the London and North Western (Sirhowy Branch) Railway on the level near the respective junctions with those railways of the loop connecting the same in a westerly direction as lies between its junctions with the road leading from Bryn to Tredegar Junction Station and the road leading from the said road to Gelligroes respectively.

In the parish and urban district of Gelligaer and in the parish of Llanfabon in the urban district of Caerphilly in the county of Glamorgan :

They may stop up and discontinue so much of the footpath which crosses the Company's Newport Abergavenny and Hereford (Taff Vale Extension) Railway and the Taff Vale Railway on the level at a point about $7\frac{1}{2}$ chains south-east of Nelson and Llancaiach Station as lies between a point about $1\frac{1}{2}$ chains north of the north-eastern boundary of the said railway of the Company and the south-western boundary of the Taff Vale Railway and so much of the footpath which crosses the said railway of the Company at a point about 14 chains south-east of

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the said station as lies between a point about $\frac{1}{2}$ chain north-east of the north-eastern boundary of that railway and the southern end of the goods yard on the Taff Vale Railway at Llancaiach and they may stop up and extinguish all rights of way over the said railways between the said footpaths and in lieu thereof they may make a new footpath between the first-mentioned footpath at or near the south-western boundary of the Taff Vale Railway and a point in the second-mentioned footpath at or near a point about $\frac{1}{2}$ chain north-east of the north-eastern boundary of the said railway of the Company.

In the parish and city and county borough of Cardiff in the county of Glamorgan :

They may stop up and discontinue the footpath which connects Pellett Street and Roland Street and is carried over the South Wales Railway of the Company by means of a footbridge and in lieu thereof they may make a new footpath between Duffryn Street and Pendoylan Place and may carry the same over the said railway by means of a footbridge :

They may stop up and discontinue so much of the road leading from the level crossing known as Canton Level Crossing by the said South Wales Railway of Leckwith Road to Kitchener Road as lies between its junction with Leckwith Road and a point about $2\frac{1}{2}$ chains east thereof and in lieu thereof they may make a new road between a point in Leckwith Road about $1\frac{1}{2}$ chains north of the said level crossing and the first-mentioned point.

In the parish of Llandaff in the rural district of Llandaff and Dinas Powis in the county of Glamorgan :

They may divert so much of the footpath which crosses the South Wales Railway of the Company on the level at a point about 25 chains north-west of Ely Station as lies between points respectively about 11 chains south-east and 3 chains north-west of the said crossing and may stop up and discontinue so much of the footpath which crosses the said railway on the level at a point about 15 chains north-west of the said station as lies between a point about $2\frac{1}{2}$ chains south of the said crossing and the junction therewith of the new footpath

hereafter mentioned and in lieu thereof may make the new footpath described in the section of this Act the marginal note of which is "For protection of Llandaff and Dinas Powis Rural District Council." A.D. 1914.

In the parish of Peterstone-super-Ely in the rural district of Llandaff and Dinas Powis in the county of Glamorgan :

They may alter and divert so much of the road leading from Bonvilston to St. Brides-super-Ely which crosses over the South Wales Railway of the Company at or near the junction (known as Peterston West Junction) of the Barry Railway with that railway as lies between points respectively about 1 chain north and 4 chains south-west of the bridge carrying that road over the said South Wales Railway and may carry the same over the said railway by means of a bridge.

In the parish of Pyle in the rural district of Penybont in the county of Glamorgan :

They may alter and divert so much of the footpath leading from Kenfig to Aberavon which is carried over the South Wales Railway of the Company by means of a footbridge at a point about 19 chains west of Pyle Station as lies between the southern end of that footbridge and a point about 1 chain east of the said footbridge and may carry the same over the said railway by means of a footbridge.

In the parish and county borough of Swansea in the county of Glamorgan :

They may stop up and discontinue so much of Jockey Street as lies between its junction with the road known as Upper Strand and a point about 1 chain west thereof and so much of Bargeman's Row as lies between its junction with Jockey Street and a point about $\frac{1}{2}$ chain north thereof and in lieu thereof they may make a new road between a point in Jockey Street about 1 chain west of the junction of Jockey Street with Upper Strand and a point in Upper Strand about 1 chain north-west of the bridge carrying the Swansea Branch Railway of the Company over Upper Strand.

In the parish of Clase Rural in the rural district of Swansea in the county of Glamorgan :

They may alter and divert so much of the footpath leading from the road from Llangyfelach to Ynys-forgan to

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Chemical Road which crosses the Swansea District Railway of the Company on the level at a point about 14 chains east of the bridge carrying Chemical Road over that railway as lies between the boundaries of the Company's property and may carry the same over the said railway by means of a footbridge.

In the parish of Llandilo Tal y bont in the rural district of Swansea in the county of Glamorgan :

They may stop up and discontinue so much of the footpath which crosses the Swansea District Railway of the Company on the level at or near the north-western end of Pont-Lliw Station as lies between its junction with the road leading from Mynydd Lliw to Pontardulais and the south-western boundary of the Company's property and in lieu thereof they may make a new footpath along the said boundary between the existing footpath and the said road.

In the parish of Llanguick in the rural district of Pontardawe in the county of Glamorgan :

They may stop up and discontinue so much of the footpath which joins the road leading from Llangadock to Pontardawe opposite the Abernant Inn Cwmgors as lies between its junction with that road and a point about 9 chains south-west thereof and in lieu thereof they may make a new footpath between the said point and a point in the said road about $\frac{1}{2}$ chain north of the said junction.

In the parish and borough of Llanelly and in the parish of Llanelly Rural in the rural district of Llanelly in the county of Carmarthen :

They may stop up and extinguish all public rights of way (if any) over under across or along the Company's Dafen Branch Railway between the level crossing by that railway of the road leading from Felin-foel to Llangennech at Dafen Goods Station and the termination of that railway near the junction of New Dock Road and New Dock Street Llanelly other than public rights of way over (A) the level crossing known as Half Way Level Crossing by that railway of the road leading from Llanelly to Swansea (B) the level crossing by that railway of Trostre Road (C) Ropewalk Road and (D) Embank-

ment Road and in lieu thereof they may make a new footpath for the free use of the public properly fenced from that railway (except where crossing the railway lines and at occupation and other level crossings) along the side of and across the said railway between a point in the said road leading from Felin-foel to Llangennech at or near the south-eastern side of the said level crossing at Dafen Goods Station and a point in Ropewalk Road about $\frac{1}{2}$ chain south-east of the bridge carrying the said branch railway over that road and may carry the same over the Company's South Wales Railway by means of a footbridge.

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40. Notwithstanding anything shown on the deposited plans and sections the following provisions for the protection of the urban district council of Yiewsley (in this section referred to as "the council") shall unless otherwise agreed between the Company and the council apply and have effect (that is to say):—

For protection of Yiewsley Urban District Council.

(1) The Company shall construct the lengthening at both ends of the bridge which carries the road leading from Cherry Lane to Colham Green over the railway of the Company near the Hillingdon Varnish Works so as to provide that the width of the lengthened portions of the said bridge shall not be less than 30 feet between the parapets and the parapets of the said lengthened portions of the said bridge shall not be less than 4 feet 6 inches in height. The gradient of the altered portion of the southern approach to the said bridge shall not be steeper than 1 in 15. Provided that nothing herein contained shall impose upon the Company any liability to maintain the said approach for a greater length than the Company were liable to maintain before the passing of this Act. The lengthened portions of the said bridge shall be constructed of sufficient strength to render it unnecessary for the Company to impose any restriction under the Locomotive Act 1861 and the Motor Car Acts 1896 and 1903 as to the weight of vehicles passing thereover:

(2) During the construction of the said lengthening and the alteration of the approaches thereto the said bridge and approaches may be closed to vehicular

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and foot traffic for a period not exceeding 21 days and during such period the Company shall be under no obligation to construct a temporary bridge. Provided always that before closing the said bridge and approaches the Company shall give 28 days' previous notice to the council of such their intention and the council shall thereupon make all necessary arrangements in connection with such closing :

- (3) If in constructing the aforesaid works the Company find it necessary to close the road over the said bridge or the approaches thereto for a longer period than is provided for in the last preceding subsection they shall be at liberty to do so provided that at the expiration of the said period they shall at their option but to the reasonable satisfaction of the surveyor of the council either (1) provide a good and sufficient temporary bridge not less than 10 feet in width for the use of vehicular and foot traffic passing upon and along the said road or (2) at all times provide for the like use a width of not less than 10 feet of roadway on the existing bridge or the lengthened portion thereof. Provided always that in the event of the Company electing to provide a temporary bridge the council shall make and may put in force such regulations and arrangements during the lengthening of the said bridge as shall prevent all heavy or extraordinary traffic from passing over the said temporary bridge. In altering the southern approach to the said bridge the Company shall be at liberty to temporarily reduce the width thereof to 10 feet :
- (4) The Company shall on the completion of the said works make good to the reasonable satisfaction of the surveyor of the council the roadway over the said bridge and of the approaches thereto to the same condition as existed immediately before the works were commenced :
- (5) As soon as the said works have been commenced the Company shall complete the same with all reasonable dispatch :
- (6) Any difference which may arise between the council and the Company as to the true intent and meaning

of any of the provisions of this section or as to the mode of giving effect thereto shall be settled by an engineer to be appointed (unless otherwise agreed) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply thereto.

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41. Notwithstanding anything shown on the deposited plans and sections the following provisions for the protection of the Staines Rural District Council (in this section referred to as "the council") shall unless otherwise agreed between the Company and the council apply and have effect (that is to say):—

For protection of Staines Rural District Council.

- (1) The Company shall construct the lengthened portion of the bridge which carries Dawley Road over the railway of the Company with a minimum width of 30 feet between the parapets and if within a period of 28 days after the receipt of notice in writing from the Company of their intention to proceed with the said lengthening the council give notice in writing requiring the existing bridge to be simultaneously widened to a width of 30 feet the Company shall carry out such work and the cost of the widening of such existing bridge including any alteration in the levels of the southern approach rendered necessary by reason of such increased width shall be borne as to one half by the Company and as to the remaining half by the council but the sum to be paid by the council as representing their half share shall not exceed 750*l.* unless the cost of the work shall exceed the sum of 1,500*l.* by reason or partly by reason of the cost of labour and materials being at the time of the construction of the said work in excess of the like cost at the date of the passing of this Act in which event the council shall in addition to the sum of 750*l.* bear a moiety of so much of the excess beyond 1,500*l.* as is due to the increased cost of labour and materials. If within the period aforesaid the council require the existing bridge to be widened to a width of 40 feet instead of 30 feet the Company shall carry out such work and the cost as to 30 feet shall be shared as before mentioned and the cost of the additional width of 10 feet including the cost of

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any additional alteration of the approaches by reason of the provision of such increased width shall be borne by the council and the Company shall at such request as aforesaid also construct the lengthened portion of such bridge of a width of 40 feet and the council shall pay the cost of the additional width of 10 feet including any additional cost of the approaches as aforesaid :

- (2) The Company shall so far as is reasonably practicable ease off the angle in the approach at the northern end of the lengthened bridge and shall widen the said northern approach to the full width of the bridge as widened for a distance of not less than 60 feet from the northern end of the bridge as lengthened and the council shall at their own cost widen the remainder of the northern approach to the like width and to the altered levels and the Company shall give facilities for this purpose so far as their property extends including the free use of any of their existing property which may be required for the said purpose :
- (3) In the event of the existing bridge being widened to 30 feet only as aforesaid then at any time prior to further widening lengthening or reconstruction thereof the council may call upon the Company to construct at the cost of the council a footpath 6 feet wide on the eastern side of the said bridge throughout its entire length such footpath to be carried upon cantilevers or such other suitable substructure as the circumstances shall reasonably permit :
- (4) The parapets of the said lengthened portion and of the widened portion of the existing bridge shall not be less than 4 feet 6 inches in height and the gradient of the northern approach of the said bridge shall not be steeper than 1 in 20 Nothing in this section contained shall impose upon the Company the liability to maintain the approaches to the said bridge or the road over the bridge for a greater length or area than the Company were liable to maintain before the passing of this Act :
- (5) The lengthened portion of the said bridge and the widened portion of the existing bridge shall be con-

structed of sufficient strength to render it unnecessary for the Company to impose any restriction under the Locomotive Act 1861 and the Motor Car Acts 1896 and 1903 as to the weight of vehicles passing thereover : A.D. 1914.

- (6) If in constructing the aforesaid works the Company find it necessary to close the road over the said bridge they shall be at liberty to do so provided that they shall at their option but to the reasonable satisfaction of the surveyor of the council either (1) provide a good and sufficient temporary bridge of not less than 10 feet in width for the use of vehicular and foot traffic passing upon and along the said road or (2) at all times provide for the like use a width of not less than 10 feet of roadway on the existing bridge or the widened portion thereof Provided always that in the event of the Company electing to provide a temporary bridge the council may make and shall put in force such regulations and arrangements during the lengthening and widening of the said bridge as shall prevent all heavy or extraordinary traffic from passing over the said temporary bridge :
- (7) In altering the northern approach to the said bridge the Company shall be at liberty to temporarily reduce the width thereof to 10 feet :
- (8) The Company shall on the completion of the said works make good to the reasonable satisfaction of the surveyor of the council the roadway over the said bridge and of the approaches thereto to the same condition as existed immediately before the works were commenced :
- (9) As soon as the said works have been commenced the Company shall execute the same with all reasonable dispatch :
- (10) Any difference which may arise between the council and the Company as to the true intent and meaning of any of the provisions of this section or as to the mode of giving effect thereto shall be settled by an engineer to be appointed (unless otherwise agreed) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply thereto.

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For protec-
tion of Bris-
tol Water-
works Com-
pany.

42. In carrying into effect the widening by this Act authorised of the bridge near Bedminster Station the following provisions for the protection of the Bristol Waterworks Company (in this section called "the water company") shall unless otherwise agreed between the Company and the water company apply and have effect (that is to say):—

- (1) At least 14 days before the commencement of any work in pursuance of the powers of this Act which may in any way interfere with or affect any main pipe or apparatus of the water company or any private service pipe of any person supplied with water by the water company a notice in writing of the intention of the Company to execute such works accompanied by a plan section and description of the mode of executing such works shall be submitted to the water company and if within 14 days from such submission the water company disapprove of the said plans sections or mode of executing such works then such works shall be carried out in accordance with plans and sections to be settled by an arbitrator to be appointed as hereinafter provided Provided that if the water company do not within 14 days after such submission signify their approval or disapproval of the said plan section and mode of executing such works they shall be deemed to have approved thereof The said works shall be constructed in accordance with the plans and sections approved or settled as aforesaid under the superintendence if such be given and to the reasonable satisfaction of the engineer of the water company:
- (2) Any main or pipe of the water company which shall be raised diverted sunk or altered shall be relaid at such depth as may be reasonably required by the water company for protecting such pipes from frost accident or injury:
- (3) Any work of removal deviation alteration or support of the pipes mains or apparatus of the water company necessitated by the construction or execution of the said work shall if the water company by notice in writing so desire be done by the water company and the reasonable expenses of the water company in connection therewith shall be paid by the Company:

(4) All costs charges and expenses reasonably incurred by the water company in relation to the watching by the water company of the said works shall be paid by the Company to the water company : A.D. 1914.

(5) If any interruption in the supply of water by the water company shall be occasioned by the Company or by the acts of any of their contractors agents workmen or servants or any person in the employ of them or any of them either during the construction or subsequent maintenance of the said works the Company shall indemnify and compensate the water company in respect of all damage or loss which they may sustain by reason or in consequence of such interruption :

(6) If by reason of the said works any increased length of water mains or pipes or any additional valves or apparatus be rendered necessary the same shall be provided and laid by the water company at the reasonable cost of the Company :

(7) If any difference shall arise between the Company and the water company touching this section or anything to be done or not to be done or any moneys to be paid thereunder such difference shall be determined by an engineer to be appointed (unless otherwise agreed on between the parties) on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Railways Clauses Consolidation Act 1845 with respect to the settlement of disputes by arbitration shall extend and apply to the determination of such difference.

43. For the protection of the urban district council of Weston-super-Mare (in this section called "the council") the following provisions shall unless otherwise agreed between the council and the Company have effect notwithstanding anything in this Act contained (that is to say) :— For protection of Weston-super-Mare Urban District Council.

(1) In carrying out the works in connection with the lengthening by this Act authorised of the bridge which carries Uphill Drove Road over the Company's Weston Loop Line Railway (hereinafter referred to as "the bridge") the Company shall widen the existing bridge and construct the lengthened portions thereof

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so as to provide a carriageway of a clear width of 24 feet and footpaths of a clear width of 6 feet on either side thereof. Such footpaths may if the Company so elect be carried upon cantilevers or other structure outside the bridge carrying the said carriageway :

- (2) If in constructing the said works the Company require to close the road over the said bridge they shall be at liberty to do so provided that they shall at their option but to the reasonable satisfaction of the surveyor of the council either (1) provide a good and sufficient temporary bridge of not less than 10 feet in width for the use of vehicular and foot traffic passing upon and along the said road or (2) at all times provide for the like use a width of not less than 10 feet of roadway on the existing bridge or the widened portion thereof. Provided always that in the event of the Company electing to provide a temporary bridge the council may make and shall put in force during the lengthening and widening of the said bridge such regulations and arrangements as shall prevent all heavy or extraordinary traffic from passing over the said temporary bridge :
- (3) Contemporaneously with the construction of the widened bridge by the Company the council shall at their own expense connect the footpaths at either end of the bridge with the footpaths on the existing approaches :
- (4) The council may at their own expense widen the approaches to the bridge in the manner shown on the plan signed by William Wylie Grierson on behalf of the Company and Harold Arthur Brown on behalf of the council and the Company shall give facilities for this purpose so far as their property extends including the free use of such of their existing property as may be required for that purpose. Any existing ditchways that may be interfered with shall be diverted outside the widened approaches. All such works shall be carried out by the council to the reasonable satisfaction of the engineer of the Company and the council shall for a period of 12 months from the completion of the works maintain to

the like satisfaction the widened portions of the A.D. 1914.
approaches :

(5) Nothing in this section contained shall impose upon the Company the liability to maintain a greater area of carriageway and footway respectively on the bridge and the approaches thereto as widened than the Company were liable to maintain before the passing of this Act :

(6) If any difference shall arise under this section between the Company and the council such difference shall be referred to and settled by an arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

44. Notwithstanding anything contained in this Act or shown upon the deposited plans and sections the provisions of section 23 (For protection of Bilston Urban District Council) of the Great Western Railway Act 1913 shall so far as they are applicable and unless otherwise agreed in writing between the Bilston Urban District Council and the Company apply and have effect with reference to the lengthening of the bridges which respectively carry Loxdale Street and Bradley Lane over the Birmingham Wolverhampton and Dudley Railway of the Company in the same manner and to the same extent as if the provisions of that section had been re-enacted in this Act with reference to the said bridges. For protection of Bilston Urban District Council.

45. For the protection of the urban district council of Stourbridge in the county of Worcester (in this section called "the council") the following provisions shall unless otherwise agreed in writing between the council and the Company apply and have effect (that is to say) :— For protection of Stourbridge Urban District Council.

(1) Notwithstanding anything in this Act or shown on the deposited plans and sections in carrying out the lengthening of the bridge which carries the road known as Hungary Hill over the Stourbridge Extension Railway of the Company in the urban district of Stourbridge the Company shall contemporaneously with such lengthening widen the existing bridge

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carrying the said road over the railway in manner hereinafter mentioned :

- (2) The existing bridge shall be widened and the lengthening at both ends thereof so carried out as to provide between the parapets a clear width of carriageway of not less than 19 feet with footpaths on each side of not less than 5 feet 6 inches in width and the gradients of the altered approaches to the said bridge shall not be steeper than 1 in 18. The parapets of the bridge as widened and lengthened shall not be less than 5 feet in height and the Company shall make kerb and channel the footpaths on both sides of the said bridge and shall make good the approaches :
- (3) The Company shall not commence any portion of the widening or lengthening of the said bridge until they shall have submitted to the council for their reasonable approval plans and sections showing the lines and levels of the said bridge and approaches and until the council shall have signified their approval thereof which approval shall not be unreasonably withheld unless the council fail to signify such approval or disapproval with regard thereto within 28 days after submission of the said plans and sections in which case they shall be deemed to have approved thereof. The Company shall maintain the carriageway and footpaths over the said bridge and shall also maintain the said approaches to the same extent as at present. On the completion of the widening of the said bridge the council shall pay to the Company the sum of 250*l.* :
- (4) In altering and diverting the footpath near Saint Mark's Church and adjoining the south-eastern side of the Company's Stourbridge Extension Railway the Company shall notwithstanding anything shown on the deposited plans construct the diverted footpath of a width of not less than 6 feet :
- (5) Any difference which may arise between the council and the Company under this section shall be settled by an engineer to be appointed (unless otherwise agreed) upon the application of either of the parties in difference by the President of the Institution of

Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply thereto: A.D. 1914.

- (6) The council may in addition to any moneys now borrowed by them or which they are now authorised to borrow or which they may be authorised to borrow under the provisions of any Act of Parliament borrow at interest the sum of 250*l.* for the purposes of the payment to be made by the council towards the reconstruction of the said bridge in pursuance of this section Any moneys borrowed by the council under this Act and the interest payable thereon shall be respectively charged on the district fund and general district rate of the urban district of Stourbridge and shall be repaid within forty years from the date of borrowing the same in accordance with the provisions of the Public Health Act 1875 as if the same were borrowed under that Act:
- (7) The clerk to the council shall within forty-two days after the 31st day of March in each year if during the twelve months next preceding the said 31st day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in respect of any of the moneys raised by the council in pursuance of the provisions of this section and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by a statutory declaration of the said clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any)

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remaining invested at the end of the year and in the event of his failing to make such return the said clerk shall for each offence be liable to a penalty not exceeding 20*l.* to be recovered by an action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court:

- (8) If it appears to the Local Government Board by that return or otherwise that the council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

For protec-
tion of Mon-
mouthshire
County
Council.

46. For the protection of the county council for the administrative county of Monmouth (in this section referred to as "the county council") the following provisions shall notwithstanding anything shown on the deposited plans and sections and unless otherwise agreed upon in writing between the Company and the county council have effect (that is to say):—

- (1) In connection with the construction or carrying out of the widening by this Act authorised on the south-western side of the bridge carrying the Monmouthshire (Western Valleys) Railway and the railway of the Alexandra (Newport and South Wales) Docks and Railway Company (hereinafter in this section referred to as "the Alexandra Company") over the Newport and Bedwas main road at the south-eastern end of Bassaleg Station the Company shall not widen the existing bridge but if for the purpose of deviating the existing railway of the Alexandra Company

over the said existing bridge an additional bridge is required and the Alexandra Company either alone or in conjunction with the Company shall not have constructed the bridge over the said main road sought to be authorised by the Bill now pending in Parliament under the name or short title of the Alexandra (Newport and South Wales) Docks and Railway the Company may either alone or in conjunction with the Alexandra Company construct an additional bridge over the said main road at the point aforesaid within the limits of deviation shown upon the deposited plans and so as to leave an open space between the existing bridge and such additional bridge of not less than 350 superficial feet:

- (2) The additional bridge shall be so constructed as to provide a span between the abutments of not less than 35 feet with the underside of the superstructure (if a girder bridge) or the soffit of the arch (if an arch bridge) at a level not lower than that of the underside of the girder on the south-western side of the existing bridge :
- (3) The additional bridge shall in other respects be carried out to the reasonable satisfaction of the county council and shall so far as is reasonably practicable be constructed and maintained so as to prevent the dripping of water on the road or footpaths beneath the bridges :
- (4) The additional bridge shall on completion be vested in and be the property of and be thenceforth maintained by the Alexandra Company and may and shall be used by that company for the purposes of the said deviation of their existing railway and also for the purposes of the Railway No. 1 described in and sought to be authorised by the Bill hereinbefore in this section referred to in place of the bridge sought to be authorised by that Bill for the purpose of carrying such last-mentioned railway over the Newport and Bedwas main road :
- (5) Any difference arising under this section shall be referred to an engineer to be agreed upon between the Company and the county council or failing agreement to be appointed at the request of either party by the

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President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to the reference.

For protection of Newport Corporation.

47. For the protection of the mayor aldermen and burgesses of the county borough of Newport (in this section called "the corporation") the following provisions shall unless otherwise agreed between the corporation and the Company have effect notwithstanding anything in this Act contained (that is to say) :—

(1) Before commencing any works in connection with the lengthening by this Act authorised of the bridge which carries Somerton Road in the borough of Newport over the Company's South Wales Railway and East Usk Branch Railway (hereinafter referred to as "the bridge") the Company shall give not less than two months' notice in writing to the corporation and if before the expiration of the said period the corporation give notice in writing to the Company that they desire the bridge to be widened to 30 feet then the Company shall widen the bridge (including the lengthened portion thereof) to that width so as to enable the corporation to construct thereover a carriageway of a clear width of 25 feet and a footpath of a clear width of five feet and shall erect a suitable parapet on the outside of such footpath of a height of not less than four feet six inches in substitution for the existing parapet but such footpath may if the Company so desire be constructed outside the structure carrying the carriageway. On the completion of the widening of the bridge in accordance with the provisions of this subsection the corporation shall pay to the Company on demand the sum of three hundred pounds:

(2) If within the period aforesaid the corporation give notice in writing to the Company that they desire the bridge and the approaches thereto to be widened to such width not exceeding 40 feet as may be stated in the notice the Company shall widen the bridge and approaches to the width so stated the southern approach where it is adjacent to the enclosure numbered on the deposited plans 3 in the said

borough being widened on the eastern side Provided A.D. 1914.
that the corporation shall provide such additional
lands (if any) beyond the Company's boundary fence
as may be required for such widening and shall pay
to the Company on demand the amount by which the
costs and expenses reasonably incurred in effecting
such widening and the works in connection therewith
including the capitalised cost of maintenance and
renewal thereof shall exceed the amount which would
have been borne by the Company under subsection (1)
of this section including the capitalised cost of main-
tenance and renewal of the works therein provided
for :

- (3) The lengthened and widened portion of the bridge carrying the carriageway shall be constructed of sufficient strength to render it unnecessary for the Company to impose any restriction under the Locomotive Act 1861 and the Motor Car Acts 1896 and 1903 as to the weight of vehicles passing thereover :
- (4) If in constructing the aforesaid works the Company find it necessary to close the road over the said bridge they shall be at liberty to do so provided that they shall at their option but to the reasonable satisfaction of the surveyor of the corporation either (1) provide a good and sufficient temporary bridge of not less than 10 feet in width for the use of vehicular and foot traffic passing upon and along the said road or (2) at all times provide for the like use a width of not less than 10 feet of roadway on the existing bridge or the widened portion thereof Provided always that in the event of the Company electing to provide a temporary bridge the corporation may make and shall put in force such regulations and arrangements during the lengthening and widening of the said bridge as shall prevent all heavy or extraordinary traffic from passing over the said temporary bridge :
- (5) The Company shall not when lengthening the bridge under the powers of this Act make any portion of the approaches thereto steeper than 1 in 15 and on the completion of such lengthening the Company shall to the reasonable satisfaction of the corporation's

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surveyor make good the roadway to the same condition as existed immediately before the works were commenced or as near thereto as may be reasonably practicable :

- (6) Nothing in this section contained shall impose upon the Company the liability to maintain the approaches to the bridge or the road over the same for a greater area of carriageway and footway respectively than the Company were liable to maintain before the passing of this Act :
- (7) If any difference shall arise under this section between the Company and the corporation such difference shall be referred to and settled by an arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of William Anthony Frank.

48. In connection with the construction of the widening by this Act authorised of the viaduct carrying the South Wales Railway of the Company over the River Taff near the western end of Cardiff Station the following provisions for the protection and benefit of William Anthony Frank the owner or reputed owner of premises in the city of Cardiff fronting upon the River Taff and situate between the property of the Company and Pendyris Street (who and whose successors in title are in this section referred to as "the owner") shall notwithstanding anything in this Act contained or shown on the deposited plans apply and have effect (that is to say):—

- (1) The Company shall not in constructing the said widening construct any works above the existing ground level south of the line shown in red on the plan signed in duplicate by William Wylie Grierson on behalf of the Company and William Henry Davies on behalf of the owner :
- (2) Subject as hereinafter provided and subject to the provisions of the two agreements dated respectively the 1st day of November 1905 and made between the Company of the one part and the owner of the other part and a memorandum dated the 19th day

of June 1912 and made between the same parties the owner shall be entitled to claim from and be paid by the Company compensation for any injurious affection of the before-mentioned premises by reason of the construction of the said work and such compensation shall in case of difference be ascertained and determined by a single arbitrator to be appointed failing agreement by the Board of Trade and subject thereto in the manner provided by the Lands Clauses Consolidation Act 1845 Provided that nothing in this section contained shall be deemed to confer upon the owner any right to claim compensation for injurious affection in respect of the working of the railway on the said widening or to deprive the owner of any rights to which he may be entitled apart from this section.

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49. For the protection of Thomas Owen and Company Limited (hereinafter in this section referred to as "the limited company") notwithstanding anything in this Act contained or shown upon the deposited plans the following provisions shall unless otherwise agreed upon in writing between the limited company and the Company apply and have effect (that is to say):—

For protection of Thomas Owen and Company Limited.

- (1) Before opening for traffic any additional line of railway across the level crossing known as the Ely Paper Mills crossing of the South Wales Railway of the Company by the accommodation road numbered on the deposited plans for "Road and lands between Ely Station and Cardiff" 22 in the parish and city and county borough of Cardiff and before entering upon or interfering with such road so as to render the user thereof by the limited company impracticable the Company shall construct to the reasonable satisfaction of the limited company and open for traffic the footbridge and the approaches thereto and new road hereinafter referred to (that is to say):—

(A) A footbridge not less than 5 feet in width over the said railway at or immediately adjoining the said level crossing with approaches thereto from the said new road and from the Cowbridge Road not less than 5 feet in width;

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(B) A new road not less than 18 feet in width and having gradients not steeper than 1 in 30 commencing by a junction with the southern end of Grosvenor Street and passing under the deviation of the South Wales Railway (now in course of construction) through the bridge to carry that deviation over the road connecting Grosvenor Street with the sanatorium of the corporation of Cardiff (which bridge shall have a headway of not less than 14 feet) and proceeding thence between the said South Wales Railway and the Taff Vale Railway to and forming a junction with the road leading from Cowbridge Road to the Ely Paper Mills:

- (2) The said footbridge and approaches shall be maintained by the Company to the reasonable satisfaction of the limited company and the Company shall also maintain the said new road to the like satisfaction Provided that if any part of the said new road is taken over by the corporation of Cardiff the liability of the Company to maintain such portion shall cease The said new road shall be metalled with macadam or other suitable material so as to permit of its use by lorries and other vehicles passing to and from the property of the limited company at and adjoining the Ely Paper Mills:
- (3) Where the said new road intersects the road known as Moors Lane and numbered 26 on the deposited plans in the said parish the Company shall make a convenient junction between the said new road and the road so intersected:
- (4) The said footbridge and approaches and the new road shall be constructed in accordance with plans and sections to be agreed upon between the Company and the limited company or failing agreement to be determined by arbitration as hereinafter provided:
- (5) From and after the completion and opening for traffic of the said footbridge and new road the limited company shall surrender to the Company any rights of way vested in them over the said level crossing and also over the level crossing known as Sanatorium or Moors Lane Crossing:

- (6) If any difference shall arise between the Company and the limited company respecting the matters aforesaid or any of them such difference shall be settled by an engineer to be appointed unless otherwise agreed by the President of the Institution of Civil Engineers at the request of either party and the provisions of the Arbitration Act 1889 shall apply to any such reference. A.D. 1914.

50. For the protection of the urban district council of Bridgend in the county of Glamorgan (in this section called "the council") the following provisions shall unless otherwise agreed in writing between the council and the Company apply and have effect (that is to say):— For protection of
Bridgend
Urban District Council.

- (1) Notwithstanding anything in this Act or shown on the deposited plans and sections in carrying out the widening of the bridge which carries the South Wales Railway of the Company over Quarella Road in the urban district of Bridgend the Company shall contemporaneously with such widening reconstruct the said bridge in manner hereinafter mentioned:
- (2) The said bridge shall be reconstructed and the widened portions thereof constructed so as to provide a clear width between the abutments of 30 feet and with the faces of the abutments in the position shown by red dotted lines on the plan signed by William Wylie Grierson on behalf of the Company and John Thomas Howell on behalf of the council. The headway throughout the reconstructed bridge and the widened portions thereof shall not be less than 11 feet 6 inches above the surface of the road. The roadway and footpaths under the reconstructed and widened bridge shall be made good by the Company to the reasonable satisfaction of the council:
- (3) The reconstructed bridge and the widened portions thereof shall be constructed and maintained so as to prevent so far as is reasonably practicable the dripping of water therefrom on any part of the said road or footpaths and the parapets of the bridge as widened shall be carried up to a height of at least 4 feet 6 inches above the level of the rails:

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- (4) The said works shall be carried out and completed to the reasonable satisfaction of the council and at the cost in all respects of the Company. On the completion of the reconstruction of the said bridge the council shall pay to the Company the sum of 800l.:
- (5) Any difference which may arise between the council and the Company under this section shall be settled by an engineer to be appointed (unless otherwise agreed) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply thereto:
- (6) The council may in addition to any moneys now borrowed by them or which they are now authorised to borrow or which they may be authorised to borrow under the provisions of any Act of Parliament borrow at interest the sum of 800l. for the purposes of the payment to be made by the council towards the reconstruction of the said bridge in pursuance of this section. Any moneys borrowed by the council under this Act and the interest payable thereon shall be respectively charged on the district fund and general district rate of the urban district of Bridgend and shall be repaid within 40 years from the date of borrowing the same in accordance with the provisions of the Public Health Act 1875 as if the same were borrowed under that Act:
- (7) The clerk of the council shall within 42 days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in respect of any of the moneys raised by the council in pursuance of the provisions of this section and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by a statutory declaration of the said

clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the said clerk shall for each offence be liable to a penalty not exceeding 20*l.* to be recovered by an action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court :

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- (8) If it appears to the Local Government Board by that return or otherwise that the council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

51. For the protection of the mayor aldermen and burgesses of the borough of Aberavon (in this section called "the corporation") the following provisions shall unless other-

For protection of corporation of Aberavon.

A.D. 1914. wise agreed between the corporation and the Company apply and
— have effect (that is to say):—

- (1) The Company in widening the bridge carrying their South Wales Railway over the road connecting Wern Street with St. Mary's Place in the borough shall increase the span of that bridge and construct the widened portions thereof so as to provide thereunder a carriageway of a clear width of not less than nineteen feet and a footpath of a clear width of not less than five feet on the south-eastern side of and separated from the said carriageway by a row of columns not more than twelve inches wide and the existing south-eastern abutment shall be retained and the extensions thereof and the new north-western abutment and the said columns shall be erected on the red lines on the plan marked A and signed in duplicate by William Wylie Grierson on behalf of the Company and by James Roderick on behalf of the corporation The said bridge as widened shall have a headway over the said carriageway throughout of not less than eight feet seven inches:
- (2) The Company in widening the bridge carrying their said railway over Church Street in the borough shall increase the span of that bridge and construct the widened portions thereof so as to provide thereunder a carriageway of a clear width of not less than eighteen feet and footpaths each of a clear width of not less than five feet on either side of and separated from the said carriageway by rows of columns not more than twelve inches wide The said rows of columns shall be parallel throughout the bridge The north-western abutment of the existing bridge shall be retained and the extensions thereof and the new south-eastern abutment and the said columns shall be erected on the red lines on the plan marked B and signed as aforesaid (hereinafter referred to as "the signed plan B") The said bridge as widened shall have a headway over the said carriageway throughout of not less than nine feet eight inches:
- (3) The Company in widening the bridge carrying their said railway over Water Street in the borough shall increase

the span of that bridge and construct the widened portions thereof so as to provide a carriageway thereunder of a clear width of not less than twenty-two feet and a footpath on either side six feet in width each footpath being separated from the carriageway by a row of columns not more than twelve inches wide The alignment of the abutments of the widened bridge and of the said columns shall be in the position shown by red lines on the signed plan B The said bridge as widened shall have a headway over the said carriageway throughout of not less than twelve feet eight inches : A.D. 1914.

- (4) To enable the Company to construct the bridges hereinbefore mentioned of the widths hereinbefore prescribed the Company may lower the level of the soffit of the superstructures thereof to a depth not exceeding two feet four inches below the present level of the lowest rail on each of the said bridges In order to provide the respective headways required by this section under the said widened bridges the Company shall be entitled if necessary at their own expense to lower the carriageway under each of the said widened bridges in such manner as may be reasonably approved by the corporation and in no case shall the Company in lowering such carriageways make the gradients thereof steeper than 1 in 20 The existing levels of the footpaths shall not be altered but the Company shall where the carriageway is lowered at their own expense provide where necessary double kerbs :
- (5) The said bridges and the bridge over the Market Passage hereinafter mentioned shall be constructed and maintained so as to prevent as far as reasonably practicable the dripping of water on to the roadway or footways thereunder :
- (6) The Company shall to the reasonable satisfaction of the corporation where necessitated by the lowering of the said carriageways strengthen and protect the sewers and gas and water mains under the roads which may be so lowered as aforesaid :
- (7) During the widening of the bridges hereinbefore referred to the Company may close the street under each bridge for such period or periods as may be reasonably

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necessary provided that the Company shall not close except with the consent of the corporation more than one of such streets at the same time :

- (8) Upon the work of increasing the spans of the said bridges and providing the said headways being completed the corporation shall pay to the Company the sum of one thousand pounds :
- (9) The Company in widening the bridge carrying their said railway over the Market Passage situate between Church Street and Water Street in the borough shall construct the abutments of the widened portions thereof in the alignment shown by red lines on the signed plan B The Company shall face the abutments of the said widened portions with a brindle brick dado four feet in height and above such height with white glazed bricks The Company shall also pay to the corporation the sum of one hundred pounds and the corporation shall thereupon be empowered to and shall at their own expense face the abutments of the existing bridge with tiles to be reasonably approved by the Company and the corporation shall upon receiving the said payment and upon the granting to them by the Company for the purpose of a free easement carry out at their own expense the necessary artificial lighting of the subway as so extended Provided that the said works in this subsection referred to shall be carried out under the superintendence if given and to the reasonable satisfaction of the engineer of the Company and so as in no way to injure or affect the stability of the structure of the said bridge and on and from the completion of the said works the corporation shall maintain the same to the like satisfaction :
- (10) The Company in widening their railway between Church Street and Water Street adjacent to the market buildings of the corporation and in front of any opening or window in the said buildings shall not construct a retaining wall on either side of the said railway to a greater height than one foot above the rail level but shall construct any fences above that height with open gas pipe hand railing supported by

standards and if they so require may place wire netting against the said hand railing : A.D. 1914.

- (11) The Company will permit the corporation free of any charge for easement and the corporation are hereby authorised to construct a public road bridge not more than forty feet in width across the said railway of the Company at a point immediately adjoining the field or enclosure numbered on the deposited plans for "Bridges and lands between Baglan and Port Talbot" 19 in the said borough. Such bridge shall be constructed with a clear span across the railway of not less than 58 feet and with a headway of not less than fifteen feet above the level of the rails at the point of crossing. Two months before the corporation commence to construct any part of the said bridge and works they shall submit to the Company plans sections and specifications of such works and the corporation shall comply with all reasonable requirements of the Company with regard to the execution thereof. Such plans sections and specifications shall be deemed to be approved by the Company if objection thereto in writing is not delivered to the corporation within one month after the delivery of the same to the Company and if any objection thereto in writing is so delivered in regard to which the corporation and the Company are unable to come to an agreement the plans sections and specifications shall be referred to and settled by arbitration under this section. The said works shall be constructed under the superintendence if given and to the reasonable satisfaction of the engineer of the Company and at such times as he may reasonably require and in accordance with the terms of an agreement to be entered into between the Company and the corporation which shall include the usual provisions applicable to the erection of such a structure across the railway of the Company including a provision that the Company shall not be put to any additional expense in widening their railway by reason of the existence of such bridge :
- (12) If in constructing the Deviation and Widening No. 2 by this Act authorised the Company decrease the width of the River Avan at any point between the bridge

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carrying the said railway of the Company over the said river and the weir in the said river immediately adjoining the junction on the Rhondda and Swansea Bay Railway known as Burrows Junction they shall raise and consequent on such raising strengthen where necessary the existing boundary wall on the north-western side of the said river between the said bridge and the south-western end of the said existing boundary wall situate at a point about fifty yards north-east of the said weir to such an extent as the Company and the corporation may agree or as failing agreement an arbitrator appointed as hereinafter provided may determine to be necessary to counteract any effect such narrowing of the river may have in rendering the adjoining part of the borough more liable to flooding. Such arbitrator shall also (failing agreement) determine what proportion (if any) of the cost of maintaining the wall so raised shall be borne by the Company and the reasonable costs incurred by the corporation in such arbitration shall be paid by the Company :

- (13) The corporation simultaneously with the construction of the said Deviation and Widening No. 2 shall in lieu of the existing footbridge known as Canister Bridge which crosses the River Avan at a point about seven chains south-west of the bridge carrying the said railway of the Company over the said river provide and thereafter maintain a new carriage bridge fifteen feet in width across the said river to connect with the existing passage from Water Street to Canister Bridge numbered on the deposited plans 45 in the borough in such position as having regard to the Company's works the Company may reasonably require and the Company shall pay to the corporation towards the cost of such bridge the sum of one hundred and fifty pounds and if the new road to be constructed by the Company under the section of this Act the marginal note of which is "For protection of Margam Urban District Council" be constructed on the south-eastern side of the Rhondda and Swansea Bay Railway as deviated under the powers of this Act the Company shall also at their

own expense provide an archway with a span of not less than fifteen feet so as to enable the Corporation to construct a carriageway of that width under the said Deviation and Widening No. 2 to join such new road. Such archway shall have a headway of not less than twelve feet to the crown and eight feet to the springing thereof. The said bridge over the river shall so far as it affects the property of the Rhondda and Swansea Bay Railway Company be constructed to their reasonable satisfaction and under their superintendence and in accordance with plans to be previously submitted to them for their reasonable approval. During the construction of the said bridge the corporation shall provide such temporary means of access for pedestrians across the said river as may be reasonably required:

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- (14) The Company in constructing the said Deviation and Widening No. 2 shall not interfere with or in any way obstruct the flow from the outfall of the main sewers of the corporation into the River Avan situate on the south-western side of the bridge carrying the Rhondda and Swansea Bay Railway over that river at Burrows Junction and in the event of their requiring to interfere with the outfall of the watercourse known as the Mother Ditch into the said river at the north-western end of the said bridge or with the said ditch or any culvert through which it may be conducted or with the embankment which is intended to be built for the protection of the outfall of the said ditch and culvert they shall carry out any diversion or substituted works which may be necessary to the reasonable satisfaction of the corporation:
- (15) If the Company construct the said Deviation and Widening No. 2 over the main sewers of the corporation or over the culvert conveying the Mother Ditch to the outfall of that watercourse they shall take such steps as may be required to strengthen the said sewers or the said culvert as the case may be as may be reasonably approved by the corporation:
- (16) Twenty-eight days before commencing the said diversion or substituted works or the strengthening of the said

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sewers or the said culvert as the case may be the Company shall submit to the corporation plans sections and particulars showing the character of such works and also of the railway works they propose to construct over the said sewers or over the said culvert as the case may be and the position of any manholes which may be necessary and if within twenty-one days after the delivery of such plans sections and particulars the corporation fail to signify their approval of so much thereof as relates to the said works (other than the railway works) they shall be deemed to have approved thereof If they signify their disapproval thereof then the said works (other than the railway works) shall be carried out and such manholes shall be provided if necessary in accordance with plans sections and particulars to be submitted to and approved by an arbitrator to be appointed as hereinafter provided The Company shall not commence any of the said works until they shall have given to the borough surveyor three clear days' notice in writing of their intention so to do and such notice shall not be given until the said period of twenty-eight days has expired or the said plans sections and particulars have been approved and the Company shall carry out all the said works to the reasonable satisfaction of the corporation and under their superintendence if given :

- (17) The Company shall pay to the corporation any reasonable expense incurred by them in altering the said sewers or the Mother Ditch rendered necessary in consequence of the construction of the said Deviation and Widening No. 2 over the said sewers or culvert :
- (18) (A) If prior to the construction of the said Deviation and Widening No. 2 the corporation obtain the consent of all persons having rights over the level crossing of the Rhondda and Swansea Bay Railway situate at or near a point 7 furlongs from the commencement of the said deviation and widening and numbered on the deposited plans thereof 70 in the parish and borough of Aberavon to the stopping up of the said level crossing the Company shall contemporaneously with the construction of the said

deviation and widening at their own expense construct a bridge thereunder as near as is reasonably practicable to the north-eastern end of the viaduct carrying the said existing railway over the River Avan at Velindre Such bridge shall have a clear span of not less than 25 feet between the piers or abutments thereof and the soffit of the superstructure thereof shall not be lower at any point than 47·50 feet above ordnance datum and the Company also at their own expense shall excavate the ground under the said bridge to a depth of 11 feet 6 inches below the said soffit level;

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(B) Contemporaneously with the construction and completion of the said bridge the corporation at their own expense shall construct make up and complete a new road between Cwmavon Road and Velindre or Avan Street passing under such bridge such road to be of a width of 25 feet with a headway under the bridge of not less than 10 feet 6 inches below the said soffit level;

(c) On the completion of the said bridge and road all rights of way over the said level crossing shall cease and determine and the Company shall be at liberty to remove the existing gates at the said crossing and fence in the railway property:

(19) If any difference shall arise between the Company and the corporation under this section the same shall be referred to and determined by an arbitrator to be appointed unless otherwise agreed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall (except as in this section provided) apply to any such reference.

52. The following provisions for the protection of the London and North Western Railway Company (hereinafter called "the North Western Company") shall unless otherwise agreed between the Company and the North Western Company apply and have effect (that is to say):—

For protection of London and North Western Railway Company.

(1) All rights powers and privileges which the North Western Company possess or are entitled to or may exercise over or upon or with reference to the

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—

Monmouthshire (Western Valleys) Railway of the Company under and by virtue of a memorandum of agreement dated the 1st day of July 1879 and made and entered into between the North Western Company of the first part the Monmouthshire Railway and Canal Company of the second part and the Company of the third part shall extend and apply to the Railway No. 6 by this Act authorised :

(2) All rights powers and privileges which the North Western Company possess or are entitled to over or upon the Company's Vale of Neath Railway under and by virtue of an agreement dated the 6th day of June 1866 and made between the North Western Company and the Company (and which said agreement is scheduled to and confirmed by the Great Western Railway (Vale of Neath) Amalgamation Act 1866) shall extend and apply to the Railways Nos. 9 and 10 by this Act authorised :

(3) The North Western Company may have and exercise over the additional line of rails at Tirydail by this Act authorised the same powers and privileges as are conferred on that company over the Llanelly Railway under and by virtue of a memorandum of agreement dated the 10th day of January 1889 and made and entered into between the North Western Company of the first part the Llanelly Dock and Railway Company of the second part and the Company of the third part but subject to the terms conditions and restrictions mentioned in the said agreement.

Vesting of
Railway No.
8 in Com-
pany and
Rhondda
Company
jointly.

53. Railway No. 8 by this Act authorised shall when constructed and opened for traffic vest in the Company and the Rhondda and Swansea Bay Railway Company jointly and in equal shares and shall be maintained at the joint and equal expense of those companies.

Vesting of
certain lines
in Rhondda
and Swansea
Bay Railway
Company.

54. From and after the completion of Deviation and Widening No. 2 and of the deviation alteration and extensions of the Rhondda and Swansea Bay Railway Company's Port Talbot Dock Branch Railway by this Act authorised the same shall vest in and form part of the undertaking of that company.

55. From and after the completion of the alteration and diversion of the Ogmore Valley Extension Railway of the Port Talbot Railway and Docks Company and of the deviation alteration and extension of that company's Aberavon Branch Railway and branch to Talbot Wharf by this Act authorised the same shall vest in and form part of the undertaking of that company.

Vesting of deviations alterations and extensions of Port Talbot Railway and Docks Company's railways in that company.

56. Subject to the provisions of this Act and in addition to the other lands which the Company are by this Act authorised to acquire the Company may enter upon take use and appropriate for the general purposes of their undertaking and works connected therewith and for providing increased accommodation and for providing accommodation for persons of the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company all or any of the lands following delineated on the deposited plans thereof and described in the deposited books of reference relating thereto (that is to say):—

Power to Company to acquire additional lands.

In the county of Middlesex—

Certain lands in the parish of West Drayton in the rural district of Uxbridge and in the parish and urban district of Yiewsley and in the parish of Harlington in the rural district of Staines and in the parish and urban district of Hayes lying on and adjoining both sides of the Company's main line of railway and extending from West Drayton and Yiewsley Station to the bridge carrying that railway over the Grand Junction Canal at the eastern end of Hayes and Harlington Station Provided always that notwithstanding anything shown on the deposited plans the Company shall not purchase or acquire under the powers of this Act any portion of the enclosures numbered on the deposited plans 13 14 and 14A in the parish of Yiewsley:

Certain lands in the parish and urban district of Hayes and in the parish of Norwood and urban district of Southall-Norwood lying on and adjoining the northern side of the said main line and extending from the said bridge over the said canal to the eastern boundary of the field or enclosure numbered on the deposited plans of "Bridges and lands between West Drayton and Southall Stations" 5 in the said parish of Norwood Provided always that nothing in this Act contained shall empower

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the Company to stop up or interfere with the rights of way to which the Brentford Gas Company are entitled over the said field or enclosure between the adjoining lands of that company and the subway under the railway leading to Tickler's Jam Factory :

Certain lands in the parish of Norwood and urban district of Southall-Norwood lying on and adjoining the northern side of the said main line and extending in an easterly direction for a distance of about 33 chains from Southall Station.

In the counties of Bucks and Middlesex—

Certain lands in the parishes of Langley Marish and Iver in the rural district of Eton and in the parish and urban district of Yiewsley lying on and adjoining the northern side of the said main line and extending from Langley Station to the bridge carrying that railway over the Company's Staines Branch Railway and to stop up and extinguish all rights of way over the portion of the said lands lying between Langley Station and Thorney Lane.

In the county of Bucks—

Certain lands in the parish of Langley Marish in the rural district of Eton lying on and adjoining the northern side of the said main line and extending in an easterly direction for a distance of about 10 chains from the bridge carrying the road leading from Langley Marish to Middle Green over the said main line.

In the county of Wilts—

Certain lands in the parish and borough of Swindon lying on and adjoining the north-western side of the Company's locomotive works and abutting on the south-eastern side of Redcliffe Street and to stop up and extinguish all rights of way over such lands :

Certain lands in the parish of Grafton in the rural district of Ramsbury lying on and adjoining the southern side of the Company's Berks and Hants Railway and at and near the junction known as Grafton Curve Junction with that railway of the railway connecting that railway with the Midland and South Western Junction Railway.

In the county of Gloucester—

Certain lands in the parish and urban district of Cirencester lying on and adjoining the north-eastern side of the

Company's Cirencester Branch Railway and between that railway Quern's Hill and Sheep Street : A.D. 1914.
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Certain lands in the parish of Stroud in the urban district of Stroud lying on and adjoining the north-eastern side of the Company's Cheltenham and Great Western Union Railway and between that railway and London Road and between Stroud Station and the bridge carrying the said railway over the Thames and Severn Canal at the south-eastern end of that station :

Certain lands in the parish of Cow Honeybourne in the rural district of Pebworth lying on and adjoining the northern side of the Company's Oxford Worcester and Wolverhampton Railway and at and near Honeybourne Station :

Certain lands in the parish and city and county borough of Bristol lying on and adjoining the southern side of the Company's Bristol Relief Line and between Albert Road Victoria Street and the locomotive depôt on that line at Saint Philip's Marsh.

In the county of Somerset—

Certain lands in the parish and city and county borough of Bristol lying between Mead Street and the Company's goods depôt at Pyle Hill :

Certain lands in the parish and city and county borough of Bristol lying on and adjoining the north-western side of the Company's Bristol and Exeter Railway and at and near Bedminster Station :

Certain lands in the parish of Bishopsworth in the rural district of Long Ashton and in the parish and city and county borough of Bristol lying on and adjoining the southern side of the Company's Bristol and Exeter Railway and between points respectively about 3 chains and 64 chains west of the junction known as Portishead Junction of the Bristol and Portishead Railway with that railway :

Certain lands in the parish of Yatton in the rural district of Long Ashton and in the parish of Congresbury in the rural district of Axbridge lying on and adjoining both sides of the Company's Bristol and Exeter Railway and extending from the level crossing by that railway of the road leading from the main road between Weston-super-

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Mare and Bristol to Huish Farm to a point about 11 chains south-west of Yatton Station :

Certain lands in the said parish of Yatton lying on and adjoining both sides of the said Bristol and Exeter Railway and extending from the bridge known as Yatton Bridge which carries the road leading from Axbridge to Clevedon over the said railway to the bridge carrying the road from Claverham to Kenn Moor over the said railway :

Certain lands in the parishes of Worle and Banwell in the rural district of Axbridge lying on and adjoining both sides of the said Bristol and Exeter Railway and extending from the bridge carrying Moor Lane over that railway near Worle Station to Puxton Station.

In the county of Dorset—

Certain lands in the parish of Melcombe Regis in the borough of Weymouth and Melcombe Regis lying on and adjoining the eastern side of the Company's Wilts Somerset and Weymouth Railway and at and near the engine shed on that railway.

In the county of Devon—

Certain lands in the parishes of Cullompton Willand and Halberton in the rural district of Tiverton lying on and adjoining both sides of the Company's Bristol and Exeter Railway and extending from Cullompton Station to a point about 24 chains north-east of Tiverton Junction Station :

Certain lands in the said parish of Willand lying on and adjoining the north-western side of the Company's Tiverton Branch Railway and west of and near to Tiverton Junction Station :

Certain lands in the parish of Exminster in the rural district of Saint Thomas lying on and adjoining both sides of the Company's South Devon Railway and between points respectively about 45 chains south-east and 33 chains north-west of the bridge carrying the road leading from Topsham Ferry to Exminster over that railway at the north-western end of Exminster Station :

Certain lands in the parishes of Woolborough and Milber in the urban district of Newton Abbot and in the parishes of Haccombe-with-Combe Teigngrace and Kingsteignton

in the rural district of Newton Abbot lying on and adjoining the south-eastern side of the said South Devon Railway and between that railway and the Hackney and Newton Channels of the River Teign near Hackney Sidings: A.D. 1914.

Certain lands in the parishes of Kingskerswell and Abbotskerswell in the rural district of Newton Abbot and in the parish of Milber in the urban district of Newton Abbot lying on and adjoining the eastern side of the Company's Torquay Branch Railway and between points respectively about 45 chains south and 34 chains north of the bridge known as Aller Bridge carrying the road leading from Aller to Ipplepen over that railway:

Certain lands in the parish of Abbotskerswell in the rural district of Newton Abbot lying between the Company's South Devon and Torquay Branch Railways and the said road:

Certain lands in the said parish of Abbotskerswell and in the parishes of Milber and Woolborough in the urban district of Newton Abbot lying on and adjoining the western side of the said South Devon Railway and extending from a point about 24 chains north-east of the bridge known as Langford Bridge carrying the road leading from Aller to Ipplepen over that railway to Keyberry Road:

Certain lands in the parish and urban district of Paignton lying on and adjoining the eastern side of the Company's Dartmouth and Torbay Branch Railway and at and near Paignton Station:

Certain lands in the parish and urban district of Ashburton lying on and adjoining the western side of the Company's Ashburton Branch Railway and between points respectively about 2 chains and 11 chains south of Ashburton Station:

Certain lands in the parish and county borough of Plymouth lying between the Company's South Devon Railway Laira Loop and Sutton Harbour Branch Railway:

Certain other land in the same parish and county borough lying on and adjoining the southern side of the said South Devon Railway and the western side of the said Laira Loop and between points respectively about 5 chains

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and 43 chains east of the bridge carrying the said South Devon Railway over Old Laira Road :

Certain other lands in the same parish and county borough lying on and adjoining the northern side of the said South Devon Railway and extending in an easterly direction for a distance of about 5 chains from the bridge carrying the said railway over Old Laira Road :

Certain other lands in the same parish and county borough lying on and adjoining the northern side of the said South Devon Railway and between points respectively about 3 chains and 9 chains west and 1 chain and 17 chains east of Lipson Vale Halt :

Certain other lands in the same parish and county borough lying on and adjoining the southern side of the said South Devon Railway and at and near Lipson Vale Halt.

In the county of Cornwall—

Certain lands in the parishes of Saint Blazey and Tywardreath in the rural district of Saint Austell lying on and adjoining the northern side of the Company's Fowey Branch Railway and extending in an easterly direction for a distance of about 60 chains from the bridge carrying the Company's Cornwall Railway over that railway at Par and all rights of way (if any) over the said lands shall as from the opening for public use of the footpath referred to in the section of this Act the marginal note of which is "For protection of St. Austell Rural District Council" be extinguished :

Certain lands in the parish of Roche in the rural district of Saint Austell lying on and adjoining the south-western side of the Company's Newquay and Carbis Branch Railways and between points respectively about 6 chains and 21 chains north-west of Bugle Station :

Certain lands in the parish of Saint Austell Rural in the rural district of Saint Austell lying on and adjoining the north-eastern side of the Company's Newquay Branch Railway and between points respectively about 5 chains and 59 chains south-east of Bugle Station :

Certain lands in the parish of Saint Columb Major in the rural district of Saint Columb Major lying on and adjoining the north-eastern side of the Company's Saint Dennis

Branch Railway and between points respectively about 9 chains and 29 chains south-east of the junction known as Saint Dennis Junction of that railway with the Newquay Branch Railway of the Company: A.D. 1914.

Certain lands in the parish of Newquay in the urban district of Newquay lying on and adjoining the eastern side of the approach road to Newquay Station and between that road Station Road Tolcarne Road and Tresillian Road.

In the county of Oxford—

Certain lands in the parish of Iffley in the rural district of Headington lying on and adjoining the northern side of the Company's Princes Risborough and Oxford Railway and between points respectively about 9 chains and 26 chains north-west of the bridge carrying the road leading from Henley to Oxford over that railway at Littlemore Station.

In the county of Worcester—

Certain lands in the parish of Church Honeybourne in the rural district of Evesham lying on and adjoining both sides of the Company's Honeybourne and Stratford-upon-Avon Railway and between points respectively about 6 chains and 46 chains north-east of the junction with that railway of the Cheltenham and Honeybourne Railway of the Company and in connection therewith the Company may alter and divert so much of the bridlepath intersecting the fields or enclosures numbered on the 25-inch Ordnance map (second edition 1902) of the said parish 105 and 107 as lies between points respectively about 6 chains and 37 chains north-east of the point of intersection by that path of the south-western boundary of the field or enclosure numbered 107 as aforesaid:

Certain lands in the parishes of Upper Swinford and Stourbridge in the urban district of Stourbridge and in the parish of Lye in the urban district of Lye and Wollescote lying on and adjoining both sides of the Company's Stourbridge Extension Railway and between points respectively about 6 chains south-west and 26 chains north-east of the bridge carrying the road known as Hungary Hill over that railway and in connection therewith they may alter and divert so much of the footpath near Saint Mark's Church and adjoining the south-eastern side of the

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said railway as lies between points respectively about 1 chain and 5 chains south-west of its junction with Stourbridge Road :

Certain lands in the parish of Lower Mitton in the urban district of Stourport lying on and adjoining both sides of the Company's Severn Valley Branch Railway and extending in a north-westerly direction for a distance of about 26 chains from Minster Road.

In the county of Warwick—

Certain lands in the parish and city and county borough of Birmingham lying on and adjoining the south-western side of the Company's Oxford and Birmingham Railway and between Sandy Lane and the Warwick and Birmingham Canal.

In the county of Stafford—

Certain lands in the parish and city and county borough of Birmingham lying on and adjoining the south-western side of the Company's Birmingham Wolverhampton and Dudley Railway and between that railway and Anne Road and between Perrott Street and Handsworth and Smethwick Station :

Certain lands in the parish and county borough of West Bromwich lying on and adjoining the southern side of the Company's Birmingham Wolverhampton and Dudley Railway and extending from Kenrick Park to Roebuck Lane and the Company may transfer and convey to the corporation of West Bromwich and that corporation may retain and hold the whole or such portion of the said lands as may be agreed between the Company and the said corporation :

Certain lands in the parish and urban district of Bilston lying on and adjoining the north-eastern side of the said Birmingham Wolverhampton and Dudley Railway and between points respectively about 9 chains and 28 chains south-east of Bilston Station :

Certain lands in the parish of Bushbury in the rural district of Cannock lying on and adjoining the north-eastern side of the Company's Shrewsbury and Birmingham Railway near Oxley Sidings and extending from the Staffordshire and Worcestershire Canal to the Birmingham Canal and

all public rights of way (if any) over the said lands shall as from the acquisition of the said lands by the Company be extinguished. A.D. 1914.

In the county of Salop—

Certain lands in the parish of Shifnal in the rural district of Shifnal and in the parish of Priorslee in the urban district of Oakengates lying on and adjoining the north-eastern side of the Company's Shrewsbury and Birmingham Railway and between points respectively about 4 chains and 27 chains north-west of the junction (known as Hollinswood Junction) with the said railway of the mineral railway from Priorslee Steel Works :

Certain lands in the said parish of Shifnal lying on and adjoining the western side of the Company's Shrewsbury and Birmingham Railway and Stirchley Branch Railway and between points respectively about 3 chains north-west and 20 chains south of the junction of those railways.

In the county of Denbigh—

Certain lands in the parish of Chirk in the rural district of Chirk lying on and adjoining the eastern side of the Company's Shrewsbury and Chester Railway and extending in a northerly direction for a distance of about 48 chains from the bridge carrying the road leading from Chirk Castle to Chirk over the said railway at the southern end of Chirk Station :

Certain lands in the parishes of Esclusham Below Ruabon and Rhosllanerchrugog in the rural district of Wrexham lying on and adjoining both sides of the Company's Shrewsbury and Chester Railway and extending in a northerly direction for a distance of about 51 chains from the crossing by that railway of Bangor Road and the Company may stop up and extinguish all rights of way (if any) over the said railway between the subway under and the footbridge over that railway situate at points respectively about 20 chains and 39 chains north of the said crossing and over so much of the footpath leading from Bent Lane to Ponkey as lies between points respectively about 9 chains north-west and 7 chains south-east of the level crossing by that footpath of the said railway and in lieu of the said portion of footpath

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the Company may and shall make a new footpath between the last-mentioned point and the footbridge over the said railway in the position and manner shown on the plan signed by Arthur Wellesley Soames the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred.

In the county of Monmouth—

Certain lands in the parish of Magor in the rural district of Magor and in the parish of Undy in the rural district of Chepstow lying on and adjoining the southern side of the Company's South Wales Railway and between points respectively about 14 chains and 42 chains east of Magor Station :

Certain lands in the said parish of Magor and in the parish of Llandavenny in the rural district of Magor lying on and adjoining the southern side of the said South Wales Railway and between points respectively about 4 and 12 chains and about 42 chains and 52 chains west of the level crossing by that railway of the road known as Bareland Street and leading from Green Moor to Magor :

Certain lands in the parish of Rogerstone in the rural district of Saint Mellons lying on and adjoining the south-western side of the Company's Monmouthshire (Western Valleys) Railway and between points respectively about 20 chains north-west of the bridge carrying that railway over the road known as Heol Gerrig and the bridge carrying the road leading from Risca to Newport over that railway at the north-western end of Rogerstone Station :

Certain other lands in the same parish and rural district lying on and adjoining the north-eastern side of the said Monmouthshire (Western Valleys) Railway and extending from the said road known as Heol Gerrig to the said road leading from Risca to Newport :

Certain other lands in the same parish and rural district lying on and adjoining the south-western side of the said Monmouthshire (Western Valleys) Railway and between points respectively about 6 chains and 16 chains south-east of the said road leading from Risca to Newport :

Certain other lands in the same parish and rural district A.D. 1914.

lying on and adjoining the north-eastern side of the said Monmouthshire (Western Valleys) Railway and extending from the bridge carrying the said road leading from Risca to Newport over the said railway at the north-western end of Rogerstone Station to the bridge carrying the road leading from Rogerstone to Bassaleg Station over the said railway at a point about 16 chains north-west of the last-mentioned station and all rights of way over (A) the footpath which joins the road leading from Risca to Newport at the north-western end of the first-mentioned bridge and (B) so much of the footpath which passes under the said railway in a subway near Adley Street Rogerstone as lies between that street and a point about 11 chains north-east of that subway shall as from the acquisition of the said lands be extinguished :

Certain other lands in the same parish and rural district lying on and adjoining the south-western side of the said Monmouthshire (Western Valleys) Railway and extending in a north-westerly direction for a distance of about 16 chains from Bassaleg Station :

Certain other lands in the same parish and rural district lying on and adjoining the south-western side of the said railway and of the Brecon and Merthyr and Alexandra (Newport and South Wales) Railways and at and near the junction known as Bassaleg Junction of those railways :

Certain lands in the parish and urban district of Abercarn lying on and adjoining the north-western side of the Monmouthshire (Western Valleys) Railway of the Company and the western side of the River Ebbw and between that railway and river and the Pennar Branch Railway of the Company near the gasworks of the Abercarn Urban District Council :

Certain lands in the parish and urban district of Abercarn and in the parish and urban district of Risca lying on and adjoining the eastern side of the said Monmouthshire (Western Valleys) Railway and extending from the bridge carrying that railway over the River Ebbw near to and on the southern side of the gasworks of the Abercarn Urban District Council to a point about 22 chains south of the viaduct carrying the Company's Pennar Branch Railway over the said railway :

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Certain lands in the parish and urban district of Abercarn partly lying on and adjoining both sides of the Company's Pennar Branch Railway and partly situate over the tunnel on that railway and between points respectively about 8 chains and 63 chains east of the junction of that railway with the Company's Newport Abergavenny and Hereford (Taff Vale Extension) Railway :

Certain lands in the parish of Saint Woollos in the rural district of Saint Mellons forming part of the site of the engine sheds of the Company now in course of construction near the junction known as Ebbw Junction of the western curve of the Company with the South Wales Railway of the Company :

Certain lands in the parish of Peterstone Wentlooge in the rural district of Saint Mellons lying on and adjoining the north-western side of the Company's South Wales Railway and at and near Marshfield Station.

In the county of Glamorgan—

Certain lands in the parish and urban district of Gelligaer and in the parish of Llanfabon in the urban district of Caerphilly lying on and adjoining both sides of the Company's Newport Abergavenny and Hereford (Taff Vale Extension) Railway and extending from Nelson and Llancaiach Station to a point about 23 chains south-east of the junction known as Penalltau Junction of the Rhymney Railway with that railway :

Certain lands in the parish and city and county borough of Cardiff lying on and adjoining both sides of the South Wales Railway of the Company and extending from the bridge carrying the Taff Vale Railway (East Branch) over that railway to the Newtown Goods Depôt of the Company and all public rights of way (if any) over and on the level of the said railway of the Company between the south-eastern end of Pellett Street and the north-western end of Pendoylan Place are hereby extinguished :

Provided that nothing contained in this Act or shown on the deposited plans shall prejudice lessen or affect any private rights of way over and on the level of the South Wales Railway of the Company between the south end of Pellett Street and the north-western end of Pendoylan Place in the city and county borough of Cardiff :

Certain lands in the same parish and city and county borough abutting on the northern side of Cowbridge Road and extending from the bridge carrying that road over the said South Wales Railway to the bridge carrying the Taff Vale Railway (Penarth Branch) over the said road : A.D. 1914.

Certain other lands in the same parish and city and county borough lying on and adjoining the north-eastern side of the said South Wales Railway and extending from the last-mentioned bridge to Lansdowne Road :

Certain other lands in the same parish and city and county borough lying on and adjoining both sides of the said South Wales Railway and being partly on the site of Grosvenor Street and the road leading to the sanatorium of the corporation of Cardiff and partly lands on both sides of the said street and road :

Certain other lands in the same parish and city and county borough partly lying on and adjoining the southern side of the said South Wales Railway and partly situate between Bassett Street and the southern side of the said railway and extending in a westerly direction for a distance of about 10 chains from that street and all rights of way (if any) over the said lands shall as from the acquisition of the said lands be extinguished :

Certain other lands in the same parish and city and county borough abutting on the western side of Leckwith Road and between the said railway and the Taff Vale Railway (Penarth Branch) :

Certain lands in the parishes of St. Fagans and Michaelstone-super-Ely in the rural district of Llandaff and Dinas Powis lying on and adjoining the south-eastern side of the Company's South Wales Railway and extending from the viaduct carrying the Barry Railway over that railway to a point about 11 chains south-west of St. Fagans Station :

Certain lands in the parishes of St. Fagans and Llandaff in the rural district of Llandaff and Dinas Powis lying on and adjoining both sides of the Company's South Wales Railway and extending from the bridge carrying that railway over the River Ely at St. Fagans Station to Ely Station :

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Certain lands in the parish of Llantrisant in the rural district of Llantrisant and Llantwit Fardre and in the parishes of Pendoylon and Peterstone-super-Ely in the rural district of Llandaff and Dinas Powis lying on and adjoining both sides of the Company's South Wales Railway and extending from the bridge carrying Cowbridge Road over that railway at Llantrisant Station to a point about 34 chains east of Peterston Station :

Certain lands in the parish of Peterston-super-Montem in the rural district of Cowbridge lying on and adjoining the southern side of the Company's Cardiff and Ogmore Branch Railway and at and near the junction known as South Rhondda Junction with that railway of the railway known as the South Rhondda Railway leading to the South Rhondda Colliery :

Certain lands in the parish and urban district of Margam lying on and adjoining both sides of the Company's South Wales Railway and extending from the sidings on that railway known as Margam Sidings to a point about 31 chains north-west of the bridge carrying the Port Talbot (Ogmore Valleys Extension) Railway over the said railway :

Certain lands in the parish and urban district of Margam and in the parishes of Kenfig Pyle and Tythegston Higher in the rural district of Penybont lying on and adjoining both sides of the Company's South Wales Railway and extending from a point about 9 chains north-west of the bridge lastly hereinbefore described to the sidings on that railway known as Stormy Sidings :

Provided always that the Company shall not purchase or acquire any greater portion than five acres of the lands known as Kenfig Common or Kenfig Down in the parish of Kenfig aforesaid :

Certain lands in the parishes of Tythegston Higher Laleston and Newcastle Higher in the rural district of Penybont and in the parish and urban district of Bridgend lying on and adjoining both sides of the Company's South Wales Railway and extending from the sidings on that railway known as Stormy Sidings to a point about 11 chains south-east of the bridge carrying the said railway over Quarella Road Bridgend :

Certain lands in the parish of Llangonoyd Lower in the rural district of Penybont lying on and adjoining the south-western side of the Company's Llynvi Valley Branch Railway and between the farms respectively known as Brynlllywarch-fawr and Gelli l s F ch : A.D. 1914.

Certain lands in the parish of Ynysawdre in the rural district of Penybont lying on and adjoining the north-eastern side of the Company's Ogmore Valley Branch Railway and between points respectively about 16 chains north-west and 8 chains east of the bridge carrying that railway over the River Llynfi near the engine shed at Tond  Junction :

Certain lands in the parish of Baglan Lower in the rural district of Neath and in the parish and borough of Aberavon and in the parish and urban district of Margam lying on and adjoining both sides of the Company's South Wales Railway and extending from a point about 39 chains south-east of the bridge carrying the said railway over the Rhondda and Swansea Bay Railway at Baglan to the bridge carrying the said South Wales Railway over the River Avan at Aberavon :

Certain lands in the parish and urban district of Margam lying on both sides of the said South Wales Railway between Baglan and Port Talbot and extending in a south-easterly direction for a distance of about 50 chains from the bridge carrying the said railway over the River Avan at Aberavon :

Notwithstanding anything in this Act contained the rights of the Postmaster-General under an agreement and grant under seal dated the 17th day of March 1900 and made between Emily Charlotte Talbot of the one part and the then Postmaster-General of the other part to place and maintain a telegraphic line in upon over along and across certain lands and buildings at or near Port Talbot shall remain in full force and be binding upon the Company as if the Company had been a party thereto and the Company shall not do anything which would injuriously affect the rights and interests of the Postmaster-General under the said agreement and grant without his consent in writing Provided that the Postmaster-General shall (in lieu of the alteration provided

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for by the said agreement and grant in certain events of that part of the said telegraphic line which lies between the Company's railway station at Port Talbot and the north-west end of Courtucha Terrace) at the request of the Company alter such part of the said telegraphic line to such other position on the Company's property as shall be reasonably satisfactory to the Postmaster-General upon condition that the said telegraphic line as so altered shall be deemed to be placed and maintained under the provisions of the said agreement and grant:

Certain other lands in the same parish and urban district lying on and adjoining the north-eastern side of the said South Wales Railway and between points respectively about 9 chains and 48 chains south-east of the bridge carrying the Port Talbot Railway and Docks Company's Docks Branch Railway over the said railway at Taibâch:

Certain lands in the parish of Coedfrank in the rural district of Neath lying between the Swansea and Neath Railway of the Company and the Rhondda and Swansea Bay Railway and between points respectively about 2 chains and 65 chains west of Briton Ferry Road Station measured along the first-mentioned railway:

Certain lands in the parishes of Blaenhondda and Llantwit Lower in the rural district of Neath lying on and adjoining both sides of the Company's Vale of Neath Railway and extending from a point about 11 chains south-west of the junction known as Neath Junction of that railway with the Company's Swansea and Neath Railway to a point about 60 chains north-east thereof:

Certain lands in the parish and county borough of Swansea lying on and adjoining the western side of the Company's Swansea Branch Railway and extending from the southern side of Pottery Street to the road known as Upper Strand and in connection therewith the Company may stop up and discontinue so much of Pottery Street as lies between its junction with the road known as The Strand and a point about 4 chains west thereof and so much of Powell Street as lies between its junction with The Strand and a point about $4\frac{1}{2}$ chains west thereof:

Certain lands in the parish and county borough of Swansea lying on and adjoining the western side of the Company's

Morrison Branch Railway and between points respectively about 11 chains and 26 chains south-west of the bridge carrying the main road leading from Swansea to Neath over the said railway : A.D. 1914.
—

Certain other lands in the same parish and county borough extending from the said Morrison Branch to Clydach Road and between points respectively about 2 chains and 4 chains south-west of the junction of Chemical Road with that road :

Certain lands in the parish of Llandilo Tal y bont in the rural district of Swansea lying on and adjoining the north-eastern side of the Company's Swansea District Railway and extending in a north-westerly direction for a distance of about 28 chains from the bridge carrying the road leading from Waun-gron to Cwm-Dulais over that railway :

Certain other lands in the same parish and rural district abutting on the western side of the said road and between points respectively about 2 chains and 5 chains north-east of the said bridge :

Certain lands in the parish of Loughor (Borough) in the rural district of Swansea lying on and adjoining the northern side of the Company's South Wales Railway and at and near Loughor Station.

In the county of Carmarthen—

Certain lands in the parish of Ammanford Urban and urban district of Ammanford lying on and adjoining both sides of the Company's Llanelli Railway and extending in a southerly direction for a distance of 20 chains or thereabouts from the level crossing at the northern end of Tirydail Station by that railway of the road leading from Saron to Llandybie :

Certain other lands in the same parish and urban district lying on and adjoining the eastern side of the said railway and between points respectively about 38 chains and 48 chains south of Tirydail Station :

Certain lands in the parish of Llanedy in the rural district of Llanelli lying between the Company's Llanelli Railway the Swansea District Railway and Hendy Loop Line and

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at and near the junction known as Morlais Junction of the last-mentioned railways :

Certain lands in the parish of Saint Peter's and borough of Carmarthen lying on and adjoining the south-eastern side of the Company's Carmarthen and Cardigan Branch Railway and between points respectively about 7 chains and 24 chains north-east of the engine shed on that railway adjoining East Parade Carmarthen.

As to prescribed distance under section 78 of Railways Clauses Consolidation Act 1845.

57. For the purposes of the application of the Railways Clauses Consolidation Act 1845 to and in respect of the lands acquired by the Company for Railways Nos. 1 2 9 and 10 respectively authorised by this Act and the land of the Ebbw Vale Steel Iron and Coal Company Limited acquired under the powers of this Act the prescribed distance referred to in section 78 of the said Act of 1845 shall be 40 yards together with a further distance equal to one-half the depth of the mines or minerals below the surface level of such lands.

For protection of Postmaster-General.

58. If any work authorised by this Act involves the removal or alteration of any post office letter-box not situated upon the Company's or the two companies' property (as the case may be) or the subject of a special arrangement between the Postmaster-General and the Company or the Two Companies (as the case may be) the Company or the Two Companies (as the case may be) shall not remove or alter such box but shall give notice to the Postmaster-General of the removal or alteration required and the Postmaster-General shall remove or alter the box as he may think fit and the Company or the Two Companies (as the case may be) shall pay to the Postmaster-General all expenses incurred by him in relation to such removal or alteration.

For protection of Commissioner of Police of Metropolis.

59. Seven days before entering upon breaking up or interfering with any public streets or roads under the provisions of this Act within the Metropolitan Police District the Company shall serve notice in writing on the Commissioner of Police of the Metropolis and make such arrangements as he may reasonably require with regard to the position of the roadworks and hoardings and the continuous carrying on of the work in order to minimise the interference with the street traffic.

For protection of Middlesex County Council.

60. The following provisions for the protection of the county council of the administrative county of Middlesex (in this section referred to as " the council ") shall unless otherwise agreed between

the Company and the council apply and have effect (that is to say):— A.D. 1914.

- (1) The Company shall not in the execution maintenance or repair of any works or in the exercise of any powers cause any diminution of the present available waterway of the River Colne or the Yeading Brook or interrupt the flow of water therein but the Company shall be at liberty to divert in manner to be reasonably approved by the council the said brook as they may deem necessary for the purposes of the said works:
- (2) All works to be executed by the Company over or affecting the said river and brook or the bed or banks thereof shall be executed according to plans sections and specifications to be submitted to and reasonably approved by the engineer of the council (in this section called "the county engineer") or in case of difference between the county engineer and the Company to be settled by arbitration as hereinafter provided previously to the commencement of such works Provided that if the county engineer shall for a period of one month from the submission of such plans sections and specifications neglect to signify his approval or disapproval of the same he shall be deemed to have approved thereof:
- (3) The said works shall be executed at the sole expense of the Company and under the superintendence (if such be given) and to the reasonable satisfaction of the county engineer and the Company shall thereafter at the like expense maintain the said works in good and substantial condition and repair to the reasonable satisfaction of the county engineer:
- (4) The Company shall in the execution of any such works or the exercise of any powers as aforesaid interfere as little as may be with the bed and banks of the said river and brook and shall at their own expense in a proper and workmanlike manner and to the reasonable satisfaction of the county engineer make good all damage injury or disturbance which shall happen or arise by reason or in consequence of any of the operations of the Company:
- (5) If any difference arises between the council or the county engineer and the Company under this section

A.D. 1914.

such difference shall unless otherwise agreed be referred to and determined by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and subject thereto the Arbitration Act 1889 shall apply to any such reference.

For protection of
Aeolian
Company
Limited.

61. Notwithstanding anything shown on the deposited plans the Company shall not unless otherwise agreed in writing between the Company and the Aeolian Company Limited take or acquire any area of the lands of the Aeolian Company Limited adjoining their main line of railway and numbered on the deposited plans 13 in the parish and urban district of Hayes of a greater width than 15 feet measured at right angles from the boundary of the said railway.

For protection of
Southall-
Norwood
Urban Dis-
trict Council.

62. For the protection of the Southall-Norwood Urban District Council (hereinafter called "the council") the following provisions shall unless otherwise agreed in writing between the Company and the council apply and have effect (that is to say) :—

- (1) The Company shall not in the execution maintenance or repair of any works or in the exercise of any powers cause any diminution of the present available waterway of the Yeading Brook or interrupt the flow of water therein but the Company shall be at liberty to divert the said brook as they may deem necessary for the purposes of the said works :
- (2) The Company shall not enclose any part of the street or land numbered on the deposited plans 15 in the parish of Norwood north of the green dotted line on the plan signed by William Wylie Grierson on behalf of the Company and Reginald Brown on behalf of the council :
- (3) The Company shall not purchase or acquire any portion of the lands numbered 16 on the deposited plans in the said parish north or north-west of the red line on the said plan signed as aforesaid :
- (4) In the event of any difference arising between the Company and the council with respect to any of the works and matters referred to in this section the same shall be referred to an arbitrator appointed in default of agreement by the President for the time being

of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 or any statutory modification shall apply to every such arbitration. A.D. 1914.

63. Notwithstanding anything contained in this Act or shown upon the deposited plans and sections the following provisions shall unless otherwise agreed between the Company and the company of proprietors of the Grand Junction Canal (in this section called "the canal company") apply for the protection of the canal company (that is to say):—

For protection of Grand Junction Canal Company.

- (1) The Company shall not under the powers of this Act otherwise than by agreement enter upon take or use any land or property of the canal company lying on and adjoining the southern side of the Grand Junction Canal between Hollow Hill Lane and Thorney Lane both in the parish of Iver:
- (2) In constructing maintaining and using the widening (hereinafter referred to as "the said widening") by this Act authorised of the bridge which carries the main line of railway of the Company over the Paddington Branch of the Grand Junction Canal (in this section called "the canal") in the parish of Norwood and urban district of Southall-Norwood in the county of Middlesex and the other works which the Company are by this section required to construct the Company shall not except as in this section provided alter the line or level of the canal or the towing path or works thereof or obstruct or impede the navigation of the canal or the passage of traffic along the same or along the towing path or the free flow of water along the canal or cause or permit any leakage or loss of water from the canal or except to the extent and in the manner authorised by this section and shown on the plan referred to in subsection (4) hereof and temporarily for the purposes of and during the execution of the said widening and works and subject in both cases as hereinafter provided contract the present width of the waterway or towing path of the canal or otherwise interfere with or damage the same:
- (3) The Company may acquire and the canal company may and shall grant to the Company free of charge

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therefor such an easement as may be necessary for constructing maintaining and using the said widening and the works in connection therewith hereinafter required to be constructed by the Company subject to the provisions and restrictions contained in this section :

- (4) The said widening shall be constructed of brick stone concrete steel or iron or any of those materials combined and shall be carried over the canal and the towing path thereof by clear spans with a clear headway throughout of not less than ten feet six inches above the weir level of the canal viz. 98.01 feet above Ordnance datum and the abutments of the said widenings shall not exceed the respective widths and shall be constructed with the faces thereof in the positions shown by lines edged red on the plan signed by William Wylie Grierson on behalf of the Company and by Gordon Cale Thomas on behalf of the canal company (hereinafter in this section referred to as "the plan") and the south-eastern end of the southern abutment of the existing bridge shall be rounded off as indicated on the plan. Provided always that the Company may place any necessary foundations or footings in front of the face lines of the abutments and waterway wall shown on the said plan but no part of such foundations or footings shall be less than six feet below the said weir level of the canal :
- (5) Contemporaneously with the construction of the first section of the said widening and for the purpose of increasing the span of the original portion of the existing bridge over the canal the Company shall at their own expense (except as hereinafter provided) remove so much of the intermediate pier and arch of the existing bridge on the north-west side of the canal (which said pier and arch are coloured green on the plan) as is more than 18 inches above the said weir level and shall reconstruct the superstructure of the portion of the existing bridge which is hatched red on the plan so that the same as reconstructed shall have a clear span between the existing main abutments with a headway over the canal of not less

than the headway by this section required to be provided in the construction of the said widening and shall so far as may be necessitated by such reconstruction strengthen the western abutment of the said portion of the existing bridge Provided that the Company shall be at liberty to exercise the powers of the agreement made the 18th day of January 1906 between the canal company of the one part and the Company of the other part to widen the existing bridge on the northern side thereof on the abutments already constructed by the Company for such purpose :

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- (6) For the purpose of widening the waterway of the canal under the existing bridge the canal company may at their own expense after the Company have removed the said portion of the intermediate pier and arch remove the remainder of the said pier and the invert thereof and the waterway walls and other works coloured blue on the plan and widen the waterway of the canal so that the same shall extend from the face of the north-western abutment of the bridge as reconstructed to the face line of the waterway wall on the south-east side of the canal beneath the said bridge Provided always that in carrying out such works the canal company shall not in any way endanger the stability of the railway and shall execute such works as may be necessary to secure such stability :
- (7) The Company shall at their own expense contemporaneously with the construction of the said widening or any portion thereof on the southern side of the existing bridge construct in the positions shown by red lines on the plan extensions of the existing waterway walls on the south-east and south-west sides of the canal under and adjoining the southern widening as shown on the plan such extensions to be constructed of such materials as the engineer of the canal company shall reasonably require and to be bonded into the existing waterway wall and to be of the same height above and to extend to the same depth below the weir level of the canal as the adjoining existing waterway walls respectively or

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to such a depth as will be sufficient to provide for a depth of water in the canal of six feet whichever may be the lesser depth:

- (8) The Company shall in reconstructing the original portion of the said bridge provide on either side thereof a light and air space not less than two feet six inches in width for the total span of the bridge:
- (9) The Company shall at all times during the construction of the said widening and of the works by this section required to be executed by the Company in connection therewith and during any future repairs thereof keep an uninterrupted navigable width of waterway in the canal of not less than 20 feet with a clear width of towing path of not less than six feet and a clear headway throughout of not less than nine feet above the said weir level of the canal. Provided always that the canal company shall afford the Company all reasonable facilities for the construction and maintenance of the said widening and other works:
- (10) The Company shall be at liberty to construct the said widening below a height of 18 inches above the said weir level in two separate sections and above the said height in three separate sections but each section of such widening and the works connected therewith shall be completed within a period of twelve months from the commencement of any such section and the said widening shall at all times be maintained in good and substantial repair by and at the expense of the Company. In the event of the Company at any time neglecting after notice from the canal company to maintain or repair the said widening or any part thereof the canal company may repair the same and recover the expenses reasonably incurred by them in so doing from the Company:
- (11) The said widening and works and all future repairs thereof shall be constructed in accordance with plans sections and descriptions to be submitted to and to be subject to the reasonable approval of the engineer of the canal company previously to the commencement of the works and shall be carried out and completed under the superintendence (if such shall be given) and to the reasonable satisfaction of such

engineer Provided that if such engineer shall not signify his disapproval of the said plans sections and descriptions within one month after the same shall have been submitted to him he shall be deemed to have approved the same : A.D. 1914.

(12) If in or by reason of the construction of the said widening or works or any part thereof or if in the maintenance repair or use of the said widening and works or by reason of any defect failure or want of repair thereof respectively any injury to the canal or the towing path or works thereof or other property of the canal company or any obstruction to the navigation of the canal or the passage of traffic along the same or along the towing path or to the free flow of water along the canal contrary to the provisions of this section or any loss of water from the canal shall at any time be occasioned the Company shall forthwith when required in writing so to do by the canal company at their own expense restore the canal towing path works and property of the canal company to (so far as may be reasonably practicable) the same state and condition as before the happening of such injury or remove such obstruction or prevent such loss or further loss of water as the case may require under the superintendence (if such be given) and to the reasonable satisfaction of the engineer of the canal company and in case of default by the Company in so doing or in cases of emergency the canal company may do the same and recover the expenses reasonably incurred by them in so doing from the Company :

(13) The Company shall also compensate and indemnify the canal company for and in respect of all damage loss costs expenses claims and demands which the canal company may sustain incur or have to pay or which may be brought against them by reason of any such injury obstruction or loss of water as in the immediately preceding subsection mentioned or otherwise by reason of the construction of the said widening or works or the use or maintenance or the failure or want of repair of the said widening and works or of

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any act or omission of the Company their contractors agents servants or workmen :

(14) Within one month after the completion by the Company of the reconstruction of the portion of the existing bridge referred to in subsection (5) of this section to the reasonable satisfaction of the engineer of the canal company the canal company shall pay to the Company the sum of 500*l.* and in case of default the canal company shall pay interest thereon at the rate of 5*l.* per centum per annum from the expiration of such month to the date of actual payment :

(15) The Company shall extend and keep open the following subways under their railway as widened from time to time with the same respective span and headway as that of the existing structure in each case :—

(A) The subway adjoining Tickler's Jam Factory giving access to Durdans Dock in the parish of Norwood and urban district of Southall-Norwood passing under the Company's railway at a point about 10 miles 7 chains measured along that railway from Paddington ;

(B) The subway leading from the Helical Gear Works in the parish and urban district of Yiewsley passing under the Company's railway at a point about 12 miles 70½ chains measured along that railway from Paddington ;

(C) The subway leading from the chemical works in the said parish and urban district of Yiewsley passing under the Company's railway at a point about 13 miles 8 chains measured along that railway from Paddington :

(16) The Company shall not close or in any way interfere with the use as enjoyed before the passing of this Act of either of the winding holes situate in the parish and urban district of Yiewsley and numbered on the deposited plans of the "Bridges and lands between West Drayton and Southall Stations" 12 and 33 in that parish until they shall have provided in such position near and to the west of the Hillingdon

Varnish Works as shall be agreed between the Company and the canal company or failing agreement as shall be determined by arbitration in manner hereinafter provided a winding hole for the accommodation of the traffic on the canal of such dimensions and character as shall be so agreed or determined The canal company shall be entitled to the same rights and interests in and over the said new winding hole as they are entitled to in and over the existing winding hole numbered 12 on the deposited plans aforesaid without payment of any consideration therefor and in exchange for their interest in the said existing winding holes :

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- (17) If any difference shall arise between the Company and the canal company under this section the same shall be determined by the arbitration of an engineer or other fit person to be agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either the Company or the canal company and in all other respects the provisions of the Arbitration Act 1889 shall apply to such arbitration.

64. Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not enter upon take use or appropriate any greater quantity of the lands numbered on the said plans 15 16 and 17 in the parish of Norwood in the urban district of Southall-Norwood than the portions thereof coloured pink and blue respectively on the plan signed in duplicate by Henry Little on behalf of the Right Honourable Victor Albert George Earl of Jersey and by William Wylie Grierson on behalf of the Company.

For protection of Lord Jersey.

65. For the protection of Wilkinson Heywood and Clark Limited (in this section referred to as "the limited company") the following provisions shall unless otherwise agreed in writing between the limited company and the Company apply and have effect (that is to say) :—

For protection of Wilkinson Heywood and Clark Limited.

- (1) If in executing any works upon so much of the lands in the parish of Yiewsley referred to in the section of this Act of which the marginal note is "Power to Company to acquire additional lands" as are situate on the northern side of the Company's main line between

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Horton Bridge and the Hillingdon Varnish Works of the limited company the Company require to interfere with any portion of the existing footpath along or near to the southern bank of the Grand Junction Canal and between the said works and Horton Bridge they shall divert the said portion of the footpath in as convenient a manner as circumstances reasonably permit Such diverted footpath shall have a width of not less than four feet and shall be constructed to the reasonable satisfaction of the limited company and shall so far as reasonably practicable afford as convenient facilities as those afforded by the said existing footpath The Company shall not interfere with the said existing footpath until such diverted footpath shall have been completed ready for use :

- (2) The limited company and their officers and employees and all persons having occasion to pass to or from the said Hillingdon Varnish Works shall at all times after the completion of the said diverted footpath have the same rights of way and passage over and along the same as over the existing footpath :
- (3) If any difference shall arise under this section between the limited company and the Company such difference shall be referred to and be determined by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party after notice to the other of them by the President of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889.

For protection of William Lansdown Goldsworthy.

66. Notwithstanding anything shown on the deposited plans the following provisions shall unless otherwise agreed apply and have effect for the protection and benefit of William Lansdown Goldsworthy or other the owner or owners for the time being of the premises known as Thorney Weir Fishery in the parish of Iver in the county of Bucks (all of whom are in this section included in the expression "the owner") (that is to say):—

- (1) The Company shall not acquire or in any manner stop or interfere with any rights of fishing or boating which the owner may have in the River Colne in the neigh-

bourhood of the said premises or with any rights he may have in or to the water of the said river: A.D. 1914.

- (2) If in constructing under the powers of this Act any widening of the bridge carrying their main line of railway over the said river in the neighbourhood of the owner's said premises the Company require to stop up or remove the footpath along the eastern bank of the said river on the northern side of the said railway within the limits of the property now belonging to or hereafter acquired by the Company under this Act they shall provide a footbridge under the widened portion of the said bridge similar to and in continuation of the existing bridge and shall at all times maintain and keep open the same in good order and condition for the use and benefit of the owner and all persons duly authorised by him so as to afford free and uninterrupted access between the owner's lands on the northern and southern sides of the said main line:
- (3) If in constructing the said works the Company require to remove or interfere with the existing footbridge across the said river on the northern side of the said main line giving access from the owner's lands on the east bank of the said river to his lands on the west bank thereof they shall construct a similar footbridge across the said river in substitution therefor in a reasonably convenient position and the Company shall after its construction at all times maintain and keep the said substituted footbridge in good order and condition for the use and benefit of the owner and all persons duly authorised by him so as to afford free and uninterrupted access across the said river between the east and west banks thereof:
- (4) Any difference which may arise between the owner and the Company as to the true intent and meaning of this section or as to the mode of giving effect thereto shall be settled by an engineer appointed (unless otherwise agreed) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

67. For the protection of the lord mayor aldermen and burgesses of the city of Bristol (in this section referred to as For protection of

A.D. 1914. "the corporation") the following provisions shall unless other-
Bristol wise agreed in writing between the corporation and the Company
Corporation. apply and have effect (that is to say):—

- (1) Not less than one month before commencing to execute under the powers of this Act the widening of the bridge in the city of Bristol which carries the Bristol and Exeter Railway of the Company over the road connecting Hereford Street with Windmill Hill Road at the south-western end of Bedminster Station (which bridge is in this section referred to as "the Windmill Hill Road Bridge") the Company shall submit to the corporation for their reasonable approval (subject to the express provisions of this section) detailed plans and sections showing the alignment and levels of the said widening and of the works in connection therewith which the Company are by this section required to execute and a description of the proposed mode of executing the works and if the corporation shall within the said period of one month in writing intimate to the Company any objection to the plans sections and description so submitted or make any requirement with respect thereto with which the Company shall be unwilling to comply the matter in difference shall be determined by arbitration as hereinafter provided:
- (2) Subject to the express provisions of this section the said widening of the Windmill Hill Road Bridge and the said works in connection therewith shall not be executed otherwise than in accordance with the plans sections and description relating thereto as approved by the corporation or (in case of difference) settled by an arbitrator and the said widening and works so far as they may affect the roadway passing under the said bridge shall be executed under the supervision (if given) and to the reasonable satisfaction of the corporation:
- (3) (A) The Company shall construct the said widening of the Windmill Hill Road Bridge and reconstruct and widen the existing bridge in the lines shown on the plan marked A signed by William Wylie Grierson on behalf of the Company and Lessel Stephen Mackenzie on behalf of the corporation and so that the lowest part of the soffit of the superstructure of the said bridge

over the carriageway as widened and reconstructed shall not be at any lower level than that indicated by the red line on the section shown on the said plan A ;

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- (B) The said widening and reconstruction shall be so carried out as to admit of the construction by the corporation throughout the width of the Windmill Hill Road Bridge as widened and reconstructed of a carriageway not less than 16 feet in width between the kerbs with a footway on each side thereof not less than 7 feet in width. The Company shall be at liberty to place and maintain on each of the said footways and within 10 inches of such kerbs a row of columns for supporting the said widened and reconstructed bridge each column not to exceed 12 inches in width and with an interval between the columns of not less than 6 feet ;
- (c) Upon the completion of the said widening and reconstruction in accordance with the provisions of this section the corporation shall pay to the Company by way of contribution to the cost of the reconstruction of the existing bridge and the additional cost of maintaining the said existing bridge as reconstructed the sum of one thousand five hundred pounds ;
- (D) The corporation shall be at liberty at their own expense to lower to such extent as they may think fit the level of any part of the street which passes under the Windmill Hill Road Bridge and shall at the like expense make up as part of the said street such portions of land as are added to the roadway in consequence of the widening and reconstruction of the said bridge. Provided that in carrying out such works they shall not injure or affect the stability of the said bridge as widened and reconstructed. The corporation shall at the like expense make such arrangements as may be necessary in respect of any interference with the steps leading to Richmond Terrace due to the construction of the said bridge works or to any alteration of the road passing under Windmill Hill Road Bridge and the corporation shall indemnify the Company against any claims for compensation

A.D. 1914.

which may be made against them in respect of such interference or of the alteration of the said street :

- (4) In executing the said widening of the Windmill Hill Road Bridge and the said works in connection therewith—

(A) The Company shall make arrangements to the reasonable satisfaction of the corporation for the passage of pedestrian traffic under the said bridge and shall be at liberty to close for vehicular traffic the road passing under the said bridge for such period as may be reasonably necessary for the construction of the said works ;

(B) The Company shall take all such precautions as the corporation may from time to time reasonably require for preventing injury to persons passing along the said road :

- (5) The Company shall at their own expense and to the reasonable satisfaction of the corporation properly guard and light the said works during the execution thereof so far as they may affect the traffic on the said road :

- (6) If the Company shall acquire as part of the lands required for the lengthening of the bridge in the said city which carries Barrow Road over the Bristol and South Wales Union Railway and the Bristol Loop Line of the Company the portion of land coloured red on the plan marked B signed as aforesaid they shall forthwith after such acquisition throw into the public highway and dedicate as part of Barrow Road aforesaid the surface of the said portion of land :

- (7) If the Company shall acquire the lands in the said city referred to in the section of this Act of which the marginal note is " Power to Company to acquire additional lands " and therein described as lying on and adjoining the southern side of the Company's Bristol Relief Line and between Albert Road Victoria Street and the locomotive depôt on that line at Saint Philip's Marsh they shall forthwith after such acquisition convey to the corporation the portion of the said lands which is coloured pink on the plan marked C signed as aforesaid and upon such conveyance the

land coloured blue on the said plan marked C shall vest in and become the property of the Company or other the owner or owners of the lands upon which the said land coloured blue abuts and the said land coloured blue shall cease to form part of the highway and all rights of way and other public rights thereover shall by virtue of this Act be extinguished; A.D. 1914.

The said land coloured pink shall as soon as practicable after the conveyance thereof to the corporation pursuant to the provisions of this subsection be added to and shall at all times thereafter form part of the public highway :

- (8) If the Company shall acquire any portion of the lands in the said city referred to in the said section of this Act of which the marginal note is "Power to Company to acquire additional lands" and therein described as lying on and adjoining the southern side of the Company's Bristol and Exeter Railway and between points respectively about 3 chains and 64 chains west of the junction known as Portishead Junction of the Bristol and Portishead Railway with that railway which abuts on Bedminster Down Road and which is coloured blue on the plan marked D signed as aforesaid they shall not construct any works or erect any building or structure thereon but shall throw into the public highway and dedicate as part of Bedminster Down Road aforesaid the surface of the same :
- (9) (A) Notwithstanding anything contained in this Act or shown on the deposited plans of the lands referred to in the last preceding subsection the Company shall not acquire any greater or other part of the enclosure numbered on those plans 6 in the parish of Bristol than the portion thereof coloured red on the said plan D;
- (B) If the Company shall acquire the whole or any part of the land so coloured red on the said plan marked D they shall to the reasonable satisfaction of the corporation erect and at all times thereafter maintain a boundary wall not less than six feet in height between the land so acquired and the remainder of the said enclosure ;

A.D. 1914.
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- (c) If in constructing any works on the said land coloured red or any part thereof the Company require to in any way disturb the drain passing through the said land into the culvert or ditch adjoining the railway of the Company the Company shall make such alterations to the said drain as may be reasonably required by the corporation and the corporation shall be entitled to maintain repair and renew the said drain and for those purposes and for the purposes of inspecting the said drain to enter upon the said land and execute and do all such works and things as may be necessary making good to the reasonable satisfaction of the Company any damage thereby caused to the property of the Company Provided that nothing in this subsection shall be deemed to confer upon the corporation any right of discharging drainage into the said culvert or ditch which they did not possess immediately before the passing of this Act :
- (10) If any difference shall arise under this section between the corporation and the Company for the determination of which no other provision is made by this section such difference shall be determined by an arbitrator to be agreed upon between the corporation and the Company or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such determination :
- (11) (A) The corporation may from time to time in addition to any moneys they are now authorised to borrow or which they may be authorised to borrow under the provisions of any other Act borrow at interest on the security of the district fund and general district rate of the city of Bristol such sum or sums of money as they may require for the purpose of the contribution to be made by them under paragraph (c) of subsection (3) of this section and for defraying any expenses incurred by them under paragraph (d) of that subsection and in order to secure the repayment of the moneys borrowed under this section and the payment

of the interest thereon the corporation may mortgage or charge the said fund and rate; A.D. 1914.

- (B) The corporation shall pay off all moneys borrowed by them under this section within 40 years from the date or respective dates of borrowing and the said period shall be the prescribed period within the meaning of the sections of the Bristol Corporation Act 1911 hereinafter mentioned and shall be the prescribed period for the purposes of the Local Loans Act 1875;
- (c) The provisions of section 15 "Period for payment off of moneys borrowed" section 16 "Incorporation of certain sections of Corporation Act of 1897 and Act of 1901" and section 17 "Power to reborrow" of the Bristol Corporation Act 1911 shall so far as they are applicable apply to the borrowing of money by the corporation under this section and to the repayment thereof but such power of borrowing shall not be restricted by any of the provisions of the Public Health Act 1875 and in calculating the amount which the corporation may borrow under this Act any sum which they may borrow under this section shall not be reckoned with.

68. For the protection of the commissioners of sewers for the county of Somerset (hereinafter called "the commissioners") the following provisions shall unless otherwise agreed between the Company and the commissioners have effect (that is to say) :—

For protection of commissioners of sewers for county of Somerset.

- (1) All works constructed under this Act affecting the sea-banks walls rivers rhynes ditches streams or other works under the jurisdiction or management of the commissioners shall be made and executed so as not to impede the drainage of any lands within the jurisdiction of the commissioners and the Company shall not commence such works until they shall have given to the commissioners twenty-eight days' notice in writing addressed to their clerk of the Company's intention to commence the same accompanied by plans and sections of the said works and until the commissioners shall have signified their approval of the same Provided that if the commissioners disapprove the same within twenty-eight days after

A.D. 1914.

service of the said notice and delivery of the said plans and sections as aforesaid the Company shall not commence such works until the said plans and sections shall unless otherwise agreed have been settled by an arbitrator to be appointed as hereinafter provided. Provided further that if the commissioners fail for twenty-eight days after service of the said notice and delivery of the said plans and sections to signify their approval or disapproval of the same the Company may proceed to carry out the work in accordance with the plans and sections submitted by them. The Company shall comply with and conform to all reasonable requirements of the commissioners in the execution and subsequent maintenance of the said works and shall if necessary provide by new altered or substituted works (the maintenance and renewal of which shall be a liability upon the Company) for the proper protection of and for preventing injury to the sea banks walls and other works hereinafter referred to by reason of the works by this Act authorised or any part thereof and all such new altered or substituted works shall be constructed to the reasonable satisfaction of the commissioners and all reasonable costs charges and expenses which the commissioners may be put to preliminary to and in superintending the carrying out of the works by this Act authorised or by reason of any default of the Company in complying with the provisions of this section shall be paid to the commissioners by the Company on demand and when any such new altered or substituted work as aforesaid shall be completed by and at the costs charges and expenses of the Company under the provisions of this Act the same shall be as fully and completely under the jurisdiction and control of the commissioners as any sewers water-courses streams sea banks walls or other works now are or hereafter may be:

- (2) All bridges culverts and other works over any river rhyne ditch or stream under the jurisdiction of the commissioners extended under the powers conferred by this Act shall be of the same span and sectional area as that of the existing bridge culvert or other

work so extended and shall be constructed to the reasonable satisfaction of the commissioners: A.D. 1914.

- (3) Any question by this section referred to arbitration or any other difference which may arise between the Company and the commissioners under this section shall be determined by an arbitrator to be appointed unless otherwise agreed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply thereto.

69. The following provisions for the protection of the Teignmouth Harbour Commissioners (hereinafter in this section referred to as "the commissioners") shall unless otherwise agreed between the Company and the commissioners apply and have effect (that is to say):—

For protection of Teignmouth Harbour Commissioners.

- (1) The Company shall repay to the commissioners the additional costs (if any) incurred by them in maintaining the Newton and Hackney Channels to their present depth by reason of any works constructed by the Company below high-water mark on the lands lying between the South Devon Railway of the Company the Hackney Channel and the Newton Channel of the River Teign which they are by this Act authorised to purchase and acquire and shall so construct their works on the said lands above high water mark as not to cause any deposit in the said channels from the said lands. The Company shall be at liberty to stop up the various channels intersecting the said lands:

- (2) Any difference arising between the Company and the commissioners with reference to the provisions of this section shall unless otherwise agreed be determined by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply thereto.

70. Except in so far as may be otherwise agreed nothing in this Act contained shall take away lessen prejudice alter or affect the property powers rights and interests of the London and South Western Railway Company.

For protection of London and South Western Railway Company.

A.D. 1914.

For pro-
tection of
St. Austell
Rural Dis-
trict Council.

71. For the protection of the council of the rural district of St. Austell in the county of Cornwall (in this section referred to as "the council") the following provisions shall unless otherwise agreed between the Company and the council apply and have effect (that is to say):—

- (1) The Company shall not acquire any portion of the wastrel lands forming parts of the lands numbered upon the deposited plans 13 14 and 15 in the parish of Tywardreath which lies within a distance of 25 feet of the footpath on the southern side of the road leading from Par Green to Fowey :
- (2) Before constructing any works across the lands numbered on the deposited plans 17 and 24 in the said parish the Company shall construct for the use of the public for the purpose of giving access from and to the said road to and from the lands and beach on the south side of the railway a footpath not less than 4 feet in width in a position to be reasonably approved by the council as far west as may be reasonably practicable having regard to the position of the lines of rails to be laid down by the Company between the eastern boundary of the field or enclosure numbered 14 and the existing level crossing of the Company's Fowey Branch Railway situate on the southern side of the field or enclosure numbered on the said plans 24 in the said parish Such footpath shall be carried across the said railway and the said lines of rails by means of a footbridge having all necessary parapets and steps and such footpath and footbridge shall be constructed by the Company to the reasonable satisfaction of the council who shall undertake such lighting and sanding thereof as may be necessary :
- (3) In case any difference or dispute shall arise between the council and the Company touching or concerning the true intent of the provisions in this section contained or anything to be done or not to be done hereunder such difference shall be determined by arbitration by a single arbitrator to be appointed unless otherwise agreed between the parties by the Board of Trade on the application of either party and the provisions of the Arbitration Act 1889 shall apply thereto.

72. Before closing the road numbered on the deposited plans 2 in the parish of Tywardreath in the county of Cornwall the Company shall pay to the parish council of that parish the sum of fifty pounds in full compensation for all rights over or in connection with the said road.

A.D. 1914.
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For protection of Tywardreath Parish Council.

73. Notwithstanding anything contained in this Act or shewn on the deposited plans or described in the deposited book of reference the following provisions for the protection and benefit of the mayor aldermen and burgesses of the county borough of Wolverhampton (in this section referred to as "the corporation") shall unless otherwise agreed in writing between the Company and the corporation apply and have effect (that is to say):—

For protection of corporation of Wolverhampton.

- (1) Before constructing or laying down any railway sidings buildings or other works across overlying or affecting any portion of the existing sewer and sewage duct or conduit of the corporation situate on the lands in the parish of Bushbury numbered 5 on the deposited plans relating to the acquisition of "Lands near Oxley Sidings Bushbury" the Company shall at their own expense in all things divert or (if the corporation so determine as hereinafter provided) permit the corporation at the Company's expense in all things to divert the said sewer and sewage duct or conduit so that the same shall pass under the viaducts carrying the Company's railway over the Staffordshire and Worcestershire Canal and in the line indicated in green upon the plan which has been signed in duplicate by William Wylie Grierson on behalf of the Company and by George Green borough surveyor of Wolverhampton on behalf of the corporation or in such other line as may be agreed between the corporation and the Company and as may be equally suitable so far as circumstances may permit for the purposes of such sewer and sewage duct or conduit. Such diverted sewer and sewage duct or conduit shall consist either of an open or a closed culvert or duct of at least the same available capacity and area as that of the existing sewer and sewage duct or conduit respectively or of pipes supported where necessary on pillars and shall be carried out in accordance with detailed plans and sections to be previously submitted to and reasonably approved by the engineer of the corporation:

A.D. 1914.

- (2) The Company shall grant or convey to the corporation free of cost and expense all necessary easements and rights over any lands belonging to the Company or which they may acquire for the construction and maintenance of the diverted sewer and sewage duct or conduit in manner aforesaid and the corporation shall at the expense of the Company in all things acquire all necessary easements and rights over lands not belonging to or acquired by the Company and the Company shall indemnify the corporation against all costs and expenses in connection with the matters aforesaid and also against all claims or demands for compensation or damage in respect of such acquisition construction and maintenance whether under the Wolverhampton Improvement Act 1869 the Public Health Act 1875 or any Act amending the same respectively or otherwise :
- (3) The Company shall give twenty-eight days' notice in writing to the corporation of their intention to commence such diversion and if within the said period of twenty-eight days the corporation give notice to the Company that they desire themselves to execute such diversion it shall be lawful for them so to do and the Company shall on demand repay to the corporation the reasonable expense incurred by them in so doing :
- (4) If the said diversion is executed by the Company it shall be executed under the superintendence (if given) and to the reasonable satisfaction of the surveyor to the corporation :
- (5) The diverted sewer and sewage duct or conduit shall be provided at the cost of the Company with all necessary works and conveniences for enabling the corporation to have access thereto and to inspect and repair the same :
- (6) Upon completion of the said diversion in the manner aforesaid the substituted sewer and sewage duct or conduit shall vest in and become the absolute property of the corporation and shall thenceforth be maintained by them :
- (7) The corporation shall at all times until the said sewer and sewage duct or conduit has been diverted be

entitled to reasonable access over the said lands numbered 5 upon the deposited plans to the said sewer and sewage duct or conduit and shall after such diversion be entitled to reasonable access to the diverted sewer and sewage duct or conduit over the lands of the Company for the purposes of inspecting maintaining repairing or renewing the same or any works connected therewith:

- (8) No railway sidings buildings or other works shall at any time be executed by the Company over or across the diverted sewer or sewage duct or conduit without the previous consent in writing of the corporation which consent shall not be unreasonably withheld:
- (9) The Company shall not in carrying out the diversion of the said sewer and sewage duct or conduit interfere in any way with the disposal of sewage through and by means of the existing or substituted sewer and sewage duct or conduit and they shall not interfere in any way with the portion of the existing sewer and sewage duct or conduit which is to be diverted as aforesaid until the substituted sewer and sewage duct or conduit has been constructed and is ready to be connected with the remaining portions of the existing sewer and sewage duct or conduit nor shall they then interfere with the said portion to a greater extent than may be necessary for the purpose of connecting the substituted sewer and sewage duct or conduit to the remaining portions of the existing sewer and sewage duct or conduit until such substituted sewer and sewage duct has been connected and completed in the manner hereinbefore referred to:
- (10) The Company shall pay to the corporation the reasonable costs incurred by them in superintending the construction of the substituted sewer and sewage duct or conduit if the same be constructed by the Company and the connection of the same with the existing sewer and sewage duct or conduit:
- (11) Nothing contained in this Act shall be deemed to affect any rights or obligations of the corporation (except so far as such rights or obligations are inconsistent with the provisions of this section) under the pro-

A.D. 1914.

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visions of the Wolverhampton Improvement Act 1869 the Public Health Acts or other public or private Acts or of the following agreements (namely):—

(A) The agreement dated the 21st day of August 1868 and made between the predecessors of the corporation and Alexander Hordern;

(B) The agreement dated the 22nd day of February 1894 and made between the corporation and the Right Honourable Alexander Staveley Hill;

except so far as such agreements are expressly varied by the provisions of this section and the provisions of the said agreements shall (so far as applicable) apply to the diverted sewer and sewage duct or conduit as if the same had been expressly mentioned therein:

- (12) If any question or difference shall arise between the Company and the corporation under the foregoing provisions of this section such difference shall be referred to and determined by a single arbitrator to be appointed failing agreement on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to such arbitration.

For protection of Abercarn Urban District Council.

74. For the protection of the urban district council of Abercarn (in this section referred to as “the council”) the following provisions shall unless otherwise agreed in writing between the council and the Company have effect (that is to say):—

- (1) Before laying down any additional line of rails at the crossing known as Cwmdows Level Crossing by the Company’s Pennar Branch Railway in the parish and urban district of Abercarn of the road leading from Cwmdows to Ty-gwyn the Company shall construct under the said railway within a distance of 5 chains from the said crossing a bridge having a clear width of 20 feet between the abutments and a headway of not less than 14 feet and shall divert the said road thereunder. The approaches to the said bridge which shall be constructed as near to the boundary fences of the railway as practicable and which the Company are not to be liable to metal

to a greater width than 10 feet shall not be steeper than 1 in 20 on the northern side and 1 in 8 on the southern side of the said railway and all rights of way over the existing road between the commencement and termination of the said diversion shall on its completion and opening for traffic cease and determine: A.D. 1914.

- (2) Before constructing the diversion by this Act authorised of the footpath on the western bank of the River Ebbw adjacent to the south-eastern side of the sidings connecting the Prince of Wales Colliery with the railway of the Company the Company shall submit to the council for their reasonable approval a plan and section of the proposed diversion and such diversion shall be constructed in accordance with the plan and section so approved and to the reasonable satisfaction of the surveyor to the council and in carrying out such diversion the Company shall execute any works which may be reasonably necessary to strengthen the river bank for the protection of the said footpath. Provided always that if within 28 days after the submission of the said plan and section the council fail to approve thereof the said works shall be carried out in accordance with a plan and section to be submitted to and approved by an arbitrator appointed as hereinafter provided:
- (3) Notwithstanding anything shown on the deposited plans the Company shall not take or acquire any greater part of the lands numbered on the deposited plans of "Bridges road river and footpath diversions and lands between Abercarn and Risca" 8 in the parish of Risca and which land is now used by the council as a refuse tip than that coloured pink on the plan signed by William Wylie Grierson on behalf of the Company and John Williams on behalf of the council unless and until they shall have placed the council to their reasonable satisfaction in possession of rights similar to those enjoyed by the council over the said land to tip on other land suitable for the purpose of a refuse tip in or immediately adjacent to the parish of Abercarn:

A.D. 1914.

(4) Notwithstanding anything shown on the deposited plans the Company shall not take or acquire any part of the road side bank or waste adjoining the road leading from Caerphilly to Newbridge numbered on the deposited plans of the "Lands adjoining the Pennar Branch Railway" 3 and 4 in the Parish of Abercarn :

(5) If any difference shall arise between the Company and the council respecting any matter under this section the same shall in default of agreement be determined by an engineer to be agreed upon or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall extend and apply to the determination of such difference.

For protec-
tion of Risca
Urban
District
Council.

75. For the protection of the urban district council of Risca in the county of Monmouth (in this section called "the council") the following provisions shall unless otherwise agreed in writing between the council and the Company apply and have effect (that is to say):—

(1) In executing the diversion authorised by this Act of the public road leading from Cil-fynydd to Jamesville between the south-western end of the bridge carrying the said road over the Monmouthshire (Western Valleys) Railway of the Company and the south-western end of the bridge known as Chapel Bridge carrying the said road over the River Ebbw the Company shall construct the diverted road except the portion on the bridge over the said railway of a width of not less than 18 feet and the said diverted road shall be constructed to the reasonable satisfaction of the council. Provided that the portions of the said diverted road on the north-east side of the said railway bridge on the south-western side of Chapel Bridge where the said road bends shall be widened out to the like satisfaction. Provided further that the lengthened portion of the said bridge over the railway shall have a width of not less than 15 feet:

(2) If by reason of the execution of any of the powers of this Act the council shall necessarily incur any

additional cost in connecting any sewers with the main trunk sewer of the Western Valleys (Monmouthshire) Sewerage Board the Company shall repay such additional cost to the council and the Company shall afford all reasonable facilities for carrying out such works : A.D. 1914.

- (3) The Company shall not break up any street nor raise sink or alter the position of any sewer drain or watercourse or any gas water or electric mains pipes services or apparatus of the council until they shall have given to the clerk to the council seven clear days' notice in writing of their intention to commence the intended works accompanied by plans sections and other necessary particulars showing the work proposed to be executed by the Company so far as they affect the streets sewers drains watercourses gas water and electric mains pipes services and apparatus proposed to be so interfered with :
- (4) The Company in carrying out the works authorised by this Act or any works on lands to be acquired under the powers of this Act shall to the reasonable satisfaction of the council make good all damage which may be caused to or may be the consequence of any interference with any sewer drain or watercourse or to any gas water or electric main pipe service or apparatus of the council :
- (5) Whenever it may be necessary to intercept or remove or displace or otherwise interfere with any sewer or drain the Company shall before intercepting removing displacing or interfering with such sewer or drain construct according to a plan to be reasonably approved of by the council another sewer or drain in lieu of and of equal capacity to the sewer or drain so proposed to be intercepted removed displaced or interfered with and such substituted sewer or drain shall be connected by the council at the expense of the Company with the existing sewer or drain :
- (6) If it shall be necessary to construct any works on lands to be acquired under the powers of this Act over any sewer drain gas water or electric main belonging

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to the council provision shall be made to the reasonable satisfaction of the council for protecting such sewer drain gas water or electric main from injury and for affording convenient access thereto for the purpose of examination alteration renewal or repair:

- (7) If by reason of the execution of any of the powers of this Act or the carrying out of any works on lands to be acquired under the powers of this Act the council shall necessarily incur any cost in altering or removing any existing sewer drain gas water or electric main or apparatus the Company shall repay such cost to the council on demand:
- (8) The provisions of this section shall not extend or apply to any sewer drain gas water or electric main laid down by the council under over or along the property of the Company under the provisions of any agreement between the Company and the council where the provisions of such agreement are inconsistent with the provisions of this section in which case the provisions of the agreement shall apply:
- (9) Any difference which may arise between the council and the Company as to the true intent and meaning of any of the provisions of this section or as to the mode of giving effect thereto shall be settled by an engineer to be appointed (unless otherwise agreed) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply thereto.

For protection of St. Mellons Rural District Council.

76. For the protection of the rural district council of St. Mellons (in this section called "the council") the following provisions shall notwithstanding anything in this Act contained or shown on the deposited plans and sections unless otherwise agreed between the Company and the council have effect (that is to say):—

- (1) In the construction of Railway No. 6 by this Act authorised and in the alteration and diversion of the road at the north-western end of Rogerstone Station leading from Risca to Newport for the purpose of carrying the same over the said railway or otherwise

under the powers of this Act the following provisions shall have effect :—

A.D. 1914.

(A) The bridge for carrying the altered road over the said railway and over the existing railway and adjoining property and the altered approaches to such bridge shall be constructed with a carriageway not less than 24 feet in width and a footpath not less than 6 feet in width but so much of such footpath as is situated on the said bridge may if the Company so desire be constructed outside the structure carrying the said carriageway but not so as to reduce the width of the carriageway to less than 24 feet or the width of the footpath to less than 6 feet. The said bridge shall be constructed of sufficient strength to render it unnecessary for the Company to impose any restriction under the Locomotive Act 1861 and the Motor Car Acts 1896 and 1903 as to the weight of vehicles passing thereover ;

(B) The Company shall to the reasonable satisfaction of the council's surveyor (hereinafter referred to as "the surveyor") form make up and metal the carriageway on the said bridge and altered approaches and form make up and gravel the footpath on the said altered approaches and on the said bridge and construct on each side of the said bridge and altered approaches good and sufficient parapets or fences and provide proper and sufficient surface water drains with suitable gully gratings and branch drains to communicate therewith and any other works required to drain the surface water from the said bridge and altered approaches ;

(C) The gradients of the approach at the northern end of the said bridge and of any altered portion of St. John's Road shall be horizontal ;

(D) If the Company require to interfere with the public urinal near the southern approach of the said bridge they shall to the reasonable satisfaction of the surveyor either take down and rebuild the said urinal or carry out any alterations thereto rendered necessary by the construction of the altered

A.D. 1914.

road or construct a new urinal similar to the existing urinal and the existing drainage shall if interfered with be reinstated to the like satisfaction;

(E) The Company shall not alter the position of any sewer drain pipe or apparatus of the council until they shall have given to the surveyor not less than seven clear days' notice in writing of their intention to commence the intended works accompanied by plans sections and other necessary particulars showing the works proposed to be executed by the Company so far as they affect the sewers drains pipes and apparatus proposed to be so interfered with and the Company in carrying out any works under the powers of this Act shall make good all damage which may be caused to or may be the consequence of any interference with any sewer drain pipe or apparatus of the council;

(F) Whenever it may be necessary to intercept or remove or displace any sewer or drain of the council the Company shall before intercepting removing or displacing the same construct according to a plan to be reasonably approved of by the surveyor another sewer or drain in lieu of and of equal capacity to the sewer or drain so proposed to be intercepted or removed or displaced and such substituted sewer or drain shall be connected by the council at the reasonable expense of the Company with the existing sewer or drain in such manner as shall be reasonably approved by the council;

(G) If it shall be necessary to construct any works over any sewer drain pipe or apparatus belonging to the council provision shall be made to the reasonable satisfaction of the surveyor for protecting such sewer drain pipe or apparatus from injury and for affording convenient access thereto for the purpose of examination alteration renewal or repair;

(H) If and when after the construction of the said railway or the altered road the council shall construct to the reasonable satisfaction of the Com-

pany and so long as they shall maintain to the like satisfaction at a point immediately adjoining the Company's northern boundary fence as altered under the powers of this Act where it intersects the road numbered on the deposited plans for the said railway 22 in the said parish a manhole or gully with proper grating of adequate dimensions the council shall be entitled to discharge through the said manhole or gully by means of a nine-inch socketted pipe properly jointed and laid by the Company at the expense of the council to connect with the Company's side ditch at a point inside the Company's said fence and opposite to the said road numbered 22 any surface water coming from the area on the north side of the railway of the Company in the neighbourhood of the Old Globe Inn near Rogerstone Station The council shall so far as may be reasonably practicable prevent any of the said surface water discharging on to the Company's railway except through the said manhole or gully and pipe and shall also periodically examine and clean out the said manhole or gully so as to prevent as far as is reasonably practicable any silt or other solid matter passing into the said pipe and if after three days' notice from the Company the council shall fail so to do or in case of emergency without notice the Company may themselves examine and clean out the said manhole or gully and pipe as aforesaid and recover the reasonable cost thereof from the council :

- (2) During the construction of the bridge and the alteration of the approaches thereto referred to in subsection (1) of this section and during the lengthening by this Act authorised of the bridge which carries the road leading from Rogerstone to Bassaleg Station over the Monmouthshire (Western Valleys) Railway at a point 16 chains or thereabouts north-west of Bassaleg Station the Company shall in each case at their option either (1) provide a good and sufficient temporary bridge of not less than ten feet in width for the use of foot and carriage traffic passing along and

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upon the said road or (2) at all times provide a width of ten feet of roadway for use as aforesaid on the existing bridge and approaches or the reconstructed or lengthened portions thereof Provided always that in the event of the Company electing to provide a temporary bridge the council may make and shall put in force at the cost of the Company such regulations and arrangements during the construction of the said bridge as shall prevent all heavy or extraordinary traffic from passing over the temporary bridge In altering the approaches to the said bridges the Company shall be at liberty to temporarily reduce the width thereof to ten feet:

- (3) The Company shall not stop up the footpath numbered 52 and 55 in the said parish of Rogerstone on the deposited plans for Railway No. 6 and on the deposited plans in connection with the acquisition of lands at Rogerstone 89 and 93 in the said parish but shall carry the same over the existing railways and works of the Company and over any railways and works constructed by the Company on the lands acquired by them under this Act by means of a footbridge to be erected at or near the site of the existing footpath and the Company shall be at liberty to divert the said footpath for such purpose to such extent as may be reasonably agreed Provided that the south-western end of the said footbridge shall be constructed as near as may be on the site of the approach to the existing subway Such footbridge shall have a clear width throughout of not less than seven feet with suitable parapets on each side thereof not less than 5 feet 6 inches in height and with suitable approaches Such footbridge and the approaches thereto on both sides shall be constructed and maintained by the Company to the reasonable satisfaction of the council and the council may if they think fit on and after the completion of the said footbridge and approaches thereto light and sand the same:

- (4) Nothing in this Act shall relieve the Company from their liability under section 46 of the Railways Clauses Consolidation Act 1845 to repair the surface of so

much of the said road leading from Rogerstone to Bassaleg Station as may be carried over the Monmouthshire (Western Valleys) Railway of the Company by means of a bridge or the approaches to such bridge and the provisions of the section of this Act of which the marginal note is "Company not liable to repair surface of road level of which is not permanently altered" shall not apply to any part of the said road: A.D. 1914.

- (5) In the execution of the widening by this Act authorised of the bridge which carries the Monmouthshire (Western Valleys) Railway over the road known as Heol Gerrig and in the alteration and diversion of the portion of that road by this Act authorised in connection with such bridge widening the following provisions shall have effect:—

(A) The Company shall construct the widened portion of the said bridge so as to provide a clear width between the piers or abutments of not less than 25 feet and shall construct the altered or diverted portion of the said road so as to provide the like width between the fences thereof;

(B) The widened portion of the bridge shall be so constructed as to prevent as far as is reasonably practicable the dripping of water therefrom on to the roadway beneath and the Company shall to the reasonable satisfaction of the council make up the carriageway under the widened portion of the said bridge and throughout the whole length of the altered or diverted portion of the road to a condition similar so far as is reasonably practicable to that of the diverted road;

(C) The Company shall contemporaneously with the alteration and diversion of the said road provide lay down and construct thereunder to the reasonable satisfaction of the council a sewer and storm water overflow in substitution for and of the same capacity as the sewer and storm water overflow in the portion of the existing road so to be diverted and at such level or levels as shall be necessary to preserve to the reasonable satisfaction of the council the

A.D. 1914.

free and uninterrupted flow and passage of sewage and storm water by means thereof and the Company shall to the reasonable satisfaction of the surveyor connect such substituted sewer with the existing sewer at either end of the diverted portion thereof and provide in connection with such substituted sewer two manholes in such positions as the surveyor may reasonably require. The Company shall divert the existing watercourse on the western side of the said bridge along the altered boundary of the Company's railway and shall to the reasonable satisfaction of the surveyor provide a storm overflow outfall in the said diverted watercourse and carry the storm overflow into such outfall from such substituted sewer and the said diverted watercourse shall be carried under the diverted road by means of a culvert of such capacity as may be agreed between the Company and the surveyor or failing agreement be settled by arbitration as hereinafter provided;

(D) The said substituted sewer manholes and other works and such overflow pipes and outfall shall vest in and become the absolute property of the council;

(E) The Company shall provide in such bridge as widened and near the centre thereof an opening free of obstruction of any kind and having a superficial area of not less than 50 square feet:

- (6) The council consent so far as they lawfully can to the closing of the footpath leading from the southern end of the approach to the bridge at the north-western end of Rogerstone Station to Pont-newydd-fawr:
- (7) The Company shall at all reasonable times permit the council their officers agents servants workmen and contractors with or without material to have at their own risk free and uninterrupted access to any part of the said sewers and the works connected therewith which lie within the boundaries or limits of the property of the Company:
- (8) If any difference shall arise under this section between the Company and the council or the surveyor such

difference shall be referred to and settled by an arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

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77. For the protection of the Monmouthshire Commissioners of Sewers (hereinafter called “the commissioners”) the following provisions shall have effect unless otherwise agreed between the commissioners and the Company (that is to say):—

For protection of Caldicot Levels.

(1) If the Company construct any works for the purpose of or in connection with their railway upon the lands near Magor Station by this Act authorised to be acquired by the Company across the respective reens next hereinafter mentioned they shall so construct such works that the same shall be carried over the said reens by arches or bridges of a height and span not less than the heights and spans next hereinafter mentioned in connection with such reens respectively (that is to say):—

Parish.	No. on deposited Plans.	Reen.	Height.	Span.
			Ft. ins.	Ft. ins.
Magor -	8	Whitehall Winter Sewer	5 6	4 9
Undy - -	1	Mill Reen - - -	4 6	11 0
Undy - -	3	West Mead Reen -	4 10	6 0

(2) Before constructing any works over or across the reen known as Bridewell Reen situated on the northern side of the enclosure numbered on the deposited plans 4 in the parish of Undy the Company shall divert the same into West Mead Reen and the diverted portion of the said reen shall be of the same available sectional area as that of the portion of the said reen to be diverted:

(3) All works other than the diversion of Bridewell Reen which the Company are by this section required to execute shall be executed maintained and repaired by and at the expense of the Company to the

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reasonable satisfaction of the commissioners and the Company shall pay to the commissioners any additional expense which the commissioners may reasonably and properly incur in maintaining and repairing Bridewell Reen by reason of such diversion.

For protection of Newport (Mon.) Gas Company.

78. For the protection of the Newport (Monmouth) Gas Company (in this section called "the gas company") the following provisions shall unless otherwise agreed between the gas company and the Company apply and have effect (that is to say) :—

- (1) The provisions of sections 18 to 21 of the Railways Clauses Consolidation Act 1845 shall apply and have effect with regard to the construction and execution of all works authorised by this Act across over or under or in any way affecting any mains or other pipes and fittings of the gas company and for the purposes of this section the expression "the railway" when used in those sections shall be deemed to include all such works. Provided always that notwithstanding anything in section 20 of the said Act of 1845 the Company shall be at liberty to lay to the reasonable satisfaction of the engineer to the gas company the pipes therein referred to under the pavement of the footways and that the Company shall not be required to lay such pipes whether under the roadway or footway at a greater depth than the pipes for which they are substituted :
- (2) Before interfering with any mains pipes fittings or apparatus of the gas company (hereinafter together called "apparatus") in connection with the construction of any works by this Act authorised the Company shall give as long a notice as is reasonably possible accompanied by a sufficient description of the works to be executed and shall deal with the gas company's apparatus (at the cost in all things of the Company) and all works involving the interference with such apparatus under the superintendence if such be given and to the reasonable satisfaction of the engineer of the gas company :
- (3) Any work of removal deviation alteration or support of the apparatus of the gas company necessitated by the

construction or execution of the said works shall if the gas company by notice in writing so desire be done by the gas company and the reasonable expenses of the gas company in connection therewith shall be paid by the Company : A.D. 1914.

- (4) If any interruption (unless authorised by the gas company) in the supply of gas by the gas company or any loss of gas shall be in any way occasioned or sustained by any act or omission of the Company or by any act or omission of any of their contractors agents workmen or servants or any person in the employ of them or any or either of them the Company shall pay to the gas company such reasonable compensation as may be agreed or failing agreement as shall be settled by arbitration as provided by this section :
- (5) If by reason of the execution of any of the powers of this Act the gas company shall necessarily incur any cost in altering repairing renewing or removing any existing apparatus of the gas company the Company shall repay to the gas company such reasonable cost :
- (6) If it shall be necessary to construct any portion of the works by this Act authorised over any apparatus belonging to the gas company provision shall be made to the reasonable satisfaction of the engineer of the gas company for protecting such apparatus from injury and for affording reasonable access thereto and the Company shall afford the gas company access thereto at all reasonable times for the purpose of examination alteration renewal or repair :
- (7) If the Company shall for any of the purposes of this Act or the incorporated Acts take close divert or do away with any streets highways roads footpaths lanes courts passages or places wherein is laid any apparatus belonging to and now used by the gas company for the supply of gas they shall pay to the gas company reasonable compensation for the value of such apparatus :
- (8) The foregoing provisions of this section so far as the same are in accord shall be in addition to and not in substitution for or derogation from any other statutory powers rights or privileges of the gas company :

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(9) Nothing in this section contained shall prejudice alter or affect the rights of the Company or the gas company under any agreement between them relating to the mains pipes or other works of the gas company and where the provisions of such agreement are inconsistent with the provisions of this section the provisions of the said agreement shall apply:

(10) If any difference shall arise between the Company and the gas company respecting any matter under this section the same shall in default of agreement be determined by an engineer to be agreed upon or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall extend and apply to the determination of such arbitration.

For protection of Lord Tredegar and his trustees.

79. For the protection of the Right Honourable Courtenay Charles Evan Lord Tredegar and his sequels in estate and of the trustees of the Tredegar Settled Estates and their successors the owner or owners and trustees for the time being of such estates (being together in this section referred to as and included in the expression "the owners") the following provisions shall unless otherwise agreed between the owners and the Company have effect (that is to say):—

(1) (A) If the Company enter upon take or use any part of the enclosures numbered respectively on the deposited plans (Sheet No. 59) 96 and 97 in the parish of Rogerstone the Company shall to the reasonable satisfaction of the owners construct along their eastern boundary as altered under the powers of this Act and for the use of the owners and the Company and their respective lessees and tenants and all persons authorised by them or any of them a roadway of a clear width of 40 feet between the fences so as to form an access between the main road leading from Bassaleg to Rogerstone and the said property numbered 97;

(B) Such roadway when completed in accordance with this subsection shall subject as aforesaid and to any public rights in the footpath to be diverted over it vest in and be the property of the owners:

(2) (A) If the Company enter upon take or use any part of the property numbered on the deposited plans (Sheet No. 58) 73 in the parish of Rogerstone they shall afford to the owners all reasonable facilities for the construction by the owners of a roadway of a width of 40 feet measured from the southern boundary wall of the graveyard of Saint John's Church for the purpose of connecting the portion of the said property numbered 73 not acquired by the Company with the road leading from Risca to Newport and numbered on the deposited plans (Sheet No. 58) 28 in the parish of Rogerstone (hereinafter referred to as "the Risca Road") as now existing or as altered and diverted under the powers of this Act;

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(B) If the Company take or use any part of the property numbered on the deposited plans (Sheet No. 58) 40 in the said parish of Rogerstone or if they shall alter or divert the Risca Road they shall provide to the reasonable satisfaction of the owners and for the use of the owners their lessees and tenants a means of access from Tydu House and the field numbered 14 as aforesaid to the Risca Road as now existing or as altered and diverted under the powers of this Act Such means of access shall so far as is reasonably practicable under the altered circumstances be as convenient as the existing means of access from Tydu House and the said field to the Risca Road;

(c) The Company shall grant to the owners free of charge such facilities as may be necessary for laying across the railways and property of the Company and thereafter maintaining and inspecting a sewer or drain at a level not exceeding 120 feet above Ordnance datum and of the same capacity as the existing deep sewer on the north-west side of the Old Globe Inn and so as to connect that sewer with the portion of the said field or enclosure numbered 73 not acquired by the Company and the Company shall repay to the owners any additional cost to which the owners may be put in constructing such sewer or drain by reason of the exercise by the Company of the powers of this Act:

(3) The Company shall not be entitled except so far as they may at present be entitled in respect of lands now

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owned by them to any springs or water which may be situate arise percolate or flow upon through or under any lands acquired by the Company under the powers of this Act in the parish of Rogerstone If any springs or water shall be intercepted by any works constructed under the powers of this Act on the lands of the owners on the north-east side of the existing railway in the parish of Rogerstone the Company shall to the reasonable satisfaction of the owners divert where necessary and convey such springs and water to the culverts or pipes which now carry the same under the Company's Monmouthshire (Western Valleys) Railway and shall so far as may be necessary and to the like satisfaction extend such culverts and pipes under such works As regards any springs rising to the surface upon or water flowing through any such lands lying on the south-west side of the existing railway the Company shall to the like satisfaction either divert the same on to the adjoining lands of the owners or carry the same through the lands acquired by the Company on to such adjoining lands by means of a culvert Provided that the Company shall be entitled to sink a well on the said lands lying on the south-west side of the existing railway for the purpose only of supplying water for the use of any locomotive depôt or other works of a like nature which the Company may erect on the said lands and for the use of any engines proceeding to and from such depôt and works Provided further that should the supply of water from any springs or wells now in existence or hereafter to be sunk on any lands of the owners within one thousand yards of the said well of the Company become at any time insufficient for the purposes for which such supply is then used the Company shall on receipt of notice in writing from the owners cease pumping from their said well so long as the supply is insufficient for such purposes :

- (4) If any works to be constructed by the Company under the powers of this Act shall endanger the supply pipe of the owners from Cefn Orles Reservoir situate in the enclosure numbered 58 in the parish

of Rogerstone on the plans deposited in connection with Railway No. 6 to Tredegar House the Company shall either construct to the reasonable satisfaction of the owners all such works as shall be reasonably necessary for protecting the said pipe or shall divert the said pipe to such position as the owners may reasonably approve and to their reasonable satisfaction so as to preserve the supply of water from the said reservoir to Tredegar House as efficiently in all respects as the supply at present afforded by means of the said existing pipe: A.D. 1914.

- (5) If in constructing the Deviation and Widening No. 1 by this Act authorised of the Company's Monmouthshire (Western Valleys) Railway the Company interfere with the existing siding connection between the said railway and the quarry in the urban district of Risca known as Cox's Quarry they shall provide to the reasonable satisfaction of the owners a diverted or substituted siding connection between the said railway as so deviated and altered and the said quarry which connection shall so far as is reasonably practicable be as convenient as the said existing connection and no extra charge shall be made by the Company in respect of any traffic to or from the quarry in consequence of the deviation of the railway :
- (6) Notwithstanding anything in this Act or shown on the deposited plans the Company shall not enter upon take or use any part of the Tredegar Park or of the Park Mile Railway without the consent in writing of the owners :
- (7) If any difference shall arise under this section between the Company and the owners such difference shall be referred to and settled by an arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

80. For the protection of the urban district council of Caerphilly and the urban district council of Gelligaer (hereinafter in this section respectively referred to as "the Caerphilly For protection of Caerphilly and Gelligaer

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Urban Dis-
trict Coun-
cils.

Council” and “the Gelligaer Council” and jointly as “the two councils”) the following provisions shall unless otherwise agreed in writing between the Company and the two councils apply and have effect (that is to say):—

- (1) The new footpath by this Act authorised to be constructed by the Company in the parish and urban district of Gelligaer and in the parish of Llanfabon in the urban district of Caerphilly shall be carried over the Company’s Newport Abergavenny and Hereford (Taff Vale Extension) Railway (hereinafter referred to as “the Company’s railway”) and over the Taff Vale Railway by means of a bridge to be constructed as hereinafter provided and before laying down and opening for traffic any additional line of rails across the footpath which crosses the properties respectively numbered on the deposited plans 23 and 24 in the said parish of Gelligaer and 7 in the said parish of Llanfabon the Company shall carry the said footpath over the Company’s railway by means of a bridge to be constructed in manner hereinafter provided and for such purpose may deviate the said last-mentioned footpath to such extent as may be reasonably necessary and from and after the completion of the said footbridge all public rights of way (if any) over the existing level crossing shall cease and determine:
- (2) Each such bridge shall be constructed with a clear width throughout of not less than 4 feet and with rails or parapets on both sides of not less than 5 feet in height for the full length of the bridge and the steps leading to each such bridge on both sides shall be constructed with a half landing:
- (3) Each such bridge and the respective approaches thereto shall be executed to the reasonable satisfaction of and in accordance with plans and elevations to be previously reasonably approved in writing by a surveyor to be appointed by and representing the two councils provided that if he does not signify his approval or disapproval within twenty-eight days after such plans and elevations shall have been left at

his office he shall be deemed to have approved A.D. 1914.
thereof:

- (4) The Caerphilly Council and the Gelligaer Council shall each pay to the Company the sum of one hundred pounds in respect of each such bridge when the same and its approaches are completed in accordance with the foregoing provisions of this section and the purposes of this subsection shall be deemed to be purposes of the Public Health Act 1875 and the powers of that Act shall be available for the purposes of this section by the two councils:
- (5) The Company shall complete the construction of the bridge first hereinbefore mentioned within eighteen months from the passing of this Act and shall at all times after the erection of the said bridges keep the same open for the free use of the public and maintain them in good order and condition but the Company shall not be required to light and sand the bridges:
- (6) Notwithstanding the foregoing provisions of this section if the Company shall construct the bridge and approaches thereto required to be constructed under the provisions of the section of this Act of which the marginal note is "For protection of Mervyn Edward George Rhys Wingfield and Harriet Diana Arabella Mary Mackintosh of Mackintosh" with a clear width throughout between the parapets or fences thereof of not less than 25 feet and so as to form a suitable connection between the approach road of the Caerphilly Council from Station Terrace to the new Nelson and Llancaiach Station of the Company and the public footpath numbered on the deposited plans 13 in the said parish of Gelligaer and also the public footpath leading to Llancaiach House and passing through the enclosure numbered on the deposited plans 3 in the said parish of Gelligaer and shall also form and gravel to the reasonable satisfaction of the said surveyor a footpath for public use over such last-mentioned bridge with approaches thereto of a width of not less than 5 feet then the Company shall not be required to construct the said new footpath in the said parishes of Gelligaer and

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Llanfabon or to construct a footbridge for the purposes of carrying such new footpath over the Company's railway and the Taff Vale Railway but the contribution of 100%. payable by each of the two councils under subsection (4) of this section shall in respect of such footbridge be paid to the Company in respect of the works to be constructed by the Company under this subsection and the Company shall at all times maintain the footpath to be made by the Company for public use under the provisions of this section :

(7) Section 36 of the Great Western Railway Act 1912 is hereby repealed :

(8) Notwithstanding anything in this Act or shown on the deposited plans the Company shall not stop up or injuriously affect the flow of water through the Nant Caiach situate on the southernmost side of the said railway between the said station and the easternmost boundary of the field or enclosure numbered on the deposited plans 25 in the said parish of Gelligaer and in the event of the Company acquiring any part of the site of that stream they shall either divert the same beyond the boundary of the Company's property in such position and manner as shall enable the Caerphilly Council and the Gelligaer Council to exercise any right which they may have to drain surface water into such stream as conveniently as at the passing of this Act or permit the said councils to use the existing stream for such purpose :

(9) If the Company shall acquire the land numbered 26 on the deposited plans in the said parish of Gelligaer adjoining the road known as Heol Pont-y-season they shall if and when requested so to do by the Gelligaer Council convey to them at a price pro rata to that paid by the Company a strip of such land which may adjoin the said road sufficient to enable the Gelligaer Council to widen the road to a width of 36 feet :

(10) If any difference shall arise under this section between the Company and the two councils or either of them or between the Company and the said surveyor such

difference shall be referred to and settled by an arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of any of the parties by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to such reference.

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81. For the protection of Mervyn Edward George Rhys Wingfield and Harriet Diana Arabella Mary Mackintosh of Mackintosh and their respective heirs executors administrators and assigns or other the owner or owners for the time being of the estate in the county of Glamorgan known as the Llancaiach Estate (all of whom are hereinafter in this section included in the expression "the owners") the following provisions shall unless otherwise agreed between the Company and the owners apply and have effect (that is to say):—

For protection of Mervyn Edward George Rhys Wingfield and Harriet Diana Arabella Mary Mackintosh of Mackintosh.

- (1) Before acquiring any part of the lands respectively numbered on the deposited plans of the footpath near Nelson and Llancaiach Station (Sheet No. 97) 8 9 10 11 13 14 and 15 in the parish and urban district of Gelligaer and before laying down any lines of rails on the lands numbered on the deposited plans of the lands near that station 23 and 24 in the said parish and 7 in the parish of Llanfabon or stopping up or extinguishing any rights of the owners to cross on the level the Newport Abergavenny and Hereford (Taff Vale Extension) Railway of the Company the Company shall construct and thereafter maintain to the reasonable satisfaction of the owners a bridge and approaches thereto crossing the said railway at such point as shall having regard to the Company's proposed works be agreed between the owners and the Company or failing agreement shall be determined by arbitration as hereinafter mentioned in order to connect the occupation road numbered on the deposited plans 14 in the parish of Gelligaer either with the property numbered 10 in the said parish or with the approach road made by the Caerphilly Urban District Council leading from Station Terrace to the new Nelson and Llancaiach Station of the Company Such bridge and the approaches thereto shall subject as hereinafter provided have a clear

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width between the parapets or fences thereof of not less than 20 feet and the gradients of the approaches shall not be steeper than 1 in 20:

- (2) The Company shall also to the reasonable satisfaction of the owners form make up and maintain a roadway suitable for the purposes hereinafter mentioned upon the said bridge and approaches and erect and maintain on each side of the said bridge and approaches suitable parapets or fences of not less than four feet in height and the owners shall so far as the same are situate on their estate place the Company in possession free of charge of any land required for the construction of such approaches. In the event of the Company requiring to carry the new footpath by this Act authorised over and along the said bridge and approaches or any portion thereof they shall be at liberty so to do provided that they increase the width of the said bridge and approaches or such portion thereof by five feet:
- (3) The owners their lessees and tenants and all persons authorised by them or any of them shall be entitled to use the said bridge and approaches for the purpose of access to and from the estate and for all estate purposes and the owners and their lessees shall be entitled subject to any such works being carried out in accordance with plans to be previously reasonably approved by the engineer of the Company and under his superintendence (if he elect to superintend) and to his reasonable requirements and satisfaction to lay down construct maintain and use on and across the said bridge and approaches all such tramways sewers drains pipes wires apparatus and works as they may require for the said purposes. Provided that they shall not in so doing interfere with or endanger the railway and works of the Company or the traffic thereon:
- (4) In the event of the Company acquiring or interfering with the steps in the field or enclosure numbered on the said plans 1 in the urban district of Gelligaer and leading from the property of the owners to the footbridge over the said station or the access to such steps they shall provide to the reasonable satisfaction

of the owners and in such position as the owners may reasonably approve substituted steps or other means of access from the said property of the owners to the said footbridge: A.D. 1914.

- (5) Notwithstanding anything in this Act or shown on the deposited plans the Company shall not stop up or injuriously affect the flow of water through the Nant Caiach situate on the southernmost side of the said railway between the said station and the eastern boundary of the field or enclosure numbered on the deposited plans 25 in the urban district of Gelligaer and in the event of the Company acquiring any part of that stream they shall either divert the same beyond the boundary of the Company's property in such position and manner as shall enable the stream to be used by the owners for the purpose of carrying away surface water as efficiently as such stream could at the passing of this Act be used for that purpose or permit the owners to use the said stream for such purpose:
- (6) From and after the completion and opening for traffic of the said bridge and approaches all rights to cross the said railway on the level at any point within 1100 yards measured in an easterly direction of the footbridge at Nelson and Llancaiach Station to which the owners are entitled shall be extinguished:
- (7) If any difference shall arise under this section between the Company and the owners such difference shall be referred to and settled by an arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

82. For the protection of the lord mayor aldermen and citizens of the city of Cardiff (in this section called "the corporation") the following provisions shall have effect except so far as the corporation (and the Marquis of Bute as to matters affecting the Marquis) and the Company may otherwise agree (that is to say):— For protection of corporation of Cardiff and Marquis of Bute.

- (1) In this section the word "street" has the same meaning as it has in the Public Health Act 1875 the expression

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“the railway” means the South Wales Railway of the Company the expression “water mains” includes water conduits water mains and pipes hydrants valves meters and water apparatus and appliances belonging to the corporation and the expression “electric mains” includes electric mains cables wires pipes standards and other electric apparatus and appliances belonging to the corporation:

- (2) In constructing the widening by this Act authorised of the viaduct carrying the railway over the River Taff the Company shall not close the easternmost of the two westernmost openings under the said viaduct but shall extend such opening under the widened portions of the said viaduct with a span of not less than 40 feet measured from a line drawn in prolongation of the eastern face of the westernmost pier of the existing viaduct and the Company shall be at liberty at any time to reduce the span of the existing opening to 40 feet measured as aforesaid The superstructure of the widened portions of the viaduct over the said opening shall not be lower at any point than 5 feet 6 inches below the surface of the lowest existing rail over the said existing opening and the depth of the superstructure at the outer faces of the said widened portions shall not be greater than 4 feet 6 inches below the said surface and the superstructure for a distance of 15 feet from the said faces shall not project below an imaginary straight line drawn between the underside of the superstructure at the said faces and the underside of the superstructure at a point 15 feet from such faces The superstructure of the widened portions of the said opening shall be constructed so as to prevent as far as is reasonably practicable the dripping of water therefrom on to the ground beneath and the undersurface of such superstructure shall be painted white The provisions of this subsection shall enure for the benefit of the Marquis of Bute as well as of the corporation:
- (3) The Company shall if required by the corporation or the Marquis of Bute dedicate to the public use as a public road or highway the surface at the level of the new roadway hereinafter referred to of the land under the

said opening and the widened portions thereof and of any other land belonging to the Company on either side of the said opening which it may be necessary to use for the construction of the said roadway and shall grant to the corporation and the Marquis of Bute (if desired by the Marquis) the right to construct on the adjoining property of the Company any river walls retaining walls or works necessary for and incidental to the provision or maintenance of the said roadway and the corporation or the Marquis shall be at liberty at any time at their own expense to construct on the land aforesaid and open for traffic a roadway so as to connect Fitzhamon Embankment with Pendyris Street and lying between the points marked A and B on the plan signed by William Wylie Grierson on behalf of the Company William Harpur on behalf of the corporation and Edwin Wortley Montague Corbett on behalf of the Marquis of Bute and the corporation or the Marquis whichever shall have constructed the said road shall thereafter maintain to the reasonable satisfaction of the Company such walls or works so far as the same are situated on the land or property of the Company All rights of way (if any) under the westernmost opening of the said viaduct shall as from the time when it shall become necessary for the purpose of constructing the widening of the said viaduct by this Act authorised to close the said westernmost opening be diverted under the adjoining opening and the corporation shall thereupon provide such means of access through such last-mentioned opening as may be necessary for the diversion of such rights :

- (4) The Company shall not be called upon to contribute as frontagers towards the cost of any private street works which may be carried out in the said road under the Cardiff Corporation Act 1884 or any other Act or Acts and the corporation or the Marquis of Bute as the case may be shall indemnify the Company against any liability in respect thereof :
- (5) The expression "the Marquis of Bute" and "the Marquis" when used in this section shall include the present Marquis of Bute his heirs in estate and assigns owner

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or owners of the lands south of the railway and adjoining the Taff Mead Embankment:

- (6) The provisions of subsection 9 of section 24 of the Great Western Railway Act 1890 are hereby repealed:
- (7) The footbridge to carry the new footpath authorised by this Act over the railway at Newtown Cardiff and the approaches thereto shall be constructed in such position adjoining Pellett Street as may be reasonably approved by the corporation and shall be not less than 9 feet clear in width at any part:
- (8) The Company shall not take acquire enter upon or close up any part of Pendoylan Place or of the street situate on the northern side of the railway and leading from the southern end of Pellett Street to the southern end of Garth Street without first making new or substituted streets or roads in positions reasonably approved by the corporation of widths in each case not less than and of similar character to the existing street or road and such new or substituted streets or roads shall be constructed to the reasonable satisfaction in all respects of the corporation:
- (9) The new road authorised by this Act to be made leading from Leckwith Road to Eldon Street shall have a width throughout of not less than 40 feet and the Company shall form and complete the same to as far as is reasonably practicable the same condition as that of the existing road for which it is in substitution and to the reasonable satisfaction of the corporation and on completion of the said new road the corporation shall forthwith convey to the Company free of charge the portion of the existing road between the eastern frontage line of Leckwith Road and the southern side of the said new road. If the corporation shall at any time carry out private street works within the meaning of the Cardiff Corporation Act 1884 in the said new road the Company shall pay to the corporation in addition to any sum or sums payable by the Company as owners of land abutting on the said new road any sum which would but for the provisions of this subsection become payable by the owner of No. 93 Leckwith Road in respect of such private street works:

- (10) The Company shall not without the consent of the corporation except for the purpose of forming the new road referred to in the last preceding subsection take acquire or enter upon any portion of the land belonging or reputed to belong to the corporation numbered on the deposited plans 51 in the parish and city and county borough of Cardiff: A.D. 1914.
- (11) If the Company acquire all or any part of the land and buildings numbered on the deposited plans 19 20 21 and 22 in the parish and city and county borough of Cardiff they shall give to the corporation notice in writing of such acquisition and shall upon receiving notice from the corporation within six months of the last-mentioned notice requiring them so to do sell to the corporation at a due proportion of the price (including costs) at which they acquire such land and buildings so much of the land and buildings so acquired as aforesaid as the corporation may require for widening Cowbridge Road as is situate north of the red line upon the plan marked A signed in duplicate by William Wylie Grierson on behalf of the Company and by William Harpur on behalf of the corporation:
- (12) The Company shall not without the consent in writing of the corporation use any part of the lands numbered on the deposited plans 23 24 26 and 27 in the parish and city and county borough of Cardiff when acquired by them for any purpose other than the widening of the railway and the provision of additional accommodation in connection therewith:
- (13) The Company shall not without the consent of the corporation take enter upon or acquire a greater area of the land belonging or reputed to belong to the corporation situated on the southern side of the railway and numbered on the deposited plans 8 9 12 14 and 16 in the parish of Llandaff than the area coloured pink on the plan marked B signed in duplicate by William Wylie Grierson on behalf of the Company and by Charles Henry Priestley on behalf of the corporation The Company shall not carry any new footpath or extend the existing footpath further in a westerly direction on the south

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side of the railway than the existing footpath numbered on the deposited plans 16 in the said parish now extends and shall not sink any well or erect any pumping plant on the said land or use the same otherwise than for the purpose of widening the railway including the provision of a passenger or goods station. Provided that the Company shall not use the said land or any part thereof for a passenger or goods station without first paving with an impervious pavement all places used for the loading and unloading of horses cattle sheep pigs or other animals and providing proper sanitary conveniences and without making effective provision for the drainage of such conveniences and of the said station so as to carry away all filth and impurity from the vicinity of and prevent all danger of contamination to the waterworks or water of the corporation on the adjoining land. The provision of such sanitary conveniences and drainage as aforesaid to be to the reasonable satisfaction of the waterworks engineer for the time being of the corporation:

- (14) The Company shall not close the road leading from Ely to Fairwater which passes under the railway at a point about 34 chains west of Ely station until they shall have erected for the use of the corporation and to their reasonable satisfaction an accommodation bridge not less than 12 feet in width constructed of stone iron or other agreed material and with any necessary approaches having such grades as may be reasonably practicable not exceeding a gradient of 1 in 16 so as to connect the land of the corporation on the north side of the River Ely with the land on the south side of the said river and a ford in lieu of the existing ford over the Fairwater Brook the said bridge and ford to be in such positions respectively as may hereafter be reasonably approved by the corporation. Provided that the Company shall have the right to construct the foundations of a retaining wall under the roadway of the corporation situate between the bridge carrying the railway over the said road leading from Ely to Fairwater and a point 5 chains west of the said bridge:

(15) If any water main be rendered unnecessary by reason of the pulling down of the buildings supplied thereby the Company shall reimburse the corporation the value of such water main : A.D. 1914.

(16) Any relaying alteration or diversion of any existing or the substitution of any new for any existing water main electric main or sewer executed under or rendered necessary by the exercise of the powers of this Act may be effected by the corporation at the reasonable cost of the Company and any new or additional water main electric main or sewer and any increased length of any existing water main electric main or sewer so rendered necessary shall be provided by the corporation at the reasonable cost of the Company Provided also that nothing herein contained shall empower the corporation to execute or construct any works which when constructed will form part of the railway or undertaking of the Company :

(17) Every such relaying alteration diversion and substitution effected by the corporation shall be done to the reasonable satisfaction of the engineer of the Company :

(18) All works executed by the Company under the powers of this Act in any way affecting any lands buildings water mains electric mains streets sewers or drains which are the property of the corporation shall (subject in the case of any water main electric main or sewer to the right of the corporation to execute the same as hereinbefore provided) be executed by and at the cost of the Company under the superintendence if such be given and to the reasonable satisfaction of the corporation in accordance with plans and sections reasonably approved of by them before the commencement of the work Provided that if the corporation fail for a period of twenty-eight days after the submission of the said plans and sections to express in writing their disapproval thereof or their requirements in relation thereto the corporation shall be deemed to have approved thereof The corporation shall be at liberty to employ in connection with such works as aforesaid which may

A.D. 1914.

be carried out by the Company any watchmen or inspectors who may be reasonably required and the Company shall pay to the corporation the reasonable cost incurred by them in connection with the employment of such watchmen and inspectors as aforesaid:

- (19) Nothing in this Act shall interfere with the rights or powers of the corporation in relation to the making of new sewers and drains or the laying of new water mains or electric mains and if the corporation at any time desire to construct or lay any sewer drain water main or electric main under any works constructed on any land acquired by the Company under the powers of this Act the Company shall give the corporation all reasonable facilities for carrying out the work required for the purposes of this subsection but all such work shall be carried out under the superintendence and to the reasonable satisfaction of the engineer of the Company:
- (20) The Company and the corporation may enter into and carry into effect agreements for and with respect to the variation and mode of execution of any works to be done by the Company for the protection of the corporation and for the execution by the corporation of any such works and the acquisition of land therefor:
- (21) The corporation may (in addition to any moneys they now are authorised to borrow) borrow at interest on the security of the district fund and general district rate of the borough for the purposes of this section (being purposes to which capital is properly applicable and not otherwise) such sum or sums as the Local Government Board may sanction and in calculating the sum the corporation may borrow under any other enactment any sums they may borrow under this section shall not be reckoned and the powers of the corporation as to borrowing and reborrowing under this section shall not be restricted by any of the provisions of the Municipal Corporations Acts or of the Public Health Act 1875 or of the Local Government Act 1888:
- (22) The provisions of Part V. (Finance) of the Cardiff Corporation Act 1909 shall as far as the same are

applicable for the purpose subject to the provisions of this subsection extend and apply mutatis mutandis to and in relation to the borrowing reborrowing and repayment of any moneys borrowed for the purposes of this section Provided that the period within which the said moneys shall be repaid shall be such as may be sanctioned by the Local Government Board not exceeding sixty years from the date of the borrowing thereof and that the date of the first payment by instalments or into a sinking fund shall be the first day of January after such borrowing: A.D. 1914.

(23) If any difference arise between the Company and the corporation touching anything to be done or not to be done or any moneys to be paid under the provisions of this section such difference shall be settled by arbitration by an engineer appointed (unless otherwise agreed upon) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889:

(24) The provisions of this section shall not extend or apply to any sewer drain water main or electric main laid down by the corporation under over or along the property of the Company under the provisions of any agreement between the Company and the corporation where the provisions of this section are inconsistent with the provisions of the agreement in which case the provisions of the agreement shall apply.

83. For the protection of the Barry Railway Company (in this section referred to as "the Barry Company") the following provisions shall unless otherwise agreed between the Company and the Barry Company have effect (that is to say):— For protection of Barry Railway Company.

(1) Notwithstanding anything contained in this Act or shown on the deposited plans in constructing the widening by this Act authorised of the bridge carrying the South Wales Railway of the Company over the River Ely at a point about 32 chains southwest of St. Fagan's station the Company shall not enter upon take or use any of the land belonging

A.D. 1914.

to the Barry Company north of the agreed boundary between the Barry Company's and the Company's railway in the parish of St. Fagan's as shown by a red line upon the plan signed by William Wylie Grierson on behalf of the Company and by William Waddell on behalf of the Barry Company and neither the Company nor the Barry Company shall remove the line of the said agreed boundary without the consent in writing under the common seal of both companies first had and obtained but either the Company or the Barry Company may at their own cost and expense fill in and level up any portion of the existing hollow between their respective railways between the points marked A and B respectively on the signed plan for the purpose of utilising to the best advantage the ground so made available Provided that the Barry Company shall not fill in and level up the Company's property above the level of the formation of their railway :

- (2) Either company shall be at liberty when occasion requires to extend the bridges carrying their respective railways over the River Ely south-west of and near to St. Fagan's Station to the boundary line shown on the said plan but so that neither company shall encroach upon the property of the other :
- (3) During the carrying out of the diversion in the parish of Peterstone-super-Ely by this Act authorised of the road leading from Bonvilston to St. Brides-super-Ely which crosses the railway of the Company at or near Peterston West Junction and any necessary alteration of the levels of the road numbered on the deposited plans 63 in the said parish the Company shall maintain as far as reasonably practicable access between the said roads and shall on the completion of the said diversion connect the approach road with the diverted road in such manner as may be reasonably approved by and to the reasonable satisfaction of the Barry Company but in any case so that the gradient of any such alteration or connection shall not be steeper than exists at present :
- (4) The powers conferred upon the Company by this Act with reference to the Deviation and Widening No. 1

(Western Valleys Cross Keys) shall not in any way prejudice or alter the powers of the Barry Company to construct the railways authorised by the Barry Railway Act 1907 as amended by the Barry Railway Act 1911 or the provisions of an agreement dated the 21st day of June 1910 made between the Barry Company and the Company with regard to the construction of a portion of the railways authorised by those Acts: A.D. 1914.

- (5) Any difference which may arise between the Company and the Barry Company under this section shall unless otherwise agreed be determined by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889.

84. For the protection of the Llantrisant and Llantwit Fardre Rural District Council (hereinafter called "the council") the following provisions shall unless otherwise agreed between the Company and the council have effect (that is to say):—

For protection of Llantrisant and Llantwit Fardre Rural District Council.

- (1) Notwithstanding anything in this Act or shown upon the deposited plans the Company shall not enter upon or acquire any part of the properties numbered on the deposited plans 12 14 16 21 and 23 in the parish of Llantrisant except only the strip of land forming part of those properties which is coloured pink on the plan A signed in duplicate by William Wylie Grierson on behalf of the Company and by Gomer Sweeting Morgan on behalf of the council:
- (2) The Company shall grant to the council free of charge an easement or right of constructing maintaining and using between the points marked A and B on the said plan A a protected stoneware or cast-iron pipe of a diameter of not more than 2 feet for the purpose of conveying and discharging sewage and sewage effluent into the River Ely and any other work necessary or incidental to such pipe Provided that the Company shall be at liberty to construct any works in connection with the widening of their railway over such pipe so as not to prevent the user of the pipe the council at their own expense encasing it in concrete if necessary for its protection:

A.D. 1914.

- (3) The Company shall if and when required so to do by the council and to their reasonable satisfaction extend the existing culvert shown on the said plan A for a distance of 10 feet beyond the Company's northern boundary fence as altered under the powers of this Act :
- (4) In executing the lengthening by this Act authorised of the bridge in the parish of Llantrisant which carries the road leading from Welsh St. Donat's to Aberdare over the South Wales Railway of the Company at Miskin the Company shall widen the said bridge and improve the turn at the southern end of the said bridge in the manner shown by red lines on the plan B signed as aforesaid and erect parapets on both sides of the widened bridge and a fence in extension of the parapet on the easterly side of the said bridge of a height of not less than 4 feet and form make up and metal a carriageway over the widened portion of the said bridge and altered portion of road :
- (5) If any difference shall arise between the Company and the council under the provisions of this section such difference shall be referred to and settled by an arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protec-
tion of Llan-
daff and
Dinas Powis
Rural
District
Council.

85. Notwithstanding anything in this Act contained or shown on the deposited plans and sections the following provisions for the protection of the rural district council of Llandaff and Dinas Powis (in this section referred to as "the council") shall unless otherwise agreed between the Company and the council apply and have effect (that is to say):—

- (1) The provisions of sections 7 and 8 of Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863 shall apply to the existing lines of rails at each of the level crossings of the Company's South Wales Railway hereinafter referred to in the district of the council as though the South Wales

Railway of the Company had been authorised after A.D. 1914.
the passing of the Railways Clauses Act 1863
namely :—

(A) The level crossing in the parish of Saint Fagans known as St. Fagan's Level Crossing on the south-western side of St. Fagan's Station ;

(B) The level crossing in the parish of Peterstone-super-Ely known as Pontcarn Level Crossing ;

(C) The level crossing in the parish of Pendoylon known as Miskin Level Crossing ;

In addition to the said sections section 5 of the said Act of 1863 shall apply to the two last-mentioned level crossings and the Company shall maintain a signal cabin or lodge at each of the before-mentioned level crossings for protecting such crossings respectively :

(2) Before the Company lay down any additional lines of rails across the footpath which passes through the enclosure numbered on the deposited plans 49 in the parish of Peterstone-super-Ely and leading from Station Terrace Peterstone to Croesvane they shall carry the same over the South Wales Railway by means of a footbridge not less than 4 feet in width such bridge to be constructed to the reasonable satisfaction of the council and to be maintained by the Company and the Company shall not be under any obligation to light and sand such bridge Provided that the Company may divert the said footpath to such an extent as may be reasonably necessary and in accordance with a plan to be previously submitted to and reasonably approved by the council and if the Company so desire over any footbridge which may be provided by the Company at Peterston Station :

(3) The Company shall construct the diversion of the road numbered 61 and 61A in the parish of Peterstone-super-Ely on the deposited plans in respect of "Additional lines of rails bridges roads and lands between Llantrisant and Peterston" of a width of not less than 25 feet and such diversion and any necessary alteration in the line or level of any road

A.D. 1914.

maintained by the council within the limits of deviation shown on the deposited plans in respect of the said road diversion shall be carried out in accordance with a plan and section to be reasonably approved by the council and to their reasonable satisfaction and the bridge and approaches of the diverted road shall be maintained by the Company:

- (4) Before laying down any additional line of rails across either of the existing footpaths in this subsection referred to the Company shall divert so much of the public footpath which crosses the South Wales Railway on the level at a point about 25 chains north-west of Ely Station as lies between points respectively about 11 chains south-east and 3 chains north-west of the said crossing and shall construct a footbridge to carry the said diverted footpath over the railway at some point to be reasonably approved by the council between the said existing footpaths and shall make a new footpath in a position to be reasonably approved by the council on the northern side of the railway so as to connect the diverted footpath with the footpath which crosses the said railway on the level at a point about 15 chains north-west of the said station and on the completion of the said works the Company may stop up so much of the said last-mentioned footpath as lies between its respective junctions with the said first-mentioned footpath and with the said new footpath. The said works shall be constructed in accordance with a plan and section to be submitted to and reasonably approved by the council and to the reasonable satisfaction of the council and the said footbridge shall be maintained by the Company who shall not be liable to light and sand the same:
- (5) The Company shall not break up any street nor raise sink or alter the position of any sewer drain or watercourse or any electric mains or apparatus of the council until they shall have given to the clerk to the council seven clear days' notice in writing of their intention to commence the intended works accompanied by plans sections and other necessary particulars showing the works proposed to be executed

by the Company so far as they affect the streets sewers drains watercourses and electric mains and apparatus proposed to be so interfered with: A.D. 1914.

- (6) The Company in carrying out the works authorised by this Act or any works on lands to be acquired under the powers of this Act shall to the reasonable satisfaction of the council make good all damage which may be caused to or may be the consequence of any interference with any sewer drain or watercourse or to any electric main or apparatus of the council:
- (7) Whenever in carrying out the said works it may be necessary to intercept or remove or displace or otherwise interfere with any sewer or drain the Company shall before intercepting removing displacing or interfering with such sewer or drain construct according to a plan to be reasonably approved of by the council another sewer or drain in lieu of and of equal capacity to the sewer or drain so proposed to be intercepted removed displaced or interfered with and such substituted sewer or drain shall be connected by the council at the expense of the Company with the existing sewer or drain:
- (8) If it shall be necessary to construct any works on lands to be acquired under the powers of this Act over any sewer drain or electric main belonging to the council provision shall be made to the reasonable satisfaction of the council for protecting such sewer drain or electric main from injury and for affording convenient access thereto for the purpose of examination alteration renewal or repair:
- (9) If by reason of the execution of any of the powers of this Act or the carrying out of any works on lands to be acquired under the powers of this Act the council shall necessarily incur any cost in altering or removing any existing sewer drain or electric main or apparatus the Company shall repay such reasonable cost to the council on demand:
- (10) The provisions of this section shall not extend or apply to any sewer drain or electric main laid down by the council under over or along the property of the Company under the provisions of any agreement

A.D. 1914.

between the Company and the council where the provisions of such agreement are inconsistent with the provisions of this section in which case the provisions of the agreement shall apply :

- (11) Any difference which may arise between the council and the Company as to the true intent and meaning of any of the provisions of this section or as to the mode of giving effect thereto shall be settled by an engineer to be appointed (unless otherwise agreed) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply thereto.

For protection of
Glamorgan
County
Council.

86. For the protection of the county council of the administrative county of Glamorgan (in this section called "the county council") the following provisions notwithstanding anything to the contrary contained in this Act or shown on the deposited plans and sections shall unless otherwise agreed in writing between the Company and the county council apply and have effect (that is to say):—

- (1) (A) The two bridges by this Act authorised to be constructed in the parish of Neath Lower and in the parish of Neath Higher respectively over the main road leading from Neath to Glyn Neath numbered respectively on the deposited plans 2 in the parish of Neath Lower and 2 in the parish of Neath Higher shall be constructed in each case with a clear span over the road of not less than 35 feet between the abutments measured on the square and a clear headway throughout the length and width of the bridge above the highest part of the surface of the road of not less than 16 feet ;
- (B) The Company shall carry Railway No. 10 where it crosses over the main road leading from Neath to Glyn Neath numbered 24 in the parish of Neath Higher by means of a bridge having a clear span of not less than 36 feet between the abutments measured on the square and a clear headway throughout the entire length and width of the bridge above the highest part of the surface of the roadway of not less than 16 feet :

(2) In constructing the before-mentioned bridges the Company shall not alter the existing levels of the roads and the lines of the faces of the abutments of the bridges shall be such as shall be reasonably approved by the surveyor of the county council and in the case of the bridge carrying Railway No. 10 shall be so laid out as not to interfere with any diversion of the road which may have been completed before the construction of the railway or which may be in course of construction at or near the point of crossing when the railway is under construction. Provided that the county council shall not in carrying out such diversion raise the existing level of the said road at the said point of crossing : A.D. 1914.

(3) Forthwith after the construction of each of the three bridges mentioned in subsection (1) of this section the Company shall dedicate as part of the road such land situate under the said bridges respectively and on each side thereof within the limits of the Company's property as may be required for the purpose of enabling the respective roads within such limits to be constructed of a width not less than the respective widths of the bridges as prescribed by the said subsection :

(4) In carrying out the Deviation and Widening No. 2 by this Act authorised where the same crosses the main road known as Station Road in the parish and urban district of Margam (i) the Company shall carry the railway over such road by means of a bridge having a clear span of not less than 40 feet between the abutments measured on the square and a clear headway throughout the length and width of the bridge above the highest part of the surface of the road as altered under the powers of this Act of not less than 16 feet and the lines of the faces of the abutments of the bridge shall be such as shall be reasonably approved by the surveyor of the county council and (ii) the Company shall not alter the level of the road to any extent downwards greater than that shown on the deposited sections and the road when altered shall be horizontal under

A.D. 1914.

the bridge and on the south-eastern side thereof and shall have a gradient not steeper than 1 in 30 on the north-western side thereof :

- (5) So soon as the Deviation and Widening No. 2 shall be completed and opened for traffic the level crossing of Station Road over which the railway of the Rhondda and Swansea Bay Railway Company passes shall be closed to traffic and abandoned and the Company shall remove the rails upon such crossing and reinstate and make good the roadway and foot-paths to the reasonable satisfaction of the county council and shall also to the like satisfaction set back the gates and road fences on the site and on either side of and immediately adjoining the level crossing so as to provide a width of not less than 40 feet for the road :
- (6) The Company shall not exercise the powers conferred upon them by this Act of narrowing nor shall they in constructing the said Deviation and Widening No. 2 decrease the width of the River Avan north of the point where the South Wales Railway of the Company crosses such river and as from the abandonment of the level crossing of Station Road and the removal of the rails as provided for by subsection (5) of this section the provisions of the agreement between the county council and the Rhondda and Swansea Bay Railway Company (a copy of which is set forth in the Second Schedule to the Rhondda and Swansea Bay Railway Act 1893) shall cease to operate Provided nevertheless that in the event of any alteration by the Company of the river under the powers of this Act causing any damage to the said bridge or necessitating any alteration or reconstruction thereof to admit of the waters of the altered river being carried under such bridge as effectually as heretofore the Company shall make good such damage and carry out any such alteration or reconstruction of the bridge to the reasonable satisfaction of the county council and shall indemnify the county council against all loss costs damages and expenses which they may sustain or incur by reason or in consequence of the alteration of the river :

(7) In carrying out the widening of the Llanelly Railway by this Act authorised the Company shall not interfere with any portion of the structure of the stone bridge carrying the main road leading from Carmarthen to Swansea over the River Loughor at Pontardulais or with such part of the roadway thereon or near the same as is situate within the county of Glamorgan: A.D. 1914.

(8) (A) In widening the bridge carrying the South Wales Railway of the Company between Margam and Bridgend over the road leading from Tondy to Bridgend at a point about 12 chains north-west of the bridge carrying the said railway over the River Ogmore the Company shall remove the existing bridge and substitute therefor a bridge for carrying the existing railway and widenings on either side thereof having a span of not less than 36 feet between the abutments measured on the square and a clear headway throughout the entire length and width of such bridge of not less than 15 feet 6 inches above the highest part of the surface of the road under the existing bridge and the present rail level over the said bridge shall not be lowered;

(B) The abutments of such bridge shall be constructed on the lines shown in red on the plan signed in duplicate by William Wylie Grierson on behalf of the Company and George Alfred Phillips on behalf of the county council and the Company may for the purpose of and for a reasonable period during the construction of the said bridge temporarily reduce the width of the road thereunder to not less than 12 feet;

(C) In altering the roadway under the bridge the Company shall not make the gradients thereof steeper than 1 in 25 and shall make up the roadway to the reasonable satisfaction of the surveyor of the county council;

(D) The Company shall also carry out such alterations of existing surface water drains and construct such additional drains as may be rendered necessary by

A.D. 1914.

reason of the widening of the said bridge and alterations of the road to the reasonable satisfaction of the said surveyor;

- (E) Forthwith after the construction of the said substituted bridge the Company shall dedicate as part of the road such land situate under such bridge and on each side thereof within the limits of the Company's property as may be required for the purpose of enabling the road within such limits to be constructed of a width of not less than 36 feet:
- (9) (A) In lengthening the bridge carrying the main road leading from Aberavon to Bridgend over the South Wales Railway of the Company at or near the western end of Pyle Station the Company shall widen the existing bridge and construct the lengthened portions thereof so as to provide a clear width throughout of not less than 35 feet between the parapets of the bridge and shall not make the gradients of the said road steeper than 1 in 25;
- (B) The Company shall also at the request in writing of the county council dedicate as part of the road such land other than buildings situate within the limits of the Company's property (including part of the enclosure numbered 23 on the deposited plans if acquired by the Company) as may be required for the purpose of enabling the approaches on either side of the bridge within such limits to be widened to 35 feet with embankment slopes not flatter than one and a half to one:
- (10) If required by the county council so to do the Company shall when constructing the bridge works referred to in this section erect close parapets or screen fences to all such bridges of not less than six feet in height above the level of the rails or of the road as the case may be throughout the entire crossing of the road and extending for a distance of not less than five feet on each side of such bridges beyond the face line of the abutments of the same:
- (11) The Company shall not affix or exhibit or permit to be affixed or exhibited upon the said parapets or

screens any advertisements except such as may relate to the business of the Company : A.D. 1914.

- (12) All bridges carrying the railways over any of the roads shall be constructed and maintained so as to prevent so far as reasonably practicable the dripping of water on to the road or footpaths beneath :
- (13) The Company shall permit the county council to fix in suitable positions on the said bridges which carry the railways of the Company over any road attachments for carrying any live electric wires which may be required for traction purposes and such attachments shall be in all respects subject to the reasonable approval of the engineer of the Company and shall be removed at the cost of the county council temporarily whenever necessary for the maintenance reconstruction alteration or painting of the said bridges the Company at the like cost affording all necessary support for such wires :
- (14) Before commencing the construction of any of the before-mentioned works or any other work to be executed under the provisions of this Act which will interfere with or affect any main road or bridge vested in or under the control of the county council the Company shall deliver to the county council plans and sections and other particulars showing the general position and alignment of such works and other matters provided for under this section for the approval of the surveyor of the county council and if such surveyor shall fail to approve or disapprove of such plans sections and other particulars for 28 days after the same shall have been delivered he shall be deemed to have approved of the same and the work shall be carried out by the Company in accordance with such plans sections and particulars Provided that if such surveyor within the said period shall have expressed his disapproval of the said plans sections and other particulars the Company shall not commence any such work unless and until plans sections and other particulars shall have been approved by an arbitrator appointed as hereinafter in this section mentioned :

A.D. 1914.
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- (15) If any difference shall arise between the Company and the county council with respect to any matter under this section the same shall be determined by an arbitrator to be appointed failing agreement on the application of either party after notice to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of
Penybont
Rural
District
Council.

87. Notwithstanding anything in this Act contained or shown upon the deposited plans and sections the following provisions for the protection of the rural district council of Penybont (in this section referred to as "the council") shall unless otherwise agreed upon between the Company and the council apply and have effect (that is to say):—

- (1) In widening the bridge known as Water Street Bridge which carries the South Wales Railway of the Company over the road connecting Water Street with Heol-y-Sheet and numbered on the deposited plans for "Bridges footpath and lands between Margam and Bridgend" 5 in the parish of Kenfig the Company shall construct the widened portions thereof with a clear span of not less than 25 feet and a clear headway of not less than 13 feet 6 inches and shall increase the span of the existing bridge to the same width and with the like headway and the council shall upon the completion of the work pay to the Company on demand the sum of 150*l.*:
- (2) In widening the bridge known as Cwrt-y-folan Bridge which carries the said railway over the road leading from Tondu to Bridgend at a point situate about 52 chains north-west of the bridge carrying the said railway over the River Ogmore near Bridgend and numbered on the said plans 43 in the parish of Newcastle Higher the Company shall construct the widened portion thereof on the northern side with a clear span not less than that of the existing bridge and the widened portion on the southern side thereof with a clear span of 24 feet constructed so far as shall be reasonably practicable in the alignment of the existing road:

- (3) Nothing in this Act shall empower the Company to stop up any rights of way over the footpath which passes through the fields or enclosures numbered on the said plans 12 and 13 in the parish of Newcastle Higher and which passes under the said railway near the $192\frac{3}{4}$ mile post or over the footpath which traverses the fields or enclosures numbered on the said plans 52 and 54 in the said parish and which crosses the said railway near Coed-cil-berthi: A.D. 1914.
- (4) The council consent so far as they lawfully can to the diversion of the footpath adjoining the southern side of the said railway which leads from the road at Marlas Bridge numbered on the said plans 18 in the parish of Kenfig to the road leading from Kenfig to Pyle Station numbered on the said plans 14 in the parish of Pyle in such manner as the Company may reasonably require for the purposes of their intended works such diverted footpath to be of a width of not less than 3 feet and to be carried out to the reasonable satisfaction of the council:
- (5) If any difference shall arise between the Company and the council respecting any matter under this section the same shall in default of agreement be determined by an engineer to be agreed upon or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall extend and apply to the determination of such difference.

88. For protection of Gertrude Barbara Rich Tennant or other the owner or owners for the time being of the Tennant Canal Navigation and the Tennant Estate (all of whom are included under the expression "the owner" when used in this section) the following provisions shall unless otherwise agreed between the owner and the Company apply and have effect (that is to say):—

For protection of Gertrude Barbara Rich Tennant.

- (1) Notwithstanding anything in this Act or shown on the deposited plans the Company shall not under the powers of this Act purchase or acquire from the owner any lands in the parishes of Blaenhondda and Llantwit Lower other than those lands coloured green on the two plans marked A and B signed in duplicate

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by William Wylie Grierson on behalf of the Company and Arthur Thomas Williams on behalf of the owner (hereinafter in this section referred to as "the signed plans") and the owner shall sell and the Company shall purchase within twelve months after the passing of this Act the said lands coloured green:

- (2) Contemporaneously with the sale and purchase of the said lands coloured green on the signed plan A the Company shall and may purchase and acquire from the owner or owners thereof and convey to the owner free of cost as the consideration for the said land coloured green on the plan marked A the land coloured pink upon the same plan subject to all existing rights of way over the said lands coloured green and pink respectively being reserved to the owner and the Company respectively:
- (3) The price to be paid by the Company to the owner for the said land coloured green on the said plan marked B shall be agreed between the Company and the owner or failing agreement shall be settled by arbitration in accordance with the provisions of the Lands Clauses Acts:
- (4) The Company at their own expense upon the lands to be acquired by them but subject in all things to the reasonable approval of the owner shall from time to time extend under any works to be constructed by the Company in a manner to be reasonably approved by the owner the existing culverts provided for the passage of water under the Vale of Neath Railway from the Tennant Canal Navigation and adjacent lands to the River Neath and the Company shall thereafter maintain the said culverts in good and substantial repair and condition and clear and also keep the ditches between the Tennant Canal and the River Neath clear for the free flow of water to the full capacity of such culverts:
- (5) If any difference shall arise between the Company and the owner the settlement of which is not otherwise provided for in this section the same shall unless otherwise agreed be determined by an engineer to be appointed on the application of either party by

the President of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889. A.D. 1914.

89. The following provisions for the protection and benefit of the mayor aldermen and burgesses of the county borough of Swansea (hereinafter called "the corporation") and of the inhabitants of that borough shall in addition to any other provisions enuring for their protection and benefit and except so far as may be otherwise agreed between the Company and the corporation apply and have effect (that is to say):—

For protection of Swansea Corporation.

(1) Before the Company shall stop up divert or interfere with any portion of Jockey Street Powell Street Pottery Street or Bargeman's Row under the provisions of this Act they shall construct to the reasonable approval of the corporation and in accordance with plans sections and particulars to be previously submitted to and reasonably approved by them a subway (hereinafter called "the subway") under their railway connecting Pottery Street with the Strand and such subway shall be constructed in accordance with the following particulars:—

(A) The clear height of the subway shall be at least 8 feet throughout and the width thereof 10 feet throughout;

(B) The subway shall be constructed with gradients not exceeding 1 in 5;

(C) The subway shall be constructed in the lines shown upon the plan which has been signed by William Wylie Grierson on behalf of the Company and by George Swarbrick on behalf of the corporation;

(D) The walls of the subway shall be lined with a dado of brindle bricks 3 feet high and above that height with white glazed tiles or bricks;

(E) The floor of the subway shall be constructed of concrete or other similar material and in such a manner as to prevent the accumulation of water therein;

(F) The Company shall so far as it may be necessary or so far as the corporation may reasonably require them so to do alter the position of

A.D. 1914.

the sewer of the corporation which is situated under Pottery Street and of any water mains and electricity cables belonging to the corporation which may be situated therein or thereunder and relay the same under the floor of the subway in such a manner as may be reasonably approved by the corporation and they shall provide new entrances to any manholes that may be interfered with by them in so doing :

(2) So soon as the subway shall have been constructed in accordance with the foregoing provisions of this section the following provisions shall apply thereto:—

(A) The Company shall at all times thereafter maintain and repair to the reasonable approval of the corporation the subway other than the floor thereof which when constructed shall be maintained and repaired by the corporation ;

(B) The Company shall erect or place and for ever maintain to the reasonable approval of the corporation in the roof of the subway two gas or electric lamps in such positions as the corporation may reasonably approve Such lamps shall be kept lighted both by day and night at all times by and at the expense of the Company ;

(c) The corporation shall be at liberty without payment to the Company if and when they think fit so to do to place lay down and maintain in and through and under the floor of the subway such water mains or pipes and electricity mains or cables as they may think fit ;

(D) The corporation shall be at liberty at all times to maintain under the floor of the subway the existing sewer and water mains belonging to them which are situate along and beneath the surface of Pottery Street where that street crosses the lands proposed to be acquired by the Company and where the same crosses under the railway of the Company and any extension or enlargement of that sewer and also to lay down and maintain such further sewers thereunder as they may think fit ;

(E) Any works to be carried out by the corporation under the last two preceding paragraphs of this subsection shall be executed so as not to interfere with the stability of the railway of the Company : A.D. 1914.

- (3) The new road from Jockey Street to the Strand authorised by this Act shall be constructed by the Company throughout of a width of 20 feet whereof 16 feet shall be carriageway and 4 feet footpath and the same shall be properly metalled drained paved channelled kerbed and made up by the Company to the reasonable approval of the corporation :
- (4) The Company shall construct and maintain upon lands to be acquired by them under this Act to the reasonable approval of the corporation a roadway or passage for carriages and foot passengers 13 feet in width and connecting Powell Street with Jockey Street and such roadway or passage shall be properly metalled drained and lighted by the Company and the gradients thereof shall not be steeper than 1 in 12 :
- (5) Before the Company shall stop up any portion of Powell Street or Jockey Street under the provisions of this Act they shall alter and divert to the reasonable approval of the corporation and in accordance with plans and sections to be submitted to and reasonably approved by them any water mains and pipes and any sewers or drains belonging to the corporation and situated in or under the portions of those streets so proposed to be stopped up or on any lands to be acquired by the Company under this Act Such diversion shall be carried out in such a manner as not to prevent or endanger the continuance of the passage of water electricity or sewage along the existing mains pipes cables or sewers or the diverted mains pipes and sewers (as the case may be) as efficiently as the same was done before the work above-mentioned was commenced to be carried out by the Company Any such mains pipes cables or sewers diverted by the Company from the portion of Jockey Street proposed to be stopped up shall be laid down by them along the proposed new road

A.D. 1914.

from Jockey Street to the Upper Strand and any such mains pipes cables and sewers diverted from Powell Street shall be laid down by the Company along the proposed new roadway or passage to be constructed by them under the last preceding subsection between Powell Street and Jockey Street:

- (6) Notwithstanding the stopping up of a portion of Powell Street by the Company under the provisions of this Act the corporation shall be at liberty to construct and maintain under the portion of that street so proposed to be stopped up a storm water sewer of such diameter as they may determine not exceeding 5 feet but in constructing and maintaining the same they shall do as little damage as possible to the works and property of the Company and the works shall be carried out under the superintendence (if given) of the engineer of the Company and in accordance with plans sections and particulars to be previously submitted to and reasonably approved by such engineer Provided that if the said engineer does not signify his approval or disapproval of such plans sections and particulars within 28 days of their submission to him he shall be deemed to have approved thereof:
- (7) If any dispute or difference arises between the Company and the corporation under the provisions of this section or as to anything to be or not to be done thereunder the same shall be referred to and determined by arbitration the arbitrator being appointed failing agreement by the Local Government Board on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of Swansea Gas Light Company.

90. For the protection of the Swansea Gas Light Company (in this section called "the gas company") the following provisions shall unless otherwise agreed apply and have effect (that is to say):—

- (1) At least 28 days before commencing any works by this Act authorised affecting any main pipes syphons tubes or other works (hereinafter called "apparatus") of the gas company the Company shall deliver to the

gas company plans and sections and a description of the works so proposed to be executed describing the proposed manner of executing the same and (except in the case of emergency) a notice stating the date when it is proposed to commence such works :

- (2) If it should appear to the gas company that such works will endanger any of their apparatus or impede the supply of gas the gas company may give notice to the Company to raise lower or otherwise alter the position of such apparatus or to substitute temporarily or otherwise other apparatus or to lay additional new apparatus to connect up any apparatus or part thereof rendered useless or partially useless by any works of the Company in such manner as may be considered necessary and to lay or place under or over any apparatus cement concrete or other like substances and any difference as to the necessity of such lowering alteration support substitution laying or placing cement concrete or other like substances shall be settled as hereinafter provided and all such works shall be done and executed by and at the expense of the Company but to the reasonable satisfaction and under the superintendence if such be given of the engineer of the gas company Provided that if the gas company by notice in writing to the Company within fourteen days after the receipt by them of notice of the intended commencement by the Company of any such works affecting the said apparatus so require the gas company may by their own engineer or workmen do and execute such works so far as they interfere with or directly affect the apparatus of the gas company and the Company shall on completion thereof pay to the gas company the reasonable expenses incurred by them in the execution thereof :
- (3) In the event of such plans sections and description so delivered to the gas company as aforesaid not being objected to within fourteen days they shall be deemed to have been approved by the gas company :
- (4) The gas company may employ such watchmen as may be necessary to watch the works whereby any apparatus belonging to them will be interfered with or affected

A.D. 1914.

during their construction repair or renewal and the reasonable wages of such watchmen shall be borne by the Company and be paid by them to the gas company :

- (5) If the Company for any of the purposes of this Act take or render useless to the gas company any apparatus belonging to the gas company in any streets highways roads footpaths lanes courts passages and other places within the limits shown on the deposited plans which are now used by the gas company for supplying gas to such streets highways roads footpaths lanes courts passages and other places they shall pay to the gas company the value of such apparatus and the same shall thereupon become the property of the Company and the Company shall also pay to the gas company the reasonable charges of removing or altering any of their apparatus in immediate communication therewith which the works of the Company shall render necessary or which shall be required to be altered :
- (6) The Company shall be responsible for and make good to the gas company all costs losses damages penalties and expenses which may be incurred by or occasioned to the gas company or to any of their apparatus property works and conveniences (including any loss of gas or interruption in the supply of gas by the gas company and all injury or loss by explosion or otherwise) through by reason of or consequent on the execution user or failure of any of the intended works or through by reason of or consequent on any act or omission of the Company or of any of their contractors agents workmen or servants or of any of the persons in their employ or in the employ of their contractors or others or by reason of or consequent on any subsidence caused by any works authorised by this Act to be done by the Company and the Company will effectually indemnify and hold harmless the gas company from all penalties claims and demands upon or against them by reason of such execution or failure or of any such act or omission as aforesaid Provided that the Company shall not be liable for any such costs losses damages penalties or expenses as aforesaid if the same shall be

occasioned by anything done or not done in compliance and accordance with any requirement of the gas company: A.D. 1914.

- (7) If any difference shall arise with respect to any matter under this section between the Company and the gas company or their respective engineers or concerning any plans sections or description to be delivered to the gas company under the foregoing provisions of this section the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto in accordance with the provisions of the Arbitration Act 1889.

91. For the protection of the Right Honourable Walter Fitz-Uryan Baron Dynevor his heirs successors in title and assigns (all of whom are in this section referred to and included in the expression "the owner") the following provisions shall unless otherwise agreed between the Company and the owner have effect (that is to say):— For protection of Lord Dynevor.

- (1) Notwithstanding anything in this Act or shown on the deposited plans the Company shall not (A) acquire any part of the approach road leading to Parc-y-Rhyn Uchaf across the property numbered on the deposited plans 17 in the parish of Ammanford Urban or any part of that property which would prevent the widening by the owner of the said approach road to 36 feet (B) acquire any part of the property numbered on the deposited plans 11 in the said parish of Ammanford Urban or any part of the property numbered 12 in that parish which is situate within a distance of 36 feet of the north-eastern limit of lengthening marked on the said plans nor alter the levels of Pen-y-banc Road within the said distance :
- (2) If the Company acquire any part of the lands numbered respectively on the deposited plans 18 and 19 in the said parish of Ammanford Urban they shall to the reasonable satisfaction of the owner erect on the altered boundary of the Company's property a suitable wall or fences of a height of not less than 5 feet above the level of the lands of the owner

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immediately adjoining such wall and thereafter maintain the same to the like satisfaction :

- (3) If any difference shall arise between the owner and the Company under the provisions of this section such difference shall be referred to an arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to such reference.

Expenses
of local
authorities.

92. Any expenses incurred by a local authority under and for any of the purposes of this Act shall except where otherwise expressly provided be deemed to be expenses under and for the purposes of the Public Health Act 1875.

Power to
two com-
panies to
construct
works.

93. Subject to the provisions of this Act the two companies or either of them with as between themselves the consent of the other may make and execute in the lines and according to the levels shown upon the deposited plans relating thereto the works and exercise the powers hereinafter mentioned and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for that purpose (that is to say):—

In the parish of Wellington Urban and urban district of Wellington in the county of Salop the lengthening at the northern end of the bridge which carries Victoria Street over the Shrewsbury and Wellington Railway of the two companies :

In the parish and city and county borough of Chester in the county of Chester the lengthening at the north-eastern end of the bridge which carries Hoole Lane over the Birkenhead Railway of the two companies :

In the parish of Wellington Rural in the rural district of Wellington in the county of Salop the widening on the south-western side of the bridge which carries the Shrewsbury and Wellington Railway of the two companies over Wrockwardine Road :

In the parish of Wrockwardine in the rural district of Wellington in the county of Salop—

To alter and divert so much of the footpath leading from Admaston to Wrockwardine Road which is carried

over the said Shrewsbury and Wellington Railway by means of a bridge at a point about 30 chains south-east of Admaston Station as lies between the south-western end of the said bridge and a point about 15 chains south-east of the said bridge: A.D. 1914

In the parish of Ellesmere Port and urban district of Ellesmere Port and Whitby in the county of Chester---

To stop up and discontinue so much of the footpath along the south-eastern side of the road connecting Whitby Road with Station Road and which crosses the Hooton and Helsby Railway of the two companies on the level at the western end of Ellesmere Port Station as lies between points respectively about $1\frac{1}{2}$ chains south-west and 2 chains north-east of the said level crossing and in lieu thereof (A) to make and maintain a new subway on or near the site of the said footpath between the said points and (B) to widen and alter the levels of so much of the roadway on the western side of the said connecting road as lies between points respectively about 4 chains south-west and 4 chains north-east of the subway carrying the same under the said railway.

94. Subject to the provisions of this Act the two companies or either of them with as between themselves the consent of the other may enter upon take and use and hold for the purposes of the two companies or either of them and for providing increased accommodation the lands hereinafter mentioned delineated on the deposited plans thereof and described in the deposited books of reference relating thereto (that is to say):—

Power to two companies to acquire additional lands.

In the county of Salop—

Certain lands in the parishes of Wrockwardine and Wellington Rural in the rural district of Wellington and in the parish of Wellington Urban and urban district of Wellington lying on and adjoining the south-western side of the Shrewsbury and Wellington Railway of the two companies and extending from a point about 3 chains south-east of Admaston Station to a point about 20 chains south-east of Wrockwardine Road:

Certain lands in the parish of Holy Cross and Saint Giles in the borough of Shrewsbury and in the parishes of Uffington and Upton Magna in the rural district of Atcham lying on and adjoining the southern side of the Shrewsbury

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and Wellington Railway of the two companies and extending from Sparrow Lane to the Shropshire Union Canal:

Certain lands in the parish of Holy Cross and Saint Giles in the borough of Shrewsbury lying on and adjoining the northern side of the Shrewsbury and Wellington Railway and extending in an easterly direction for a distance of about 43 chains from Sparrow Lane:

Certain lands in the parish of Holy Cross and Saint Giles in the borough of Shrewsbury lying on and adjoining the northern side of the said Shrewsbury and Wellington Railway and extending from the bridge carrying that railway over the River Severn at Shrewsbury Station to Underdale Road:

Certain lands in the parishes of Holy Cross and Saint Giles and Saint Julian in the borough of Shrewsbury lying on and adjoining the north-eastern side of the Shrewsbury and Hereford Railway of the two companies and between that railway Abbey Foregate and the Shropshire and Montgomeryshire Light Railway.

In the county of Chester—

Certain lands in the parish and city and county borough of Chester and in the parish and urban district of Hoole and in the parish of Great Boughton in the rural district of Chester lying on and adjoining both sides of the Birkenhead Railway of the two companies and extending from Hoole Lane to Hare Lane.

For protection of
Shropshire
Railways
Company.

95. For the protection of the Shropshire Railways Company (in this section referred to as “the Shropshire Company”) the following provisions shall unless otherwise agreed in writing between the Shropshire Company on the one hand and the two companies on the other hand have effect (that is to say):—

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans the two companies shall not enter upon take or use any greater or other portions of the properties respectively numbered on the said plans 14 and 28 in the parish of Holy Cross and Saint Giles than the portions thereof coloured red on the plan signed by Arthur Wellesley Soames the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred

(of which plan one copy has been deposited in the Private Bill Office of the House of Commons and one copy has been deposited in the Parliament Office of the House of Lords) and in the event of the Shropshire Company at any time hereafter constructing a siding or works on the property adjoining that purchased by the two companies the two companies shall re-sell to the Shropshire Company at the same price per acre as was paid by the two companies so much as the Shropshire Company may require of that part of the land coloured red on the said plan which by reason of the construction of such siding or works may become unnecessary for the works of the two companies :

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- (2) The two companies shall not execute any work or do anything which shall prevent the formation of a junction between the railway of the Shropshire Company and the Shrewsbury and Wellington Railway of the two companies upon the lands of the two companies shown on the said plan or any adjoining or adjacent lands of the two companies acquired by them under the powers of this Act :
- (3) If any difference shall arise between the Shropshire Company on the one hand and the two companies on the other hand under this section such difference shall be referred to and determined by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of the Shropshire Company or the two companies after notice to the other party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

96. Where this Act authorises the deviation of a road or footpath or the making of a new road or footpath in substitution for an existing road or footpath or portion thereof and the stopping up of an existing road or footpath or portion thereof the stopping up of the existing road or footpath shall not take place until such deviated or new road or footpath is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Company or the two companies as the case may be and the road authority until two

Stopping up roads and footpaths in case of diversion or making of new road or footpath.

A.D. 1914. — justices shall have certified that the deviated or new road or footpath has been completed to their satisfaction and is open for public use.

Before applying to the justices for their certificate the Company or the two companies as the case may be shall give to the road authority of the district in which the existing road or footpath is situate seven days' notice in writing of their intention to apply for the same.

As from the completion to the satisfaction of the road authority of the new road or footpath or as from the date of the said certificate as the case may be all rights of way over or along the existing road or footpath or portion authorised to be stopped up shall be extinguished and the Company or the two companies as the case may be may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road or footpath stopped up as far as the same is bounded on both sides by lands of the Company or the two companies as the case may be :

Provided that the Company or the two companies as the case may be shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

As to private rights of way over lands taken compulsorily.

97. All private rights of way over any lands which are under the powers of this Act authorised to be acquired compulsorily shall as from the date of their acquisition be extinguished Provided that the Company or the two companies as the case may be shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Provision as to repair of new roads and foot-paths.

98. The roads streets footpaths and highways to be made altered or diverted under the authority of this Act (except the stone steel or other structure of any bridge carrying the same over or under any railway of the Company or the two companies which structure except where otherwise expressly provided by

this Act shall be repaired and maintained by and at the expense of the Company or the two companies as the case may be) shall unless otherwise agreed or otherwise specially provided by this Act when completed respectively be repaired and maintained by and at the expense of the parties on whom the expense of maintaining the adjoining portion or portions of the same roads streets and footpaths now devolves. A.D. 1914.

99. The Company or the two companies as the case may be may enter into and carry into effect agreements with the parties having the charge management or control of the roads streets footpaths or highways or any of them portions whereof shall under the provisions of this Act be stopped up with reference to the construction or contribution towards the cost of any new road street footpath or highway to be substituted therefor and with reference to any other matters relating thereto and if so agreed the Company or the two companies as the case may be may delegate to such parties as aforesaid the power of constructing all or any of such new roads streets footpaths or highways in which they may be interested except the stone steel or other structure of any bridge over or under any railway. Power to make agreements as to construction of or contribution towards cost of new roads &c.

100. The Company or the two companies as the case may be may in constructing the works other than the railways deviations and widenings of railways and works in connection therewith by this Act authorised deviate from the lines thereof to the extent of the limits of deviation marked on the deposited plans and may deviate from the levels of the new roads streets and other similar works shown on the deposited sections to any extent not exceeding three feet or (if the work be situate in any town village street or land continuously built upon) two feet but not so as to increase the rate of inclination of any new road or street beyond that prescribed by this Act where such rate is steeper than the rate of inclination prescribed by the Railways Clauses Consolidation Act 1845 and where such rate of inclination is less than that so prescribed it may be increased to such prescribed rate except where otherwise expressly provided by this Act. Power to deviate in construction of works.

101. If the railways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for completion of railways.

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Imposing
penalty un-
less railways
opened.

102. If the Company fail within the period limited by this Act to complete the railways and open the same for public traffic they shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the uncompleted railway or railways is or are completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the works.

The said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854.

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided.

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening the uncompleted railway or railways by unforeseen accident or circumstances beyond their control. Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty.

103. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit.

If no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as

aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway or railways in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

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104. The powers of this Act for the compulsory purchase of lands by the Company or the two companies (as the case may be) shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

105. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company or the two companies (as the case may be) any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for any of the purposes of this Act to be executed by them in or over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid.

Power to owners to grant easements &c.

106. In settling any question of disputed purchase money or compensation payable under this Act by the Company the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the nineteenth day of November one thousand nine hundred and thirteen if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensation in case of recently altered buildings acquired by Company.

107. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans

Owners may be required to sell parts only of certain properties.

A.D. 1914. — will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto. Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the first part of the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed

from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission

A.D. 1914. — that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

The provisions of this section shall apply and extend to the two companies as if those companies and the second part of the said schedule had been referred to therein instead of the Company and the first part of that schedule.

Extension of time for completion of Railway No. 6 authorised by Act of 1909.

108. The time limited by the Great Western Railway (General Powers) Act 1909 for the completion of Railway No. 6 authorised by that Act is hereby extended for a period of three years from the sixteenth day of August one thousand nine hundred and fourteen and sections 106 and 107 of the said Act shall be read and construed as if the time limited by this Act for the completion of the said railway had been the time limited by the said Act for the completion thereof.

If the said railway is not completed within the period limited by this Act with reference thereto then on the expiration of that period the powers by the said Act of 1909 as extended by this Act granted to the Company for making and completing the same shall cease except as to so much thereof as shall be then completed.

Abandonment of portion of railway at Uxbridge.

109. The Company may and shall abandon the construction of Railway No. 4 authorised by the Great Western Railway Act 1899 for a distance of one mile or thereabouts from its commencement as shown on the deposited plans relating to that railway and all the powers and obligations conferred or imposed upon the Company with respect to or in connection with the said portion of railway shall cease.

Compensation for damage to land by entry &c. for purposes of portion of railway abandoned.

110. The abandonment by the Company under the authority of this Act of the said portion of railway shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which may have been temporarily occupied by the Company for the purposes

of the said railways to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845 or the said Act of 1899. A.D. 1914.

111. Where before the passing of this Act any contract has been entered into or notice been given by the Company for the purchasing of any land for the purposes of or in relation to the portion of railway authorised to be abandoned by this Act the Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation to be paid for lands taken under the provisions thereof. Compensation to be made in respect of portion of railway abandoned.

112. The agreement dated the twelfth day of December one thousand nine hundred and thirteen made between the Company of the one part and the Uxbridge Council of the other part a copy whereof is set forth in the Second Schedule to this Act is hereby confirmed and made binding upon the parties thereto and notwithstanding anything contained in the Lands Clauses Acts shall and may be carried into effect. Confirmation of agreement with Uxbridge Council.

113.—(1) The Company may use and appropriate the lands acquired by them for the purposes of the portion of railway authorised by the Great Western Railway Act 1899 proposed to be abandoned under the powers of this Act so far as the same are not to be conveyed to the Uxbridge Council in accordance with the agreement set forth in the Second Schedule to this Act for other purposes of their undertaking or may sell lease or otherwise dispose of any part or parts of such lands. As to user of lands acquired for purposes of abandoned railway.

(2) Subject to the provisions of the said agreement the Uxbridge Council may appropriate and use the lands to be conveyed to them in pursuance thereof for such purposes as they may think fit.

114. The heads of agreement dated the 31st day of December 1912 and made in settlement of an action in the Scheduled heads of agreement

A.D. 1914. High Court of Justice (King's Bench Division) between the
of action
confirmed. Attorney-General on the relation of the Llanelly Urban District Council and of the Llanelly Rural District Council and of Henry Brazell Henry Morgan and of Joseph Brown and the Llanelly Urban District Council and the Llanelly Rural District Council and Henry Brazell Henry Morgan and Joseph Brown plaintiffs and the Great Western Railway Company defendants a copy of which heads of agreement is set forth in the Third Schedule to this Act are hereby confirmed and made binding upon the parties thereto and shall be carried into effect accordingly.

The mayor aldermen and burgesses of the borough of Llanelly (hereinafter called "the corporation") the successors of the said Llanelly Urban District Council and the Llanelly Rural District Council may respectively pay and contribute out of the district fund or general district rate of the borough of Llanelly or of the rural district of Llanelly as the case may be the sums to be paid or contributed by the corporation as the successors of the Llanelly Urban District Council and the Llanelly Rural District Council respectively in pursuance of the said heads of agreement towards the costs of construction of the footpath and footbridge therein mentioned and after construction of the same towards the maintenance of the said footpath and footbridge and the corporation and the said Llanelly Rural District Council may each pay and contribute out of the said funds or rates the sum of 45% to defray the costs charges and expenses of the said action referred to in the said heads of agreement And the corporation may provide free of cost to the Company and dedicate as a public highway the land adjoining Ropewalk Road mentioned in paragraph 3 of the said heads of agreement.

Power to
raise addi-
tional
capital.

115. The Company by the order of any general meeting of the Company may create and issue new shares or stock for such additional capital as they shall think necessary not exceeding one million pounds exclusive of the other capital and other moneys which they are or may be authorised to create and issue or raise by this or any other Act or Acts of Parliament and the Company may create and issue such new shares or stock either wholly or partially as ordinary or wholly or partially as preferential shares or stock as they may think fit.

As to dis-
posal of new
shares or
stock.

116. Notwithstanding anything contained in Part II. of the Companies Clauses Act 1863 the Company may in issuing any portion of the additional capital by this Act authorised dispose

of all or any of the shares or stock representing the same at such time to such persons on such terms and conditions and in such manner as the directors think advantageous to the Company.

A.D. 1914.
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117. If the Company after having created any new shares or stock under the provisions of this Act or any other Act or Acts of Parliament relating to the Company or to any company amalgamated therewith determine not to issue the whole of the shares or stock created they may cancel the unissued shares or stock and may from time to time thereafter create and issue instead thereof other new shares or stock of an aggregate amount not exceeding the aggregate amount of the shares or stock so cancelled and in like manner the Company may create and issue new shares or stock in lieu of any new shares or stock which may have been issued and redeemed or in lieu of any certificate entitling the holder to be registered in respect of shares or stock.

Power to
cancel un-
issued shares
or stock.

118. The Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share shall have been paid in respect thereof.

Shares not to
be issued until
one-fifth part
thereof shall
have been
paid up.

119. Except as by or under the powers of this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be entitled and subject to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company and the new shares or stock were shares or stock in that capital The capital in new shares or stock so created shall form part of the capital of the Company.

Except as
otherwise
provided
new shares
or stock to
be subject
to same
incidents as
other shares
or stock.

120. Every person who becomes entitled to new shares or stock of the Company under this Act shall in respect of the same be a holder of shares or stock in the Company and shall subject to the conditions on which the same may be issued be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called and paid on such new shares or stock.

Dividends on
new shares
or stock.

A.D. 1914.

Restriction as
to votes in
respect of
preferential
shares or stock.

121. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock of the Company to which a preferential dividend shall be assigned.

New shares
or stock
raised under
this Act and
any other
Act of past
or present
session may
be of same
class.

122. Subject to the provisions of any Acts already passed by which the Company are authorised to create new shares or stock not already issued and to the provisions of this Act and any other Act passed in the present session of Parliament whether before or after the passing of this Act by which the Company may be authorised to create and issue capital by new shares and stock the Company may if they think fit create and issue new shares or stock of one and the same class for all or any part of the aggregate capital which they are by such other Acts and this Act respectively authorised to create and issue by the creation and issue of new shares or stock.

Power to
borrow.

123. The Company may in respect of the additional capital of one million pounds which they are by this Act authorised to create and issue from time to time borrow on mortgage of their undertaking any sum not exceeding in the whole three hundred and thirty-three thousand pounds but no part thereof shall be borrowed until shares for so much of the said capital as is to be created by means of shares are issued and accepted and one-half of such capital is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for the whole of that capital have been issued and accepted and that one-half of that capital has been paid up and that not less than one-fifth part of the amount of each separate share in that capital has been paid on account thereof before or at the time of the issue or acceptance thereof or until stock for one-half of so much of the said additional capital as is to be created by means of stock is fully paid up and the Company have proved to such justice as aforesaid before he so certifies that such shares or stock as the case may be were issued and accepted and to the extent aforesaid paid up bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also so far as the said capital is raised by shares that such persons or corporations or their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other

evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof. A.D. 1914.

124. The Company may subject to the provisions of Part III. of the Companies Clauses Act 1863 create and issue debenture stock of a nominal amount equal to the amount of the moneys which they are by this Act authorised to borrow but notwithstanding anything therein contained the interest of all debenture stock at any time after the passing of this Act created and issued by the Company shall rank *pari passu* with the interest of all mortgages at any time after the passing of this Act granted by the Company and shall have priority over all principal moneys secured by such mortgages. Company may issue debenture stock.

125. All mortgages or bonds granted before the passing of this Act by the Company or by or in the name of any company whose undertaking is under the powers of any Act of Parliament purchased by the Company or amalgamated with the undertaking of or vested in the Company shall during the continuance of such mortgages or bonds and subject to the provisions of the Acts under which such mortgages or bonds were respectively granted have priority over all mortgages granted after the passing of this Act by the Company But nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company. Mortgages already granted by Company to have priority.

126. All moneys raised by the Company under this Act whether by shares stock debenture stock or borrowing shall unless otherwise provided by this Act be applied only to the purposes of this Act and any other Act of the present session of Parliament to be carried into effect by the Company and to the general purposes of the undertaking of the Company being in every case purposes to which capital is properly applicable. Application of moneys raised by Company.

127. The Company may apply to all or any of the purposes of this Act to which capital is properly applicable any moneys from time to time raised by them and which are not by any of the Acts relating to the Company made applicable to any special purpose or which being so made applicable are not required for the special purpose And the Company may for the general purposes of their undertaking and for the more efficient working of their traffic issue any shares or stocks Power to Company to apply funds to purposes of Act.

A.D. 1914. — which under the authority of any Act passed prior to the present session of Parliament the Company may have created or may hereafter create but which are not or may not be required for the special purposes for which such shares or stocks respectively were authorised to be created Provided that all money raised by the issue of such shares or stocks shall be applied only to purposes to which capital is properly applicable.

Power to
North
Western
Company to
apply funds
to purposes
of Act.

128. The North Western Company may apply to the purposes of this Act which they are empowered to carry into execution and to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by shares stock debenture stock or mortgage by virtue of any of their Acts and which may not be required for the purposes to which they are by these Acts made specially applicable.

Interest not
to be paid on
calls paid up.

129. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Deposits for
future Bills
not to be
paid out of
capital.

130. The Company shall not out of any money by this Act authorised to be raised by them pay or deposit any sum which by any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Crown
rights.

131. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in

writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give). A.D. 1914. —

132. Nothing in this Act contained shall exempt any Company upon whom powers are conferred by this Act or their respective railways from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by this Act. Provision
as to general
Railway
Acts.

133. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of
Act.

A.D. 1914. The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

FIRST PART.

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY MAY BE
REQUIRED TO BE TAKEN BY THE COMPANY.

Area.	No. on deposited Plans.	Description of Property.
RAILWAY NO. 1 (LLANGENNECH AND PEMBREY).		
Parish of Llanelly Rural in the rural district of Llanelly.	5 17 18 21	} Fields.
	22 24 25 28	
	113	
	6	Brickworks engines kilns office shed and tramway.
	7	Occupation road and tramway.
	16 19	Plantations.
	20	Field and occupation road.
	23	Plantation and occupation road.
	26	Wood and ditch.
	27	Field occupation road and ditch.
	29	Field cricket tennis and hockey grounds.
	30	Wood.
	31	Plot of land.
	37	Garden watercourse and outbuildings.
	40	House garden outbuildings and shed.
	41	Yard garden and outbuildings.
	42 43	Gardens and outbuildings.
	53	Garden ground.
	57 58	Houses gardens and outbuildings.
	137	Garden.
Parish and borough of Llanelly.	8	Strip of land.
	16	Garden ground and culvert.
	42 43 44 45	Houses forecourts gardens and out- buildings.
	40	House forecourt lawn gardens glass- houses and outbuildings.
	52 53 55	Gardens and outbuildings.
Parish of Llangennech in the rural district of Llanelly.	54	Field.
	43 85 96	} Gardens and shed.
	98 99	
	75 78	Fields and track.
	97	Gardens outbuildings and passage.
	105	Public-house yard garden stables coachhouse and outbuildings.
	106	Garden and outbuildings.
	114	Part of park.
	115	Part of park and footpath.

A.D. 1914.

Area.	No. on deposited Plans.	Description of Property.
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RAILWAY No. 1 (LLANGENNECH AND PEMBREY)—*continued.*

Parish of Llangennech in the rural district of Llanelly— <i>continued.</i>	116 117 118	Plantations and ditches.
	120 121	Plantations and banks.
	122	Park.
	123	Plantation and shrubbery.
	129	Yard fowlhouse cowsheds and barn.
	128 130 131	} Gardens and outbuildings.
Parish of Llanedy in the rural district of Llanelly.	132 133	
	134	Garden outbuildings and greenhouses.
	2	Garden.
	4	Yard and pigstyes.
	5	Cartshed and yard.
	6	Orchard.

RAILWAY No. 3 (ALLER LOOPS).

Parish of Abbotskerswell in the rural district of Newton Abbot.	23	Garden.
Parish of Milber in the urban district of Newton Abbot.	4	Garden ground.

RAILWAY No. 4 (ALLER LOOPS).

Parish of Abbotskerswell in the rural district of Newton Abbot.	24	Garden.
Parish of Milber in the urban district of Newton Abbot.	4	Garden ground.

RAILWAY No. 5 (PRIESTFIELD LOOP).

Parish and urban district of Bilston.	5	House forecourt and garden.
	6	Garden fowlhouses and sheds.
	7	Field and ditch.
	28	Garden.

RAILWAY No. 6 (ROGERSTONE).

Parish of Rogerstone in the rural district of Saint Mellons.	10 11	Gardens.
	18	Forecourt to house garden and steps.
	19	Forecourt to shop garden and steps.
	29	Rough land and brake.
	33	Approach road and yard.
	53	Orchard and market garden.
	54	Orchard and well.
	65	Garden and shed.
	69	House and gardens.
	70	Garden and pathway.
	71 72 73	Gardens and steps.

RAILWAY No. 7 (TAIBÂCH LOOP).

Parish and urban district of Margam.	21	Rough land and gasworks in course of construction.
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[Ch. cvii.] *Great Western Railway Act, 1914.* [4 & 5 GEO. 5.]

A.D. 1914.

Area.	No. on deposited Plans.	Description of Property.
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RAILWAY No. 8 (PORT TALBOT LOOP).

Parish and urban district of Margam.	4 5	Offices and land by side. Railway sidings.
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RAILWAY No. 9 (YNYSARWED BRANCH).

Parish of Llantwit Lower in the rural district of Neath.	3 4 5	Yard. Gardens rough land outhouses and fowl sheds. Rough land garden sheds stable and path.
Parish of Clyue in the rural district of Neath.	4 13 14	House yard gardens shed outbuildings and accommodation road. House shop garden and outbuildings. House shop rough land garden and sheds.
Parish of Neath Lower in the rural district of Neath.	6	Farmyard pond and outhouse.
Parish of Resolven in the rural district of Neath.	13	Garden and shed.

RAILWAY No. 10 (GLYN-NEATH BRANCH).

Parish of Blaengwrach in the rural district of Neath.	11 12	Fields closets and sheds.
Parish of Neath Higher n the rural district of Neath.	6 7 8 18 34 32 42 69 70 82	Gardens and closets. Bungalow and rough ground. Garden and sheds. Houses gardens and outbuildings. Garden and copse.

DEVIATION AND WIDENING No. 2 (ABERAVON).

Parish and borough of Aberavon.	9 10 10A 14 15 16 17 18 19 22 23 24 25 26 27 28 29 30 31 32 33 34 35 36 37 38 39 40 41 42 43 46 47 48 49 50 51 52 53 54 55 58 65	} Gardens and outbuildings.
	13	
	66A	
Parish and urban district of Margam.	9 12 13 14	
		Garden and yard. Stables and yard. Yards railway sidings and sheds. Offices land by side and footpath.

DEVIATION AND WIDENING No. 2 (ABERAVON)—continued.

WORKS IN CONNECTION THEREWITH AT BURROWS JUNCTION.

Parish and urban district of Margam.	53	Yards and sheds.
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A.D. 1914.

Area.	No. on deposited Plans.	Description of Property.
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DEVIATION AND WIDENING NO. 2 (ABERAVON)---continued.

DEVIATION OF PORT TALBOT RAILWAY.

Parish and urban district of Margam.	66 70 71 72	} Gardens and outbuildings.
	73 74 75 76	
	77 78 79 80	
	81	

WIDENING OF THE LLANELLY RAILWAY.

Parish of Llanedy in the rural district of Llanelly.	6	Stables.
	13	Garden passage and sheds.
	16	Stables carriage shed club room and garden.
	17	House forecourt yard garden passage and outbuildings.
	19 20 21 22	} Houses yards gardens and outbuild- ings.
	24 25	
	26	Passage shop and outbuildings.
	27 28 29 30	} Forecourts and passages.
	31 32 33 34	
	35	
	41	House carriage drive garden stables and outbuildings.
	48	Garden ditch and shed.
	60	Sidings and rough land.

ADDITIONAL LINE OF RAILS CWMDOVS LEVEL CROSSING
(PENNAR BRANCH RAILWAY).

Parish and urban district of Abercarn.	8	Garden.
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ADDITIONAL LINES OF RAILS BRIDGES ROADS AND LANDS BETWEEN
LLANTRISANT AND PETERSTON.

Parish of Llantrisant in the rural district of Llan- trisant and Llantwit Fardre.	28 35	Gardens and yard.
	36	Forecourt garden and steps.
	40	Approach to house and steps.
	41	Garden and pigstyes.
Parish of Peterston-super- Ely in the rural district of Llandaff and Dinas Powis.	54 55	Fields and footpath.
	56 65 67	Gardens and outbuildings.
	57	Stables stores and garden.
	66	Garden and orchard.

ADDITIONAL LINE OF RAILS BRIDGE AND LANDS NEAR TIRYDAIL STATION.

Parish of Ammanford Urban and urban district of Ammanford.	7	Yard and workshops.
	9	Wood rough land and garden.
	18	Stables cowhouses and outbuildings.

BRIDGES AND LANDS BETWEEN WEST DRAYTON AND SOUTHALL STATIONS.

Parish and urban district of Yiewsley.	1	Gardens and paths.
	2	Field.
	3	Field pond and slope to road.
	8	Storehouse.

A.D. 1914.

Area.	No. on deposited Plans.	Description of Property.
BRIDGES AND LANDS BETWEEN WEST DRAYTON AND SOUTHALL STATIONS— <i>continued.</i>		
Parish and urban district of Yiewsley— <i>continued.</i>	11	Rough ground occupation road and bank of canal.
	14A	Slope to road.
	15	Rough ground.
	16	Rough ground occupation road tramway and slope to road and wing walls of bridge.
Parish of Harlington in the rural district of Staines.	3	Rough ground.
	4	Field and slope to road.
	5	Occupation road.
	15	Orchard ditch and banks.
	16	Garden slope to road steps boiler-house storehouse and telegraph posts and wires.
Parish and urban district of Hayes.	16A	Garden.
	19	Garden and slope to road.
	1	Land by side of road.
	8	Gardens and sidings.
Parish of Norwood and urban district of Southall Norwood.	12	Field orchard occupation road and wharf.
	13	Rough ground.
	6	Rough ground gardens and sidings.
	7	Rough ground storehouse coal-testing house and office.
	8	Garden.
	9	Occupation road.
	11	Rough ground occupation road cinder track and telegraph posts and wires.
	12	Garden and approaches to governor house and house.
	13	Governor house.
	14	Rough ground.

LENGTHENING OF BRIDGES AND LANDS NEAR LANGLEY MARISH.

Parish of Langley Marish in the rural district of Eton.	8	Slope and orchard.
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LENGTHENING OF BARROW ROAD BRIDGE BRISTOL.

Parish and city and county borough of Bristol.	3	Forecourt.
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LENGTHENING OF BRIDGES AND LANDS BETWEEN WORLE AND PUXTON STATIONS.

Parish of Banwell in the rural district of Axbridge.	23	Garden ditch and bank.
	24	Orchard rhyne and bank.

LENGTHENING OF BRIDGE AT WESTON-SUPER-MARE.

Parish and urban district of Weston-super-Mare.	1	Approach to house and yard.
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A.D. 1914.

Area.	No. on deposited Plans.	Description of Property.
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BRIDGES ROAD AND LANDS BETWEEN CULLOMPTON AND TIVERTON JUNCTION STATIONS.

Parish of Cullompton in the rural district of Tiverton.	42 8	Slaughterhouse yard and shed. Field and brook.
Parish of Willand in the rural district of Tiverton.	5 7 41	Fields and brakes. Slaughterhouse yard sheds and approach road.

LENGTHENING OF BRIDGE AND LANDS AT EXMINSTER STATION.

Parish of Exminster in the rural district of Saint Thomas.	18 19 20	Garden. Approach road to station land by side and bank. Forecourt to public-house.
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BRIDGE FOOTPATH AND LANDS AT STOURBRIDGE.

Parish of Lye in the urban district of Lye and Wollescote.	5	Garden coalhouse and stream.
Parish of Upper Swinford in the urban district of Stourbridge.	11 12	Garden. Approach to inn.
Parish of Stourbridge in the urban district of Stourbridge.	7 8	Garden. Garden and entrance to house.

BRIDGES ROADS FOOTPATHS AND LANDS NEAR ROGERSTONE.

Parish of Rogerstone in the rural district of Saint Mellons.	7 17 18 25 26 34 36 40 44 45 52 53 54 98 46 47 50 51 55 56 57 60 61 64 65 66 67 69 104 106 48 49 58 59 68 71 62 63 70 72 102 103 105	Gardens yard and outbuildings. Forecourt to house garden and steps. Forecourt to shop garden and steps. Stable and rough land. Rough land and brake. Approach road and yard. } Gardens and sheds. Garden passage and slaughterhouse. } Gardens. Gardens and passages. Garden and stable. Gardens and fowlhouses. Garden workshop and fowlhouse. Garden and pigeons' coop. Garden and pigeons' coop. Garden and outhouse. House and garden. Garden and pathway. Garden and steps.
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A.D. 1914.

Area.	No. on deposited Plans.	Description of Property.
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BRIDGES ROAD RIVER AND FOOTPATH DIVERSIONS AND LANDS BETWEEN
ABERCARN AND RISCA.

Parish and urban district of Abercarn.	15	Garden and sheds.
Parish and urban district of Risca.	13 14 15	Strip of land and mill leat. Fields and bank.

BRIDGES FOOTPATH AND LANDS BETWEEN MARGAM AND BRIDGEND.

Parish and urban district of Margam.	64 85 67 84	Fields stable and shed. Yard and occupation road. Garden ground.
Parish of Kenfig in the rural district of Penybont.	20 21	Garden. Field and fowl run.
Parish of Pyle in the rural district of Penybont.	10 11 15 18 29 28 30 32	Garden and pigstye. Garden and path. Strip of land. Gardens. Yards and sheds. Rick yard.
Parish of Laleston in the rural district of Penybont.	12 15 17 18	Orchards and watercourse. Rough ground brake and watercourse. Field bank watercourse bridge and footpath.
Parish of Newcastle Higher in the rural district of Penybont.	22 37	Garden yard occupation road and watercourses. Garden and yard.
Parish and urban district of Bridgend.	14 16	Yard entrance to quarry offices and sheds. Garden and fowlhouse.

WIDENING OF BRIDGE AND LANDS AT BEDMINSTER STATION.

Parish and city and county borough of Bristol.	1 2 3 4 8 12 5 6 7 14 15 9 10 11 13 16 24	Yard and shed. Gardens closets and sheds. Gardens. Gardens and fowl runs. Gardens and sheds. Bakehouse. Buttress.
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WIDENING OF BRIDGE AND LANDS NEAR YATTON.

Parish of Congresbury in the rural district of Ax- bridge.	1 2 3	Orchards ditches and banks.
Parish of Yatton in the rural district of Long Ashton.	31 45 46 47 49 50 80 81	Dog runs pen hut ditches and banks. Coalyard office weighbridge and stables. Gardens ditch and bank. Paddock and occupation road. Paddock outbuildings rhyne and bank.

A.D. 1914.
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Area.	No. on deposited Plans.	Description of Property.
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WIDENING OF BRIDGE AND LANDS NEAR NEWTON ABBOT.

Parish of Abbotskerswell in the rural district of Newton Abbot.	16	Garden ground.
Parish of Milber in the urban district of Newton Abbot.	1	Garden ground.
Parish of Woolborough in the urban district of Newton Abbot.	2 3 4	Garden pigstye and brook. Gardens and shed.

WIDENING OF BRIDGE AND LANDS NEAR LAIRA.

Parish and county borough of Plymouth.	4 6	Gardens and manure pit.
	12	Yard and entrance gate.
	13	Garden yard and carthouse.
	14	Field.
	16	Yard and approach.
	17	Field and hut.
	19	Rough land and bank.
	21	Garden entrance steps and ground frames.

WIDENING OF VIADUCT OVER RIVER TAFF CARDIFF.

Parish and city and county borough of Cardiff.	1	Warehouse and works.
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BRIDGES FOOTPATHS AND LANDS BETWEEN ST. FAGANS AND ELY.

Parish of Llandaff in the rural district of Llan- daff and Dinas Powis.	22	Yard and toolhouse.
	26	Rough ground railway siding gate and yard.
	27	Allotment garden.
	29	House offices forecourt and garden.
	30	Field yard occupation road and sheds.
	31	Garden.

{BRIDGES AND LANDS BETWEEN BAGLAN AND PORT TALBOT.

Parish and borough of Aberavon.	7	Farm buildings yard and pond.
	17 18 22 24	} Gardens.
	25 26 46 47	
	48 49	
	23	Garden and fowlhouse.
	37	Playground to school and lavatories.
	44	Forecourt to lodging house.
	45	Garden workshop and side entrance.
	50 51 52	Gardens and outbuildings.
	53	Garden and stables.
Parish and urban district of Margam.	63	Yard and shed.
	7	Offices and land by side.
	8	Builder's yard and huts.

[Ch. cvii.] *Great Western Railway Act, 1914.* [4 & 5 GEO. 5.]

A.D. 1914.

Area.	No. on deposited Plans.	Description of Property
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FOOTPATH AT BOJEA ST. AUSTELL.

Parish of Saint Austell	2	Rough ground and spoil heap.
Rural in the rural district of Saint Austell.	3	Clay tank.

FOOTPATH NEAR HADLEY.

Parish of Wellington Urban in the urban district of Wellington.	6	Gardens outbuildings and buttress.
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FOOTPATH AND LANDS AT JOHNSTOWN AND HAFOD STATION.

Parish of Esclusham Below in the rural district of Wrexham.	4	Field and path.
	9	Field and path.
Parish of Ruabon in the rural district of Wrexham.	1	Field.

ROAD AND LANDS BETWEEN ELY STATION AND CARDIFF.

Parish and city and county borough of Cardiff.	3	Forecourt to house and passage.
	16	Forecourt to house and bay window.
	17	Garden and bay window.
	31	Market garden and orchard.

FOOTPATH AT CWMGORS.

Parish of Llangnick in the rural district of Pontardawe.	6 7 8	Gardens.
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LANDS BETWEEN LANGLEY AND WEST DRAYTON STATION.

Parish of Iver in the rural district of Eton.	11	Orchard.
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LANDS AT PORTISHEAD JUNCTION BRISTOL.

Parish and city and county borough of Bristol.	6	Garden.
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LANDS AT PAIGNTON.

Parish and urban district of Paignton.	1	Land by side of railway.
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LANDS AT ASHBURTON.

Parish and urban district of Ashburton.	1	Siding and land by side telegraph posts and wires.
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A.D. 1914.

Area.	No. on deposited Plans.	Description of Property.
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LANDS AT PAR.

Parish of Tywardreath in the rural district of Saint Austell.	3 4 5 6 7 8	} Gardens and outbuildings.
	9 10	
	11	Drying ground garden and outbuildings.
	12	Garden stable and carthouse.

LANDS NEAR BUGLE STATION.

Parish of Roche in the rural district of Saint Austell.	2	Rickyard and stable.
	3	Garden.
	4	Field ditch and approach to house.
Parish of Saint Austell Rural in the rural district of Saint Austell.	3	Garden.

LANDS AT SANDY LANE BIRMINGHAM.

Parish and city and county borough of Birmingham.	1	Yard sheds stables and buttresses.
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LANDS AT WEST BROMWICH.

Parish and county borough of West Bromwich.	3	Garden greenhouse and sheds.
	4	Garden and outbuildings.

LANDS NEAR MAGOR STATION.

Parish of Llandavenny in the rural district of Magor.	4 6 14	Gardens.
	5 8	Yards.
	11	Garden and bank.
Parish of Undy in the rural district of Chepstow.	6	Garden.

LANDS ADJOINING THE PENNAR BRANCH RAILWAY.

Parish and urban district of Abercarn.	5	Gardens yards coachhouse stables fowlhouses and runs.
	8	Garden.

LANDS AT MARSHFIELD STATION.

Parish of Peterstone Wentlooge in the rural district of Saint Mellons.	1	Yard and outbuildings.
	2	Garden and reen.

LANDS ADJOINING THE MORRISTON BRANCH RAILWAY.

Parish and county borough of Swansea.	1	Rough ground tips and colliery tramway.
	2	Yard and colliery tramway.

LANDS AT LOUGHOR STATION.

Parish of Loughor (borough) in the rural district of Swansea.	2	Garden ground.
	3	Field and hayrick.

A.D. 1914.

SECOND PART.

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY MAY BE
REQUIRED TO BE TAKEN BY THE TWO COMPANIES.

Area.	No. on deposited Plans.	Description of Property.
BRIDGE AND LANDS AT CHESTER.		
Parish and urban district of Hoole.	4	Garden ground.
LANDS NEAR SHREWSBURY STATION.		
Parish of Holy Cross and Saint Giles in the borough of Shrewsbury.	13	Pigstyes boiler outhouse and garden ground.

SECOND SCHEDULE.

AN AGREEMENT made this twelfth day of December one thousand nine hundred and thirteen between the URBAN DISTRICT COUNCIL OF UXBRIDGE in the County of Middlesex (herein-after called "the council") of the one part and the GREAT WESTERN RAILWAY COMPANY (herein-after called "the Company") of the other part.

WHEREAS the Company propose in the next ensuing session of Parliament to apply for authority to abandon the construction of so much of Railway No. 4 authorised by the Great Western Railway Act 1899 as lies between its commencement as shown on the deposited plans for that Act and the northern side of High Street Uxbridge aforesaid:

And whereas the council have for the considerations herein-after appearing agreed not to oppose the abandonment of the said portion of railway:

Now these presents witness and it is hereby agreed and declared by and between the parties hereto as follows:—

1. In the event of the Company obtaining authority for the abandonment of the said portion of railway in the next ensuing session of Parliament—

(a) The Company shall (if and so far as they shall not have already done so) provide mileage accommodation at or near High

Street Station Uxbridge aforesaid in accordance with the A.D. 1914.
Plan No. 1 annexed to these presents:

- (b) The Company shall continue to run the experimental Rail Motor Car service which they instituted on the 1st day of July 1913 (in addition to the then existing service) between High Street Station Uxbridge and Gerrard's Cross Station but in the event of its being found after a fair trial for a period of not less than two years from the commencement of the said additional service that such service is unremunerative the Company shall be at liberty to discontinue it:
- (c) The Company shall grant to the council on nominal terms a perpetual easement for the construction and maintenance of a bathing shelter on land belonging to the Company near High Street Station aforesaid on a site to be agreed upon between the parties Provided always that if at any time such site shall be required by the Company for the extension of their railway or for other purposes of their undertaking they shall be at liberty to terminate such easement on giving to the council three months' previous notice in writing and shall if reasonably practicable grant to the council a similar easement for the said purpose on some other site to be agreed upon between the parties:
- (d) The Company shall contribute the sum of 500*l.* towards the cost of the provision of a through road at least 25 feet wide from the Greenway to Vine Street Uxbridge aforesaid And shall also convey to the council for the purposes of such road their interests in the strips of land which are coloured pink on the Plan No. 2 annexed to these presents such conveyance to be subject to the tenancies (if any) and to all rights easements and liabilities affecting the said strips of land but to be free of cost to the council except for stamp duties and their own legal expenses The said sum of 500*l.* shall be paid to the council in two equal instalments of 250*l.* each the first instalment to be payable on the commencement of the work and the second instalment upon its completion:
- (e) The Company shall convey to the council their interests in the property which is coloured blue on the said Plan No. 2 hereto annexed to the intent that such property may be used for the construction of a new road or for such other public purposes as to the council may seem fit such conveyance to be subject to the tenancies (if any) and to all

A.D. 1914.

rights easements and liabilities affecting the said property and to any obligations of the Company in connection therewith but to be free of cost to the council except for stamp duties and their own legal expenses :

(f) The title of the Company to the said property coloured pink and blue on the said Plan No. 2 hereto annexed shall commence with the conveyances thereof to the Company and no objection or requisition shall be raised as to the Company's power to sell the same to the council. The Company will execute to the council a conveyance of the said lands with the covenants for title implied by the Company being expressed to convey as beneficial owners such conveyance to be prepared by the council at their own expense :

(g) The Company shall when required by the council remove the bridge constructed for the purpose of carrying the portion of railway so to be abandoned as aforesaid over High Street aforesaid and shall hand over to the council on the site the girders and other materials recovered.

2. In consideration of the premises the council will support the Company in their application to Parliament for authority to abandon the said portion of railway and will supply such evidence and assistance as may be reasonably required by the Company but this clause shall not be interpreted as obliging the council to expend any money for such purposes.

3. Any dispute difference or question which shall at any time arise between the parties hereto touching the construction meaning or effect of these presents or the rights or liabilities of the parties respectively under these presents or otherwise howsoever in relation to the premises (not being a question of title or conveyance) shall be referred to an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

4. This agreement is made subject to such alterations as Parliament shall think fit to make therein but if the Committee of either House of Parliament make any material alteration in this agreement it shall be competent to either of the parties hereto to withdraw the same or as the case may be require the other to withdraw the same.

In witness whereof the council and the Company have caused their respective common seals to be hereunto affixed the day and year first before written.

The common seal of the Uxbridge Urban District
Council was affixed hereto pursuant to resolution
dated the eighth day of December 1913 by me
WILLIAM THOMAS HARVEY
Clerk to the Council.



A.D. 1914.

The common seal of the Great Western Railway
Company was hereunto affixed in the presence
of
A. E. BOLTER Secretary.



THIRD SCHEDULE.

No. 1910. B. No. 4288.

IN THE HIGH COURT OF JUSTICE KING'S BENCH DIVISION.

BETWEEN THE ATTORNEY GENERAL on the relation of the
Llanelly Urban District Council and of the Llanelly Rural
District Council and of Henry Brazell Henry Morgan and
of Joseph Brown and the Llanelly Urban District Council
and the Llanelly Rural District Council and Henry Brazell
Henry Morgan and Joseph Brown plaintiffs and the GREAT
WESTERN RAILWAY COMPANY defendants.

HEADS OF AGREEMENT FOR SETTLEMENT OF THIS ACTION.

1. The defendants to make and hereafter maintain in good repair and for the free and unimpeded use of the public a footpath properly fenced from the railway (except where crossing the railway lines and at occupation or other level crossings) along the side of the line from Exchange Row Dafen to Rope Walk Road Llanelly and also a footbridge over the main line near St. David's Crossing such footpath and footbridge to be made along the line marked red on the plan signed in quadruplicate this day on behalf of the plaintiffs by Mr. George Watkeys and Mr. John Jenkins and on behalf of the defendants by Mr. William Wylie Grierson and to be five feet or thereabouts in width except near Llwyn Colliery where the footpath will be only about three feet in width for a distance of six chains or thereabouts The defendants to provide the said footbridge and the steps thereto and (if and when necessary) the approaches thereto from Rope Walk Road with good and sufficient lights such lights to be kept alight during such times as the street lamps in the vicinity are kept alight and to give to the Llanelly Urban District Council and the Llanelly Rural District Council or

A.D. 1914. — either of them facilities for lighting the whole or any parts of the said footpath if and when required.

2. The Llanelly Urban District Council to contribute 550*l.* and the Llanelly Rural District Council 550*l.* towards the costs of construction of the said footpath and footbridge and after construction to contribute annually 12*l.* 10*s.* each towards the maintenance of the said footpath and footbridge.

3. The Llanelly Urban District Council to provide the land adjoining Rope Walk Road necessary for the completion of the bridge and footpath free of cost and to dedicate the same as a public highway.

4. The defendants to put and maintain stiles in their fence at the several points marked "stile" upon the said plan.

5. Each party to pay its own costs except that defendants pay the costs of the Attorney General such costs not to exceed 10*l.* 10*s.*

6. Pending completion of the said footpath and footbridge this action to be stayed except for the purpose of carrying these terms into effect and upon completion of the said footpath and footbridge and upon the same being thrown open for public use judgment to be signed in the action for the defendants with the declaration and injunction asked for in subheadings (1) (4) and (5) of the defendant's claim in the defence and counterclaim save in so far as relates to the above-named footpath and footbridge and to private rights (if any).

Dated the 31st day of December 1912.

HENRY W. SPOWART

For the Plaintiffs (other than Attorney General).

L. B. PAGE

For the Defendants.

I hereby consent to the proceedings in this action being stayed upon the above-mentioned terms.

RUFUS D. ISAACS

Attorney General.

Law Officer's Department

1st February 1913.

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